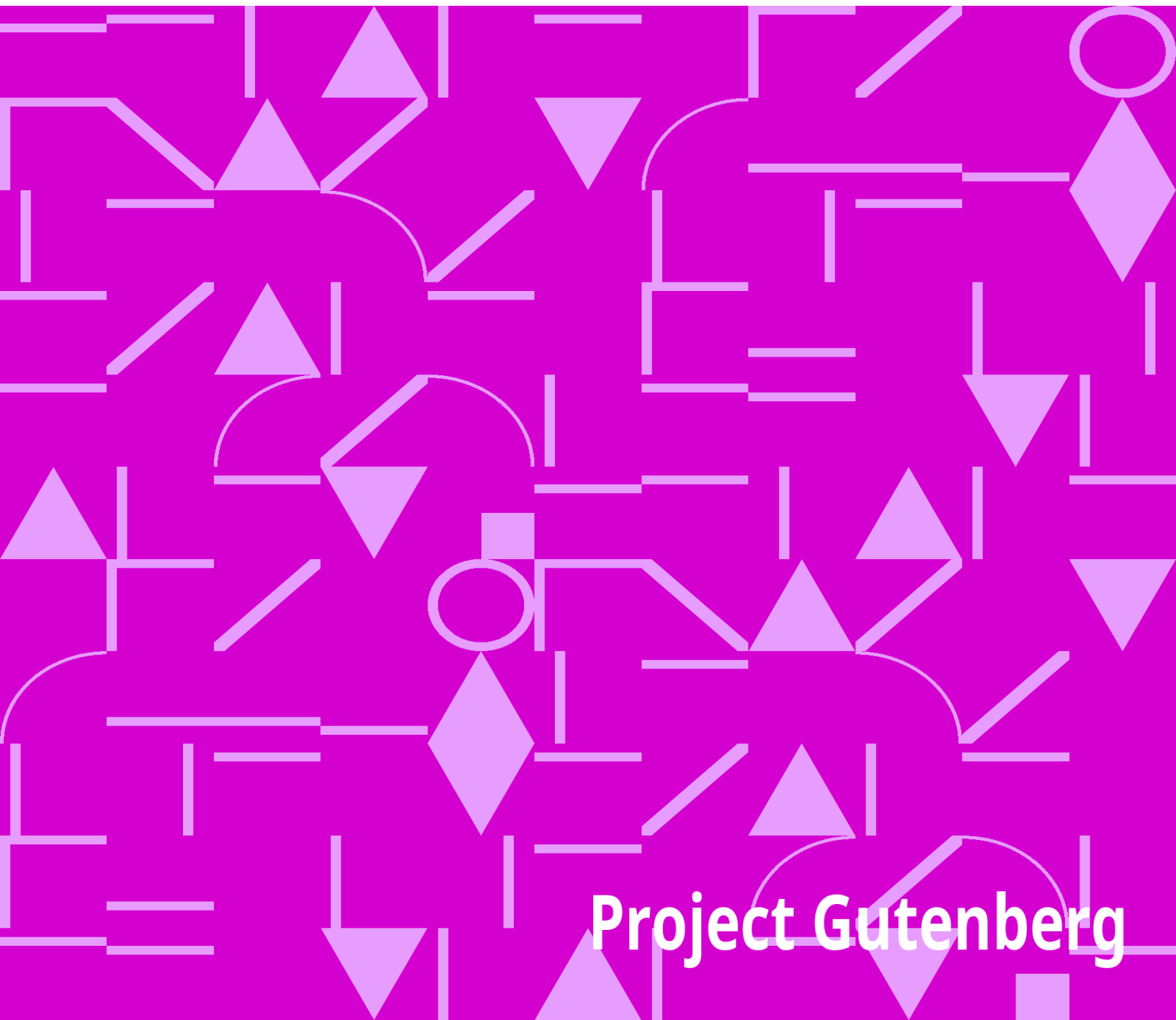


Debate on Woman Suffrage in the Senate of the United States,

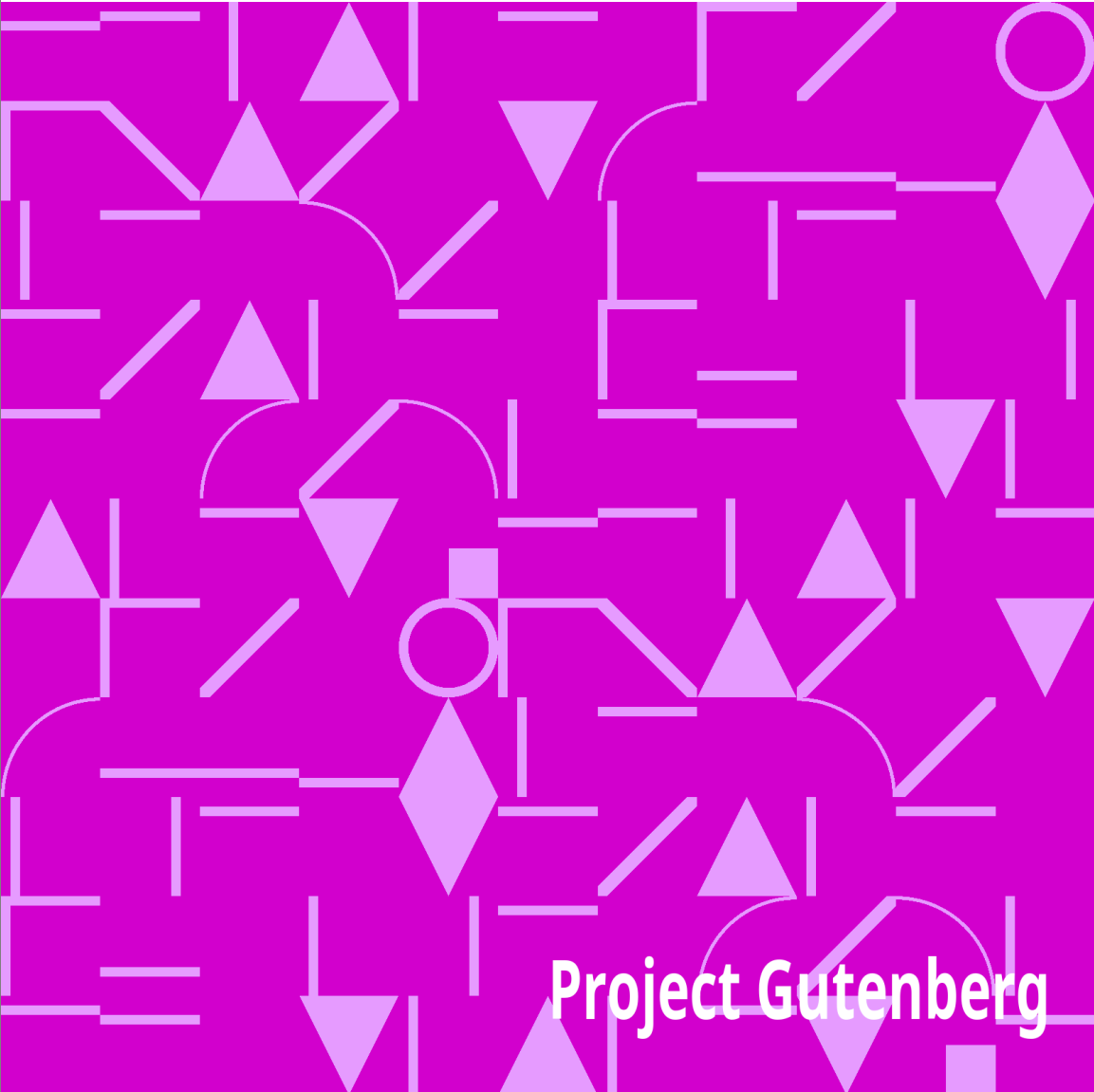
Various

A decorative background pattern consisting of various geometric shapes in shades of pink and purple, including triangles, diamonds, circles, and lines, arranged in a complex, overlapping design.

Project Gutenberg

Debate on Woman Suffrage in the Senate of the United States,

Various

A decorative geometric pattern in shades of pink and magenta, featuring various shapes like triangles, diamonds, circles, and lines, arranged in a complex, overlapping design.

Project Gutenberg

The Project Gutenberg eBook of Debate on Woman Suffrage in the Senate of the United States,

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Debate on Woman Suffrage in the Senate of the United States,

Author: Various

Release date: February 1, 2004 [eBook #11114]

Most recently updated: October 28, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/11114

Credits: Produced by Audrey Longhurst and the Online Distributed Proofreading Team.

*** START OF THE PROJECT GUTENBERG EBOOK DEBATE ON WOMAN SUFFRAGE IN THE SENATE OF THE UNITED STATES, ***

DEBATE

ON WOMAN SUFFRAGE

IN THE
SENATE OF THE UNITED STATES,
2D SESSION, 49TH CONGRESS,
DECEMBER 8, 1886, AND JANUARY 23, 1887,

BY SENATORS H.W. BLAIR, J.E. BROWN, J.N. DOLPH,
G.G. VEST, AND GEO. F. HOAR.

WASHINGTON.
1887.

Wednesday, December 8, 1886.

On the joint resolution (S.R. 5) proposing an amendment to the Constitution of the United States extending the right of suffrage to women.

Mr. BLAIR said:

Mr. PRESIDENT: I ask the Senate to proceed to the consideration of Order of Business 122, being the joint resolution (S.R. 5) proposing an amendment to the Constitution of the United States extending the right of suffrage to women.

The motion was agreed to.

The PRESIDENT *pro tempore*. The joint resolution will be read.

The Chief Clerk read as follows:

Joint resolution proposing an amendment to the Constitution of the United States extending the right of suffrage to women.

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled (two-thirds of each House concurring therein), That the following article be proposed to the Legislatures of the several States as an amendment to the Constitution of the United States; which, when ratified by three-fourths of the said Legislatures, shall be valid as part of said Constitution, namely:

ARTICLE—.

SECTION 1. The rights of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of sex.

SEC. 2. The Congress shall have power, by appropriate legislation, to enforce the provisions of this article.

Mr. BLAIR. Mr. President, the question before the Senate is this: Shall a joint resolution providing for an amendment of the national Constitution, so that the right of citizens of the United States to vote shall not be denied or abridged by the United States, or by any State, on account of sex, and that Congress shall have power to enforce the article, be submitted to the Legislatures of the several States for ratification or rejection?

The answer to this question does not depend necessarily upon the reply to that other question, whether women ought to be permitted to exercise the right or privilege of suffrage as do men. The Legislatures of the several States must decide this in ratifying or rejecting the proposed amendment.

Upon solemn occasions concerning grave public affairs, and when large numbers of the citizens of the country desire to test the sentiments of the people upon an amendment of the organic law in the manner provided to be done by the provisions of that law, it may well become the duty of Congress to submit the proposition to the amending power, which is the same as that which created the original instrument itself—the people of the several States.

It can hardly be claimed that two-thirds of each branch of Congress must necessarily be convinced that the Constitution should be amended as proposed in the joint resolution to be submitted before it has discretion to submit the same to the judgment of the States. Any citizen has the right to petition or, through his representative, to bring in his bill for redress of grievances, or to promote the public good by legislation; and it can hardly be maintained that, before any citizen or large body of citizens shall have the privilege of introducing a bill to the great legislative tribunal, which alone has primary jurisdiction of the organic law and power to amend or change it, the Congress, which under the Constitution is simply the moving or initiating power, must by a two-thirds vote approve the proposition at issue before its discussion shall be permitted in the forum of the States. To hold such a doctrine would be contrary to all our ideas of free discussion, and to lock up the institutions and the interests of a great and progressive people in fetters of brass.

It is only essential that two-thirds of each House of the Congress shall deem it necessary for the public good, that the amendment be proposed to the States for their action. But two-thirds of the Congress will hardly consider it "necessary" to submit a joint resolution proposing an amendment of the National Constitution to the States for consideration, unless the subject matter be of grave importance, with strong reasons in its favor, and a large support already developed among the people themselves.

If there be any principle upon which our form of government is founded, and wherein it is different from aristocracies, monarchies, and despotisms, that principle is this:

Every human being of mature powers, not disqualified by ignorance, vice or crime, is the equal of and is entitled to all the rights and privileges which belong to any other such human being under the law.

The independence, equality, and dignity of all human souls is the fundamental assertion of those who believe in what we call human freedom. This principle will hardly be denied by any one, even by those who oppose the adoption of the resolution. But we are informed that infants, idiots, and women are represented by men. This cannot reasonably be claimed unless it be first shown that the consent of these classes has been given to such

representation, or that they lack the capacity to consent. But the exclusion of these classes from participation in the Government deprives them of the power of assent to representation even when they possess the requisite ability; and to say there can be representation which does not presuppose consent or authority on the part of the principal who is represented is to confound all reason and to assert in substance that all actual power, whether despotic or otherwise, is representative, and therefore free. In this sense the Czar represents his whole people, just as voting men represent women who do not vote at all.

True it is that the voting men, by excluding women and other classes from the suffrage, by that act charge themselves with the trust of administering justice to all, even as the monarch whose power is based upon force is bound to rule uprightly. But if it be true that "all just government is founded upon the consent of the governed," then the government of woman by man, without her consent, given in her sovereign capacity, if indeed she be an intelligent creature, and provided she be competent to exercise the power of suffrage, which is the sovereignty, even if that government be wise and just in itself, is a violation of natural right and an enforcement of servitude and slavery against her on the part of man. If woman, like the infant or the defective classes, be incapable of self-government, then republican society may exclude her from all participation in the enactment and enforcement of the laws under which she lives. But in that case, like the infant and the fool and the unconsenting subject of tyrannical forms of government, she is ruled and not represented by man.

Thus much I desire to say in the beginning in reply to the broad assumption of those who deny women the suffrage by saying that they are already represented by their fathers, their husbands, their brothers, and their sons, or to state the proposition in its only proper form, that woman whose assent can only be given by an exercise of sovereignty on her part is represented by man who denies and by virtue of power and possession refuses to her the exercise of the suffrage whereby that representation can be made valid.

The claim, then, of the minority of the committee that woman is represented by the other sex is not well founded, and is based upon the same assumption of power which lies at the base of all government anti-republican in form. It can not be claimed that she is as a free being already represented, for she

can only be represented according to her will by the exercise of her will through the suffrage itself.

As already observed, the exclusion of woman from the suffrage under our form of government can be justified upon proof, and only upon proof, that by reason of her sex she is incompetent to exercise that power. This is a question of fact.

The common ground upon which all agree may be stated thus: All males having certain qualifications are in reason and in law entitled to vote. Those qualifications affect either the body or the mind or both.

First, the attainment of a certain age. The age in itself is not material, but maturity of mental and moral development is material, soundness of body in itself not being essential, and want of it alone never working forfeiture of the right, although it may prevent its exercise.

Age as a qualification for suffrage is by no means to be confounded with age as a qualification for service in war. Society has well established the distinction, and that one has no relation whatever to the other; the one having reference to physical prowess, while the other relates only to the mental and moral state. This is shown by the ages fixed by law for these qualifications, that of eighteen years being fixed as the commencement of the term of presumed fitness for military service, and forty-five years as the period of its termination; while the age of presumed fitness for the suffrage, which requires no physical superiority certainly, is set at twenty-one years, when still greater strength of body has been attained than at the period when liability to the dangers and hardships of war commences; and there are at least three millions more male voters in our country than of the population liable by law to the performance of military duty. It is still further to be observed, that the right of suffrage continues as long as the mind lasts, while ordinary liability to military service ceases at a period when the physical powers, though still strong, are beginning to wane. The truth is, that there is no legal or natural connection between the right or liability to fight and the right to vote.

The right to fight may be exercised voluntarily or the liability to fight may be enforced by the community whenever there is an invasion of right, and the extent to which the physical forces of society may be called upon in

self-defense or in justifiable revolution is measured not by age or sex, but by necessity, and may go so far as to call into the field old men and women and the last vestige of physical force. It can not be claimed that woman has no right to vote because she is not liable to fight, for she is so liable, and the freest government on the face of the earth has the reserved power under the call of necessity to place her in the forefront of battle itself, and more than this, woman has the right, and often has exercised it, to go there.

If any one could question the existence of this reserved power of society to call the force of woman to the common defense, either in the hospital or the field, it would be woman, who has been deprived of participation in the government and in shaping the public policy which has resulted in dire emergency to the state. But in all times, and under all forms of government and of social existence, woman has given her body and her soul to the common defense.

The qualification of age, then, is imposed for the purpose of securing mental and moral fitness for the suffrage on the part of those who exercise it. It has no relation to the possession of physical powers at all.

All other qualifications imposed upon male citizens, save only that of their sex, as prerequisites to the exercise of suffrage have the same objects in view, and can have no other.

The property qualification is, to my mind, an invasion of natural right, which elevates mere property to an equality with life and personal liberty, and ought never to be imposed upon the suffrage. But, however that may be, its application or removal has no relation to sex, and its only object is to secure the exercise of the suffrage under a stronger sense of obligation and responsibility—a qualification, be it observed, of no consequence save as it influences the mind of the voter in the exercise of his right.

The same is true of the qualifications of sanity, education, and obedience to the laws, which exclude dementia, ignorance, and crime from participation in the sovereignty. Every condition or qualification imposed upon the exercise of the suffrage by the citizen save only sex has for its only object or possible justification the possession of mental and moral fitness, and has no relation to physical power.

The question then arises why is the qualification of masculinity required at all?

The distinction between human beings by reason of sex is a physical distinction. The soul is of no sex. If there be a distinction of soul by reason of the physical difference, or accompanying that physical difference, woman is the superior of man in mental and moral qualities. In proof of this see the report of the minority and all the eulogiums of woman pronounced by those who, like the serpent of old, would flatter her vanity that they may continue to wield her power.

I repeat it, that the soul is of no sex, and that sex is, so far as the possession and exercise of human rights and powers are concerned, but a physical property, in which the female is just as important as the male, and the possessor thereof under just as great need of power in the organization and management of society and the government of society as man; and if there be a difference, she, by reason of her average physical inferiority, is really protected, and ought to be protected, by a superior mental and moral fitness to give direction to the course of society and the policy of the state. If, then, there be a distinction between the souls of human beings resulting from sex, I claim that, by the report of the minority and the universal testimony of all men, woman is better fitted for the exercise of the suffrage than man.

It is claimed by some that the suffrage is an inherent natural right, and by others that it is merely a privilege extended to the individual by society in its discretion. However this may be, practically any extension of the exercise of the suffrage to individuals or classes not now enjoying it must be by concession of those who already possess it, and such extension without revolution will be through the suffrage itself exercised by those who have it under existing forms.

The appeal by those who have it not must be made to those who are asked to part with a portion of their own power, and it is not strange that human nature, which is an essential element in the male sex, should hesitate and delay to yield one-half its power to those whose cause, however strong in reason and justice, lacks that physical force which so largely has been the means by which the masses of men themselves have wrung their own rights from rulers and kings.

It is not strange that when overwhelmed with argument and half won by appeals to his better nature to concede to woman her equal power in the state, and ashamed to blankly refuse that which he finds no reason for longer withholding, man avoids the dilemma by a pretended elevation of his helpmeet to a higher sphere, where, as an angel, she has certain gauzy ethereal resources and superior functions, occupations, and attributes which render the possession of mere earthly every-day powers and privileges non-essential to woman, however mere mortal men themselves may find them indispensable to their own freedom and happiness.

But to the denial of her right to vote, whether that denial be the blunt refusal of the ignorant or the polished evasion of the refined courtier and politician, woman can oppose only her most solemn and perpetual appeal to the reason of man and to the justice of Almighty God. She must continually point out the nature and object of the suffrage and the necessity that she possess it for her own and the public good.

What, then, is the suffrage, and why is it necessary that woman should possess and exercise this function of freemen? I quote briefly from the report of the committee:

The rights for the maintenance of which human governments are constituted are life, liberty, and property. These rights are common to men and women alike, and whatever citizen or subject exists as a member of any body-politic, under any form of government, is entitled to demand from the sovereign power the full protection of these rights.

This right to the protection of rights appertains to the individual, not to the family alone, or to any form of association, whether social or corporate. Probably not more than five-eighths of the men of legal age, qualified to vote, are heads of families, and not more than that proportion of adult women are united with men in the legal merger of married life. It is, therefore, quite incorrect to speak of the state as an aggregate of families duly represented at the ballot-box by their male head. The relation between the government and the individual is direct; all rights are individual rights, all duties are individual duties.

Government in its two highest functions is legislative and judicial. By these powers the sovereignty prescribes the law, and directs its

application to the vindication of rights and the redress of wrongs. Conscience and intelligence are the only forces which enter into the exercise of this highest and primary function of government. The remaining department is the executive or administrative, and in all forms of government—the republican as well as in tyranny—the primary element of administration is force, and even in this department conscience and intelligence are indispensable to its direction.

If now we are to decide who of our sixty millions of human beings are to constitute the citizenship of this Republic and by virtue of their qualifications to be the law-making power, by what tests shall the selection be determined?

The suffrage which is the sovereignty is this great primary law-making power. It is not the executive power proper at all. It is not founded upon force. Only that degree of physical strength which is essential to a sound body—the home of the healthy mental and moral constitution—the sound soul in the sound body is required in the performance of the function of primary legislation. Never in the history of this or any other genuine republic has the law-making power, whether in general elections or in the framing of laws in legislative assemblies, been vested in individuals who have exercised it by reason of their physical powers. On the contrary, the physically weak have never for that reason been deprived of the suffrage nor of the privilege of service in the public councils so long as they possessed the necessary powers of locomotion and expression, of conscience and intelligence, which are common to all. The aged and the physically weak have, as a rule, by reason of superior wisdom and moral sense, far more than made good any bodily inferiority by which they have differed from the more robust members of the community in the discussion and decisions of the ballot-box and in councils of the state.

The executive power of itself is a mere physical instrumentality—an animal quality—and it is confided from necessity to those individuals who possess that quality, but always with danger, except so far as wisdom and virtue control its exercise. And it is obvious that the greater the mass of higher and spiritual forces, whether found in those to whom the execution of the law is assigned or in the great mass by

whom the suffrage is exercised, and who direct the execution of the law, the greater will be the safety and the surer will be the happiness of the state.

It is too late to question the intellectual and moral capacity of woman to understand great political issues (which are always primarily questions of conscience—questions of the intelligent application of the principles of right and of wrong in public and private affairs) and properly decide them at the polls. Indeed, so far as your committee are aware, the pretense is no longer advanced that woman should not vote by reason of her mental or moral unfitness to perform this legislative function; but the suffrage is denied to her because she can not hang criminals, suppress mobs, nor handle the enginery of war. We have already seen the untenable nature of this assumption, because those who make it bestow the suffrage upon very large classes of men who, however well qualified they may be to vote, are physically unable to perform any of the duties which appertain to the execution of the law and the defense of the state. Scarcely a Senator on this floor is liable by law to perform a military or other administrative duty, yet the rule so many set up against the right of women to vote would disfranchise nearly this whole body.

But it unnecessary to grant that woman can not fight. History is full of examples of her heroism in danger, of her endurance and fortitude in trial, and of her indispensable and supreme service in hospital and field; and in the handling of the deft and horrible machinery and infernal agencies which science and art have prepared and are preparing for human destruction in future wars, woman may perform her whole part in the common assault or the common defense. It is hardly worth while to consider this trivial objection that she is incompetent for purposes of national murder or of bloody self-defense as the basis of the denial of a great fundamental right, when we consider that if that right were given to her she would by its exercise almost certainly abolish this great crime of the nations, which has always inflicted upon her the chief burden of woe.

It will be admitted that the act of voting is operative in government only as a means of deciding upon the adoption or rejection of measures or of the

selection of officers to enact, administer, and execute the laws.

In the discharge of these functions it also must be admitted that intelligence and conscience are the faculties requisite to secure their proper performance.

In this day when woman has demonstrated that she is fully the intellectual equal of man in the profound as well as in the politer walks of learning—in art, science, literature, and, considering her opportunities, that she is not his inferior in any of the professions or in the great mass of useful occupations, while she is, in fact, becoming the chief educator of the race and is the acknowledged support of the great ministrations of charity and religion; when in such great organizations as the suffrage associations, missionary societies, the National Woman's Christian Temperance Union, and even upon the still larger scale of international action, she has exhibited her power by mere moral influences and the inspiration of great purposes, without the aid of legal penalties or even of tangible inconveniences, to mold and direct the discordant thought and action of thousands and millions of people scattered over separate States, and sometimes even living in countries hostile to each other to the accomplishment of great earthly or heavenly ends, it is unreasonable to deny to woman the suffrage in political affairs upon the false allegation that she is wanting in the very qualities most indispensable and requisite for the proper exercise of this great right.

The advocates of universal male suffrage have long since ceased to deny the ballot to woman upon the ground that she is unfit or incompetent to exercise it.

There is a class of high-stepping objectors, like Ouida, who decry the sound judgment and moral excellence of woman as compared with man, but in the same breath these people deny the suffrage to the masses of men and advocate "the just supremacy of the fittest," so that no time need be wasted in refutation of those malignant and libelous aspersions upon our mothers, sisters, and wives, which, when carried to logical conclusions by their own authors, deny the fundamental principles of liberty to man and woman alike, and reassert in its baldest form the dogma that "the existing system of electoral power all over the world is absurd, and will remain so because in no nation is there the courage, perhaps in no nation is there the intellectual

power, capable of putting forward and sustaining the logical doctrine of the just supremacy of the fittest."

In fact the minority of the committee, and this is true of all honest, intelligent men who believe in the republican system of government at all, concede that woman has the capacity and moral fitness requisite to exercise the ballot. That class of women represented by the author of "Letters from a Chimney Corner," whose work has been adopted by the minority as the basis of their report, speaking through the "fair authoress," say that "if women were to be considered in their highest and final estate as merely individual beings, and if the right to the ballot were to be conceded to man as an individual, it might perhaps be logically argued that women also possessed the inherent right to vote." Let me read from the views of the minority on page 1:

The undersigned minority of the Committee of the Senate on Woman Suffrage, to whom was referred Senate Resolution No. 5, proposing an amendment to the Constitution of the United States to grant the right to vote to the women of the United States, beg leave to submit the following minority report, consisting of extracts from a little volume entitled, "Letters from a Chimney Corner," written by a highly cultivated lady, Mrs. —, of Chicago, This gifted lady has discussed the question with so much clearness and force that we make no apology to the Senate for substituting quotations from her book in place of anything we might produce. We quote first from chapter 3, which is entitled "The value of suffrage to women much overestimated."

The fair authoress says:

"If women were to be considered in their highest and final estate as merely individual beings, and if the right to the ballot were to be conceded to man as an individual, it might perhaps be logically argued that women also possessed the inherent right to vote. But from the oldest times, and through all the history of the race, has run the glimmer of an idea, more or less distinguishable in different ages and under different circumstances, that neither man nor woman is, as such, individual; that neither being is of itself a whole, a unit, but each

requires to be supplemented by the other before its true structural integrity can be achieved. Of this idea, the science of botany furnishes the most perfect illustration. The stamens on the one hand, and the ovary and pistil on the other, may indeed reside in one blossom, which then exists in a married or reproductive state. But equally well, the stamens or male organs may reside in one plant, and the ovary and pistil or female organs may reside in another. In that case, the two plants are required to make one structurally complete organization. Each is but half a plant, an incomplete individual by itself. The life principle of each must be united to that of the other; the twain must be indeed one flesh before the organization is either structurally or functionally complete."

This is a concession of the whole argument, unless the highest and final estate of woman is to be something else than a mere individual. It would also follow that if such be her destiny—that is, to be something else than a mere "individual being"—and if for that reason she is to be denied the suffrage, then man equally should be denied the ballot if his highest and final estate is to be something else than a "mere individual."

Thereupon the minority of the committee, through the "Fair Authoress," proceed to show that both man and woman are designed for a higher final estate—to wit, that of matrimony. It seems to be conceded that man is just as much fitted for matrimony as woman herself, and thereupon the whole subject is illuminated with certain botanical lore about stamens and pistils, which, however relevant to matrimony, does not seem to me to prove that therefore woman should not vote unless at the same time it proves that man should not vote either. And certainly it can not apply to those women any more than to those men whose highest and final estate never is merged in the family relation at all, and even "Ouida" concedes "that the project ... to give votes only to unmarried women may be dismissed without discussion, as it would be found to be wholly untenable."

There is no escape from it. The discussion has passed so far that among intelligent people who believe in the republican form—that is, free government—all mature men and women have under the same circumstance and conditions the same rights to defend, the same grievances to redress, and, therefore, the same necessity for the exercise of this great

fundamental right, of all human beings in free society. For the right to vote is the great primitive right. It is the right in which all freedom originates and culminates. It is the right from which all others spring, in which they merge, and without which they fall whenever assailed.

This right makes, and is all the difference between government by and with the consent of the governed and government without and against the consent of the governed; and that is the difference between freedom and slavery. If the right to vote be not that difference, what is? No, sir. If either sex as a class can dispense with the right to vote, then take it from the strong, and no longer rob the weak of their defense for the benefit of the strong.

But it is impossible to conceive of the suffrage as a right dependent at all upon such an irrelevant condition as sex. It is an individual, a personal right. It may be withheld by force; but if withheld by reason of sex it is a moral robbery.

But it is said that the duties of maternity disqualify for the performance of the act of voting. It can not be, and I think is not claimed by any one, that the mother who otherwise would be fit to vote is rendered mentally or morally less fit to exercise this high function in the state because of motherhood. On the contrary, if any woman has a motive more than another person, man or woman, to secure the enactment and enforcement of good laws, it is the mother, who, beside her own life, person, and property, to the protection of which the ballot is as essential as to the same rights possessed by man, has her little contingent of immortal beings to conduct safely to the portals of active life through all the snares and pitfalls woven around them by bad men and bad laws which bad men have made, or good laws which bad men, unhindered by the good, have defied or have prostituted, and rightly to prepare, them for the discharge of all the duties of their day and generation, including the exercise of the very right denied to their mother.

Certainly, if but for motherhood she should vote, then ten thousand times more necessary is it that the mother should be guarded and armed with this great social and political power for the sake of all men and women who are yet to be. But it is said that she has not the time. Let us see. By the best deductions I can make from the census and from other sources there are

15,000,000 women of voting age in this country at the present time, of whom not more than 10,000,000 are married and not more than 7,500,000 are still liable to the duties of maternity, for it will be remembered that a large proportion of the mothers of our country at any given time are below the voting age, while of those who are above it another large proportion have passed beyond the point of this objection. Not more than one-half the female population of voting age are liable to this objection. Then why disfranchise the 7,500,000, the other half, as to whom your objection, even if valid as to any, does not apply at all; and these, too, as a class the most mature and therefore the best qualified to vote of any of their sex? But how much is there of this objection of want of time or physical strength to vote, in its application to women who are bearing and training the coming millions? The families of the country average five persons in number. If we assume that this gives an average of three children to every pair, which is probably the full number, or if we assume that every married mother, after she becomes of voting age, bears three children, which is certainly the full allowance, and that twenty-four years are consumed in doing it, there is one child born every eight years whose coming is to interfere with the exercise of a duty of privilege which, in most States, and in all the most important elections, occurs only one day in two years.

That same mother will attend church at least forty times yearly on the average from her cradle to her grave, beside an infinity of other social, religious, and industrial obligations which she performs and assumes to perform because she is a married woman and a mother rather than for any other reason whatever. Yet it is proposed to deprive women—yes, all women alike—of an inestimable privilege and the chief power which can be exercised by any free individual in the state for the reason that on any given day of election not more than one woman in twenty of voting age will probably not be able to reach the polls. It does seem probable that on these interesting occasions if the husband and wife disagree in politics they could arrange a pair, and the probability is, that arrangement failing, one could be consummated with some other lady in like fortunate circumstances, of opposite political opinions. More men are kept from the polls by drunkenness, or, being at the polls, vote under the influence of strong drink, to the reproach and destruction of our free institutions, and who, if woman could and did vote, would cast the ballot of sobriety, good order, and reform

under her holy influences, than all those who would be kept from any given election by the necessary engagements of mothers at home.

When one thinks of the innumerable and trifling causes which keep many of the best of men and strongest opponents of woman suffrage from the polls upon important occasions it is difficult to be tolerant of the objection that woman by reason of motherhood has no time to vote. Why, sir, the greater exposure of man to the casualties of life actually disables him in such way as to make it physically impossible for him to exercise the franchise more frequently than is the case with women, including mothers and all. And if this liability to lose the opportunity to exercise the right once or possibly twice in a lifetime is a reason that women should not be allowed to vote at all, why should men not be disfranchised also by the same rule?

But it is urged that woman does not desire the privilege. If the right exist at all it is an individual right, and not one which belongs to a class or to the sex as such. Yet men tell us that they will vote the suffrage to women whenever the majority of women desire it. Are, then, our rights the property of the majority of a disfranchised class to which we may chance to belong? What would we say if it were seriously proposed to recall the suffrage from all colored or from all white men because a majority of either class should decline or for any cause fail to vote? I know that it is said that the suffrage is a privilege to be extended by those who have it to those who have it not. But the matter of right, of moral right, to the franchise does not depend upon the indifference of those who possess it or of those who do not possess it to the desire of those women who desire to enjoy their right and to discharge their duty. If one or many choose not to claim their right it is no argument for depriving me of mine or one woman of hers. There are many reasons why some women declare themselves opposed to the extension of suffrage to their sex. Some well-fed and pampered, without serious experiences in life, are incapable of comprehending the subject at all. Vast numbers, who secretly and earnestly desire it from the long habit of deference to the wishes of the other sex, upon whom they are so entirely dependent while disfranchised, and knowing the hostility of their "protectors" to the agitation of the subject, conceal their real sentiments, and the "lord" of the family referring this question to his wife, who has heard him sneer or worse than sneer at suffragists for half a lifetime, ought

not to expect an answer which she knows will subject her to his censure and ridicule or even his unexpressed disapprobation.

It is like the old appeal of the master to his slave to know if he would be free. Full well did the wise and wary slave know that happiness depended upon declared contentment with his lot. But all the same the world does move. Colored men are free. Colored men vote. Women will vote. A little further on I shall revert to the evidence of a general and growing desire on her part and on the part of just and intelligent men that the suffrage be extended to women.

But we are told that husband and wife will disagree and thus the suffrage will destroy the family and ruin society. If a married couple will quarrel at all, they will find the occasion, and it were fortunate indeed if their contention might concern important affairs. There is no peace in the family save where love is, and the same spirit which enables the husband and wife to enforce the toleration act between themselves in religious matters will keep the peace between them in political discussions. At all events, this argument is unworthy of notice at all unless we are to push it to its logical conclusion, and, for the sake of peace in the family, to prohibit woman absolutely the exercise of freedom of thought and speech. Men live with their countrymen and disagree with them in politics, religion, and ten thousand of the affairs of life, as often the trifling as the important. What harm, then, if woman be allowed her thought and vote upon the tariff, education, temperance, peace and war, and whatsoever else the suffrage decides?

But we are told that no government, of which we have authentic history, ever gave to woman a share in the sovereignty.

This is not true, for the annals of monarchies and despotisms have been rendered illustrious by queens of surpassing brilliance and power. But even if it be true that no republic ever enfranchised woman with the ballot—even so until within one hundred years universal or even general suffrage was unknown among men.

Has the millennium yet dawned? Is all progress at an end? If that which is should therefore remain, why abolish the slavery of men?

But we are informed that woman does not vote when she has the opportunity. Wherever she has the unrestricted right she exercises it. The records of Wyoming and Washington demonstrate the fact.

And in these Territories, too, as well as wherever else she has exercised the suffrage, she has elevated man to her own level, and has made the voting precinct as respectable and decorous as the lecture-room or the assemblies of the devout. All the experience there is refutes the apprehension of those who fear that woman will either neglect the discharge of her great duty, when allowed its fair and equal exercise, or that the rude and baser sort will overwhelm and banish the noble and refined.

But to my mind it seems like trifling with a great subject to dwell upon topics like this. It can only be justified by the continual iteration of the objection by the opponents of woman suffrage, who in the lack of substantial grounds whereupon to base their opposition to the exercise of a great right by one-half the community declare that there is no time in which woman can vote.

I will now read an extract from the report of the majority of the committee, showing to a certain extent the degree of consequence which this movement has assumed, its extent throughout our country, and something of its duration. I have not the latest data, for since this report was compiled there has been action in several States, and a great deal of popular discussion and a vast amount of demonstration from the action of popular assemblies.

The committee say:

This movement for woman suffrage has developed during the last half century into one of great strength. The first petition was presented to the Legislature of New York in 1835. It was repeated in 1846, and since that time the petition has been urged upon nearly every Legislature in the Northern States. Five States have voted upon the question of amending their constitutions by striking out the word "male" from the suffrage clause—Kansas in 1867, Michigan in 1874, Colorado in 1877, Nebraska in 1882, and Oregon in 1884.

The ratio of the popular vote in each case was about one-third for the amendment and two-thirds against it. Three Territories have or have

had full suffrage for women. In two, Wyoming since 1869 and Washington since 1883, the experiment (!) is an unqualified success. In Utah Miss Anthony keenly and justly observes that suffrage is as much of a success for the Mormon women as for the men.

In eleven States school suffrage for women exists. In Kansas, from her admission as a State. In Kentucky and Michigan fully as long a time. School suffrage for women also exists in Colorado, Minnesota, New Hampshire, Massachusetts, Vermont, New York, Nebraska, and Oregon.

In all these States, except Minnesota, school suffrage was extended to women by the respective Legislatures, and in Minnesota by the popular vote, in November, 1876. Not only these eleven States, but in nearly all the other Northern and Western States women are elected to the offices of county and city superintendent of public schools and as members of school boards. In Louisiana the constitution of 1879 makes women eligible to school offices.

It may also be observed as indicating a rising and controlling public sentiment in recognition of the right and capacity of woman for public affairs that she is eligible to such offices as that of county clerk, register of deeds, and the like in many and perhaps in all the States. Kansas and Iowa elected several women to these positions in the election of November, 1885, while President Grant alone appointed more than five thousand women to the office of postmaster; and although many women have been appointed in the Departments and to pension agencies and like important employments and trusts, so far as your committee are aware no charge of incompetency or of malfeasance in office has ever yet been sustained against a woman.

It may be further stated in this connection that nearly every Northern State has had before it from time to time since 1870 a bill for the submission of the question of woman suffrage to the popular vote. In some instances such a resolution has been passed at one session and failed to be ratified at another by from one to three votes; thus Iowa passed it in 1870, killed it in 1872; passed it in 1874, failed to do so in 1876; passed it in 1878, and failed in 1880; passed it again in 1882,

and defeated it in 1884; four times over and over, and this winter these heroic and indomitable women are trying it in Iowa again.

If men were to make such a struggle for their rights it would be considered a fine thing, and there would be books and even poetry written about it.

In New York, since 1880, the women have urged this great measure before the Legislature each year. There it takes the form of a bill to prohibit the disfranchisement of women. This bill has several times come within five votes of passing the assembly.

In many States well sustained efforts for municipal suffrage have been made, and, as if in rebuke to the conservatism, or worse, of this great Republic, this right of municipal suffrage is already enjoyed in the province of Ontario, Canada, and throughout the island of Great Britain by unmarried women to the same extent as by men, there being the same property qualification required of each.

The movement for the amendment of the National Constitution began by petitioning Congress December, 1865, and since 1869 there have been consecutive applications to every Congress praying for the submission to the States of a proposition similar to the joint resolution herewith reported to the Senate.

The petitions have come from all parts of the country; more especially from the Northern and Western States, although there is an extensive and increasing desire for the suffrage existing among the women in the Southern States, as we are informed by those whose interest in the subject makes them familiar with the real state of feeling in that part of our country. It is impossible to know just what proportion of the people—men and women—have expressed their desire by petition to the National Legislature during the last twenty years, but we are informed by Miss Anthony that in the year 1871 Senator Sumner collected the petitions from the files of the Senate and House of Representatives, and that there were then an immense number. A far greater number have been presented since that time, and the same lady is our authority for the estimate that in all more than two hundred thousand petitions, by select and representative men and women, have been poured upon

Congress in behalf of this prayer of woman to be free. Who is so interested in the framing of the law as woman, whose only defense is the law? There never was a stronger exhibition of popular demand by American citizens to be heard in the court of the people for the vindication of a fundamental right.

Since the submission of the report the attempt has been made to secure action in several of the State Legislatures. One which came very near being successful was made in the State of Vermont. The suffrage was extended, if I am not incorrectly informed, so far as the action of the house of representatives of that State could give it, and an effort being made to propose some restriction and condition upon the suffrage it was defeated, when, as I am told by the friends of the movement, if it could have reached a vote in the Vermont Legislature on the naked proposition of suffrage to women as suffrage is extended to men, they felt the very greatest confidence that they would have been able to secure favorable action by the Legislature of that State.

Miss Anthony informs me since she came here at the present session (and I am sorry I have not had the opportunity of extended conference with her) that in the State of Kansas, where she spent several weeks in the discussion of the subject before vast masses of people, the largest halls, rinks, and places for the accommodation of popular assemblages in the State were crowded to overflowing to listen to her address. In every instance she has taken a vote of those vast audiences as to whether they were in favor of woman suffrage or against it, and in no single instance has there been a solitary vote against the extension of the right, but affirmative and universal action of those great assemblies demanding that it be extended to women. And like demonstrations of popular approval are developing in all parts of the country, perhaps not to so marked an extent as these which I have just stated; but it is a growing feeling in this country that women should have this right, and above all woman and man demanding that she should have the opportunity to try her case before the American people, that this right of petition should be heeded by Congress and the joint resolution for the submission of the matter for discussion by the States should be passed by the necessary two-thirds vote.

It is sometimes, too, urged against this movement for the submission of a resolution for a national constitutional amendment that women should go to the States and fight it out there. But we did not send the colored man to the States. No other amendment touching the general national interest is left to be fought out by individual action in the individual States. Under the terms of the Constitution itself the people of the United States, having some universal common interest affected by law or by the want of law, are invited to come to this body and try here their question of right, or at all events through the agency of Congress to submit that proposition to the people at large in order that in the general national forum it may receive discussion, and by the action of three-fourths of the States, if favorable, their idea may be incorporated in the fundamental law.

I will not detain the Senate further in the discussion of this subject.

It should be borne in mind that the proposition is to submit to men the question whether woman shall vote. The jury will certainly not be prejudiced in her favor as against the public good. There can be no danger of a verdict in her favor contrary to the evidence in the case.

We ask only for her an opportunity to bring her suit in the great court for the amendment of fundamental law. It is impossible for any right mind to escape the impression of solemn responsibility which attaches to our decision. Ridicule and wit of whatever quality are here as much out of place as in the debates upon the Declaration of Independence. We are affirming or denying the right of petition which by all law belongs as much to women as to men. Millions of women and thousands of men in our own country demand that she at least have the opportunity to be heard. Hear, even if you strike.

The lamented Anthony, so long the object of reverence, affection, and pride in this body, among the last acts of his public life, in signing the favorable report of this resolution, made the following declaration:

The Constitution is wisely conservative in the provision of its own amendment. It is eminently proper that whenever a large number of the people have indicated a desire for an amendment the judgment of the amending power should be consulted. In view of the extensive agitation of the question of woman suffrage, and the numerous and

respectable petitions that have been presented to Congress in its support, I unite with the committee in recommending that the proposed amendment be submitted to the States.

H.B. ANTHONY.

Profoundly convinced of the justice of woman's demand for the suffrage, and that the proper method of securing the right is by an amendment of the national Constitution, I urge the adoption of the joint resolution upon the still broader ground so clearly and calmly stated by the great Senator whose words I have just read. I appeal to you, Senators, to grant this petition of woman that she may be heard for her claim of right. How could you reject that petition, even were there but one faint voice beseeching your ear? How can you deny the demand of millions who believe in suffrage for women, and who can not be forever silenced, for they give voice to the innate cry of the human heart that justice be done not alone to man, but to that half of this nation which now is free only by the grace of the other, and that by our action to-day we indorse, if we do not initiate, a movement which, in the development of our race, shall guarantee liberty to all without distinction of sex, even as our glorious Constitution already grants the suffrage to every citizen without distinction of color or race.

Further consideration of the resolution postponed until January 25, 1887, when it was resumed, as follows:

Tuesday, January 25, 1887.

WOMAN SUFFRAGE.

Mr. BLAIR. I now move that the Senate proceed to consider the joint resolution (S.R. 5) proposing an amendment to the Constitution of the United States extending the right of suffrage to women.

The motion was agreed to; and the Senate, as in Committee of the Whole, proceeded to consider the joint resolution.

The PRESIDING OFFICER. The joint resolution will be read.

The Chief Clerk read the joint resolution, as follows:

Resolved (two-thirds of each House concurring therein), That the following article be proposed to the Legislatures of the several States as an amendment to the Constitution of the United States: which, when ratified by three-fourths of the said Legislatures, shall be valid as part of said Constitution, namely:

ARTICLE—.

Section 1. The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of sex.

Sec. 2. The Congress shall have power, by appropriate legislation, to enforce the provisions of this article.

Mr. BROWN. Mr. President, the joint resolution introduced by my friend, the Senator from New Hampshire [Mr. BLAIR], proposing an amendment to the Constitution of the United States, conferring the right to vote upon the women of the United States, is one of paramount importance, as it involves great questions far reaching in their tendency, which seriously affect the very pillars of our social fabric, which involve the peace and harmony of society, the unity of the family, and much of the future success of our Government. The question should therefore be met fairly and discussed with firmness, but with moderation and forbearance.

No one contributes anything valuable to the debate by the use of harsh terms, or by impugning motives, or by disparaging the arguments of the opposition. Where the prosperity of the race and the peace of society are involved, we should, on both sides, meet fairly the arguments of our respective opponents.

This question has been discussed a great deal outside of Congress, sometimes in bad temper and sometimes illogically and unprofitably, but the advocates of the proposed amendment and the opponents of it have each put forth, probably in their strongest form, the reasons and arguments which are considered by each as conclusive in favor of the cause they advocate. I do not expect to contribute much that is new on a subject that has been so often and so ably discussed; but what I have to say will be in the main a reproduction in substance of what I and others have already said on the

subject, and which I think important enough to be placed upon the record in the argument of the case.

In connection with my friend, the honorable Senator from Missouri [Mr. COCKRELL], I have in a report set forth substantially the reasons and arguments which to my mind establish the fact that the proposed legislation would be injudicious and unwise, and I shall not hesitate to reiterate here such portions of what was then said as seem to me to be important.

I believe that the Creator intended that the sphere of the males and females of our race should be different, and that their duties and obligations, while they differ materially, are equally important and equally honorable, and that each sex is equally well qualified by natural endowments for the discharge of the important duties which pertain to each, and that each sex is equally competent to discharge those duties.

We find an abundance of evidence, both in the works of nature and in the Divine revelation, to establish the fact that the family properly regulated is the foundation and pillar of society, and is the most important of any other human institution.

In the Divine economy it is provided that the man shall be the head of the family, and shall take upon himself the solemn obligation of providing for and protecting the family.

Man, by reason of his physical strength, and his other endowments and faculties, is qualified for the discharge of those duties that require strength and ability to combat with the sterner realities and difficulties of life. The different classes of outdoor labor which require physical strength and endurance are by nature assigned to man, the head of the family, as part of his task. He discharges such labors as require greater physical endurance and strength than the female sex are usually found to possess.

It is not only his duty to provide for and protect the family, but as a member of the community it is also his duty to discharge the laborious and responsible obligations which the family owe to the State, and which obligations must be discharged by the head of the family, until the male members of the family have grown up to manhood and are able to aid in the

discharge of those obligations, when it becomes their duty each in his turn to take charge of and rear a family, for which he is responsible.

Among other duties which the head of the family owes to the State, is military duty in time of war, which he, when able-bodied, is able to discharge, and which the female members of the family are unable to discharge.

He is also under obligation to discharge jury duty, and by himself or his representatives to perform his part of the labor necessary to construct and keep in order roads, bridges, streets, and all grades of public highways. And in this progressive age upon the male sex is devolved the duty of constructing and operating our railroads, and the engines and other rolling-stock with which they are operated; of building, equipping, and launching, shipping and other water craft of every character necessary for the transportation of passengers and freight upon our rivers, our lakes, and upon the high seas.

The labor in our fields, sowing, cultivating, and reaping crops must be discharged mainly by the male sex, as the female sex, for want of physical strength, are generally unable to discharge these duties. As it is the duty of the male sex to perform the obligations to the State, to society, and to the family, already mentioned, with numerous others that might be enumerated, it is also their duty to aid in the government of the State, which is simply a great aggregation of families. Society can not be preserved nor can the people be prosperous without good government. The government of our country is a government of the people, and it becomes necessary that the class of people upon whom the responsibility rests should assemble together and consider and discuss the great questions of governmental policy which from time to time are presented for their decision.

This often requires the assembling of caucuses in the night time, as well as public assemblages in the daytime. It is a laborious task, for which the male sex is infinitely better fitted than the female sex; and after proper consideration and discussion of the measures that may divide the country from time to time, the duty devolves upon those who are responsible for the government, at times and places to be fixed by law, to meet and by ballot to

decide the great questions of government upon which the prosperity of the country depends.

These are some of the active and sterner duties of life to which the male sex is by nature better fitted than the female sex. If in carrying out the policy of the State on great measures adjudged vital such policy should lead to war, either foreign or domestic, it would seem to follow very naturally that those who have been responsible for the management of the State should be the parties to take the hazards and hardships of the struggle.

Here, again, man is better fitted by nature for the discharge of the duty—woman is unfit for it. So much for some of the duties imposed upon the male sex, for the discharge of which the Creator has endowed them with proper strength and faculties.

On the other hand, the Creator has assigned to woman very laborious and responsible duties, by no means less important than those imposed upon the male sex, though entirely different in their character. In the family she is a queen. She alone is fitted for the discharge of the sacred trust of wife and the endearing relation of mother.

While the man is contending with the sterner duties of life, the whole time of the noble, affectionate, and true woman is required in the discharge of the delicate and difficult duties assigned her in the family circle, in her church relations, and in the society where her lot is cast. When the husband returns home weary and worn in the discharge of the difficult and laborious task assigned him, he finds in the good wife solace and consolation, which is nowhere else afforded. If he is despondent and distressed, she cheers his heart with words of kindness; if he is sick or languishing, she soothes, comforts, and ministers to him as no one but an affectionate wife can do. If his burdens are onerous, she divides their weight by the exercise of her love and her sympathy.

But a still more important duty devolves upon the mother. After having brought into existence the offspring of the nuptial union, the children are dependent upon the mother as they are not upon any other human being. The trust is a most sacred, most responsible, and most important one. To watch over them in their infancy, and as the mind begins to expand to train,

direct, and educate it in the paths of virtue and usefulness is the high trust assigned to the mother. She trains the twig as the tree should be inclined.

She molds the character. She educates the heart as well as the intellect, and she prepares the future man, now the boy, for honor or dishonor. Upon the manner in which she discharges her duty depends the fact whether he shall in future be a useful citizen or a burden to society. She inculcates lessons of patriotism, manliness, religion, and virtue, fitting the man by reason of his training to be an ornament to society, or dooming him by her neglect to a life of dishonor and shame. Society acts unwisely when it imposes upon her the duties that by common consent have always been assigned to the stronger and sterner sex, and the discharge of which causes her to neglect those sacred and all important duties to her children and to the society of which they are members.

In the church, by her piety, her charity, and her Christian purity, she not only aids society by a proper training of her own children, but the children of others, whom she encourages to come to the sacred altar, are taught to walk in the paths of rectitude, honor, and religion. In the Sunday-school room the good woman is a princess, and she exerts an influence which purifies and ennobles society, training the young in the truths of religion, making the Sunday-school the nursery of the church, and elevating society to the higher planes of pure religion, virtue, and patriotism. In the sick room and among the humble, the poor, and the suffering, the good woman, like an angel of light, cheers the hearts and revives the hopes of the poor, the suffering, and the despondent.

It would be a vain attempt to undertake to enumerate the refining, endearing, and ennobling influences exercised by the true woman in her relations to the family and to society when she occupies the sphere assigned to her by the laws of nature and the Divine inspiration, which are our surest guide for the present and the future life. But how can woman be expected to meet these heavy responsibilities, and to discharge these delicate and most important duties of wife, Christian, teacher, minister of mercy, friend of the suffering, and consoler of the despondent and needy, if we impose upon her the grosser, rougher, and harsher duties which nature has assigned to the male sex?

If the wife and the mother is required to leave the sacred precincts of home, and to attempt to do military duty when the state is in peril; or if she is to be required to leave her home from day to day in attendance upon the court as a juror, and to be shut up in the jury room from night to night with men who are strangers while a question of life or property is being discussed; if she is to attend political meetings, take part in political discussions, and mingle with the male sex at political gatherings; if she is to become an active politician; if she is to attend political caucuses at late hours of the night; if she is to take part in all the unsavory work that may be deemed necessary for the triumph of her party; and if on election day she is to leave her home and go upon the streets electioneering for votes for the candidates who receive her support, and mingling among the crowds of men who gather round the polls, she is to press her way through them to the precinct and deposit her ballot; if she is to take part in the corporate struggles of the city or town in which she resides, attend to the duties of his honor, the mayor, the councilman, or of policeman, to say nothing of the many other like obligations which are disagreeable even to the male sex, how is she, with all these heavy duties of citizen, politician, and officeholder resting upon her shoulders, to attend to the more sacred, delicate, and refining trust to which we have already referred, and for which she is peculiarly fitted by nature? If she is to discharge the duties last mentioned, how is she, in connection with them, to discharge the more refining, elevating, and ennobling duties of wife, mother, Christian, and friend, which are found in the sphere where nature has placed her? Who is to care for and train the children while she is absent in the discharge of these masculine duties?

If it were proper to reverse the order of nature and assign woman to the sterner duties devolved upon the male sex, and to attempt to assign man to the more refining, delicate, and ennobling duties of the woman, man would be found entirely incompetent to the discharge of the obligations which nature has devolved upon the gentler sex, and society must be greatly injured by the attempted change. But if we are told that the object of this movement is not to reverse this order of nature, but only to devolve upon the gentler sex a portion of the more rigorous duties imposed by nature upon the stronger sex, we reply that society must be injured, as the woman would not be able to discharge those duties so well, by reason of her want of physical strength, as the male, upon whom they are devolved, and to the

extent that the duties are to be divided, the male would be infinitely less competent to discharge the delicate and sacred trusts which nature has assigned to the female.

But it has been said that the present law is unjust to woman; that she is often required to pay tax on the property she holds without being permitted to take part in framing or administering the laws by which her property is governed, and that she is taxed without representation. That is a great mistake.

It may be very doubtful whether the male or female sex in the present state of things has more influence in the administration of the affairs of the Government and the enactment of the laws by which we are governed.

While the woman does not discharge military duty, nor does she attend courts and serve on juries, nor does she labor on the public streets, bridges, or highways, nor does she engage actively and publicly in the discussion of political affairs, nor does she enter the crowded precincts of the ballot-box to deposit her suffrage, still the intelligent, cultivated, noble woman is a power behind the throne. All her influence is in favor of morality, justice, and fair dealing, all her efforts and her counsel are in favor of good government, wise and wholesome regulations, and a faithful administration of the laws. Such a woman, by her gentleness, kindness, and Christian bearing, impresses her views and her counsels upon her father, her husband, her brothers, her sons, and her other male friends who imperceptibly yield to her influence many times without even being conscious of it. She rules not with a rod of iron, but with the queenly scepter; she binds not with hooks of steel but with silken cords; she governs not by physical efforts, but by moral suasion and feminine purity and delicacy. Her dominion is one of love, not of arbitrary power.

We are satisfied, therefore, that the pure, cultivated, and pious ladies of this country now exercise a very powerful, but quiet, imperceptible influence in popular affairs, much greater than they can ever again exercise if female suffrage should be enacted and they should be compelled actively to take part in the affairs of state and the corruptions of party politics.

It would be a gratification, and we are always glad to see the ladies gratified, to many who have espoused the cause of woman suffrage if they

could take active part in political affairs, and go to the polls and cast their votes alongside the male sex; but while this would be a gratification to a large number of very worthy and excellent ladies who take a different view of the question from that which we entertain, we feel that it would be a great cruelty to a much larger number of the cultivated, refined, delicate, and lovely women of this country who seek no such distinction, who would enjoy no such privilege, who would with woman-like delicacy shrink from the discharge of any such obligation, and who would sincerely regret that, what they consider the folly of the state, had imposed upon them any such unpleasant duties.

But should female suffrage be once established it would become an imperative necessity that the very large class, indeed much the largest class, of the women of this country of the character last described should yield, contrary to their inclinations and wishes, to the necessity which would compel them to engage in political strife. We apprehend no one who has properly considered this question will doubt if female suffrage should be established that the more ignorant and less refined portions of the female population of this country, to say nothing of the baser class of females, laying aside feminine delicacy and disregarding the sacred duties devolving upon them, to which we have already referred, would rush to the polls and take pleasure in the crowded association which the situation would compel, of the two sexes in political meetings, and at the ballot-box.

If all the baser and more ignorant portion of the female sex crowd to the polls and deposit their suffrage this compels the very large class of intelligent, virtuous, and refined females, including wives and mothers, who have much more important duties to perform, to leave their sacred labors at home, relinquishing for a time the God-given important trust which has been placed in their hands, to go contrary to their wishes to the polls and vote, to counteract the suffrage of the less worthy class of our female population. If they fail to do this the best interests of the country must suffer by a preponderance of ignorance and vice at the polls.

It is now a problem which perplexes the brain of the ablest statesmen to determine how we will best preserve our republican system as against the demoralizing influence of the large class of our present citizens and voters

who by reason of their illiteracy are unable to read or write the ballot they cast.

Certainly no statesman who has carefully observed the situation would desire to add very largely to this burden of ignorance. But who does not apprehend the fact if universal female suffrage should be established that we will, especially in the Southern States, add a very large number to the voting population whose ignorance utterly disqualifies them for discharging the trust. If our colored population who were so recently slaves that even the males who are voters have had but little opportunity to educate themselves or to be educated, whose ignorance is now exciting the liveliest interest of our statesmen, are causes of serious apprehension, what is to be said in favor of adding to the voting population all the females of that race, who, on account of the situation in which they have been placed, have had much less opportunity to be educated than even the males of their own race.

We do not say it is their fault that they are not educated, but the fact is undeniable that they are grossly ignorant, with very few exceptions, and probably not one in a hundred of them could read and write the ballot that they would be authorized to cast. What says the statesman to the propriety of adding this immense mass of ignorance to the voting population of the Union in its present condition?

It may be said that their votes could be offset by the ballots of the educated and refined ladies of the white race in the same section; but who does not know that the ignorant female voters would be at the polls *en masse*, while the refined and educated, shrinking from public contact on such occasions, would remain at home and attend to their domestic and other important duties, leaving the country too often to the control of those who could afford under the circumstances to take part in the strifes of politics, and to come in contact with the unpleasant surroundings before they could reach the polls. Are we ready to expose the country to the demoralization, and our institutions to the strain, which would be placed upon them for the gratification of a minority of the virtuous and good of our female population at the expense of the mortification of a very large majority of the same sex?

It has been frequently urged with great earnestness by those who advocate woman suffrage that the ballot is necessary to the women to enable them to protect themselves in securing occupations, and to enable them to realize the same compensation for the like labor which is received by men. This argument is plausible, but upon a closer examination it will be found to possess but little real force. The price of labor is and must continue to be governed by the law of supply and demand, and the person who has the most physical strength to labor, and the most pursuits requiring such strength open for employment, will always command the higher prices.

Ladies make excellent teachers in public schools; many of them are every way the equals of their male competitors, and still they secure less wages than males. The reason is obvious. The number of ladies who offer themselves as teachers is much larger than the number of males who are willing to teach. The larger number of females offer to teach because other occupations are not open to them. The smaller number of males offer to teach because other more profitable occupations are open to most males who are competent to teach. The result is that the competition for positions of teachers to be filled by ladies is so great as to reduce the price: but as males can not be employed at that price, and are necessary in certain places in the schools, those seeking their services have to pay a higher rate for them.

Persons having a larger number of places open to them with fewer competitors command higher wages than those who have a smaller number of places open to them with more competitors. This is the law of society. It is the law of supply and demand, which can not be changed by legislation. Then it follows that the ballot can not enable those who have to compete with the larger number to command the same prices as those who compete with the smaller number in the labor market. As the Legislature has no power to regulate in practice that of which the advocates of woman suffrage complain, the ballot in the hands of females could not aid its regulation.

The ballot can not impart to the female physical strength which she does not possess, nor can it open to her pursuits which she does not have physical ability to engage in; and as long as she lacks the physical strength to compete with men in the different departments of labor, there will be more competition in her department, and she must necessarily receive less wages.

But it is claimed again, that females should have the ballot as a protection against the tyranny of bad husbands. This is also delusive. If the husband is brutal, arbitrary, or tyrannical, and tyrannizes over her at home, the ballot in her hands would be no protection against such injustice, but the husband who compelled her to conform to his wishes in other respects would also compel her to use the ballot, if she possessed it, as he might please to dictate. The ballot would therefore be of no assistance to the wife in such case, nor could it heal family strifes or dissensions. On the contrary, one of the gravest objections to placing the ballot in the hands of the female sex is that it would promote unhappiness and dissensions in the family circle. There should be unity and harmony in the family.

At present the man represents the family in meeting the demands of the law and of society upon the family. So far as the rougher, coarser duties are concerned, the man represents the family, and the individuality of the woman is not brought into prominence; but when the ballot is placed in the hands of woman her individuality is enlarged, and she is expected to answer for herself the demands of the law and of society on her individual account, and not as the weaker member of the family to answer by her husband. This naturally draws her out from the dignified and cultivated refinement of her womanly position, and brings her into a closer contact with the rougher elements of society, which tends to destroy that higher reverence and respect which her refinement and dignity in the relation of wife and mother have always inspired in those who approached her in her honorable and useful retirement.

When she becomes a voter she will be more or less of a politician, and will form political alliances or unite with political parties which will frequently be antagonistic to those to which her husband belongs. This will introduce into the family circle new elements of disagreement and discord which will frequently end in unhappy divisions, if not in separation or divorce. This must frequently occur when she becomes an active politician, identified with a party which is distasteful to her husband. On the other hand, if she unites with her husband in party associations and votes with him on all occasions so as not to disturb the harmony and happiness of the family, then the ballot is of no service as it simply duplicates the vote of the male on each side of the question and leaves the result the same.

Again, if the family is the unit of society, and the state is composed of an aggregation of families, then it is important to society that there be as many happy families as possible, and it becomes the duty of man and woman alike to unite in the holy relations of matrimony.

As this is the only legal and proper mode of rendering obedience to the early command to multiply and replenish the earth, whatever tends to discourage the holy relation of matrimony is in disobedience of this command, and any change which encourages such disobedience is violative of the Divine law, and can not result in advantage to the state. Before forming this relation it is the duty of young men who have to take upon themselves the responsibilities of providing for and protecting the family to select some profession or pursuit that is most congenial to their tastes, and in which they will be most likely to be successful; but this can not be permitted to the young ladies, or if permitted it can not be practically carried out after matrimony.

As it might frequently happen that the young man had selected one profession or pursuit, and the young lady another, the result would be that after marriage she must drop the profession or pursuit of her choice, and employ herself in the sacred duties of wife and mother at home, and in rearing, educating, and elevating the family, while the husband pursues the profession of his choice.

It may be said, however, that there is a class of young ladies who do not choose to marry, and who select professions or avocations and follow them for a livelihood. This is true, but this class, compared with the number who unite in matrimony with the husbands of their choice, is comparatively very small, and it is the duty of society to encourage the increase of marriages rather than of celibacy. If the larger number of females select pursuits or professions which require them to decline marriage, society to that extent is deprived of the advantage resulting from the increase of population by marriage.

It is said by those who have examined the question closely that the largest number of divorces is now found in the communities where the advocates of female suffrage are most numerous, and where the individuality of

woman as related to her husband, which such a doctrine inculcates, is increased to the greatest extent.

If this be true, it is a strong plea in the interests of the family and of society against granting the petition of the advocates of woman suffrage.

After all, this is a local question, which properly belongs to the different States of the Union, each acting for itself, and to the Territories of the Union, when not acting in conflict with the laws of the United States.

The fact that a State adopts the rule of female suffrage neither increases nor diminishes its power in the Union, as the number of Representatives in Congress to which each State is entitled and the number of members in the electoral college appointed by each is determined by its aggregate population and not by the proportion of its voting population, so long as no race or class as defined by the Constitution is excluded from the exercise of the right of suffrage.

Now, Mr. President, I shall make no apology for adding to what I have said some extracts from an able and well-written volume, entitled "Letters from the Chimney Corner," written by a highly cultivated lady of Chicago. This gifted lady has discussed the question with so much clearness and force that I can make no mistake by substituting some of the thoughts taken from her book for anything I might add on this question. While discussing the relations of the sexes, and showing that neither sex is of itself a whole, a unit, and that each requires to be supplemented by the other before its true structural integrity can be achieved, she adds:

Now, everywhere throughout nature, to the male and female ideal, certain distinct powers and properties belong. The lines of demarkation are not always clear, not always straight lines: they are frequently wavering, shadowy, and difficult to follow, yet on the whole whatever physical strength, personal aggressiveness, the intellectual scope and vigor which manage vast material enterprises are emphasized, there the masculine ideal is present. On the other hand, wherever refinement, tenderness, delicacy, sprightliness, spiritual acumen, and force, are to the fore, there the feminine ideal is represented, and these terms will be found nearly enough for all practical purposes to represent the differing endowments of actual men and women. Different powers suggest different activities, and under the division

of labor here indicated the control of the state, legislation, the power of the ballot, would seem to fall to the share of man. Nor does this decision carry with it any injustice, any robbery of just or natural right to woman.

In her hands is placed a moral and spiritual power far greater than the power of the ballot. In her married or reproductive state the forming and shaping of human souls in their most plastic period is her destiny. Nor do her labors or her responsibilities end with infancy or childhood. Throughout his entire course, from the cradle to the grave, man is ever under the moral and spiritual influence and control of woman. With this power goes a tremendous responsibility for its true management and use. If woman shall ever rise to the full height of her power and privileges in this direction, she will have enough of the world's work upon her hands without attempting legislation.

It may be argued that the possession of civil power confers dignity, and is of itself a re-enforcement of whatever natural power an individual may possess; but the dignity of womanhood, when it is fully understood and appreciated, needs no such re-enforcement, nor are the peculiar needs of woman such as the law can reach.

Whenever laws are needed for the protection of her legal status and rights, there has been found to be little difficulty in obtaining them by means of the votes of men; but the deeper and more vital needs of woman and of society are those which are outside altogether of the pale of the law, and which can only be reached by the moral forces lodged in the hands of woman herself, acting in an enlarged and general capacity.

For instance, whenever a man or woman has been wronged in marriage the law may indeed step in with a divorce, but does that divorce give back to either party the dream of love, the happy home, the prattle of children, and the sweet outlook for future years which were destroyed by that wrong? It is not a legal power which is needed in this case; it is a moral power which shall prevent the wrong, or, if committed, shall induce penitence, forgiveness, a purer life, and the healing of the wound.

This power has been lodged by the Creator in the hands of woman herself, and if she has not been rightly trained to use it there is no redress for her at the hands of the law. The law alone can never compel men to respect the

chastity of woman. They must first recognize its value in themselves by living up to the high level of their duties as maidens, wives, and mothers; they must impress men with the beauty and sacredness of purity, and then whatever laws are necessary and available for its protection will be easily obtained, with a certainty, also, that they can be enforced, because the moral sentiments of men will be enlisted in their support.

Privileges bring responsibilities, and before women clamor for more work to do, it were better that they should attend more thoughtfully to the duties which lie all about them, in the home and social circle. Until society is cleansed of the moral foulness which infests it, which, as we have seen, lies beyond the reach of civil law, women have no call to go forth into wider fields, claiming to be therein the rightful and natural purifiers. Let them first make the home sweet and pure, and the streams which flow therefrom will sweeten and purify all the rest.

As between the power of the ballot and this moral force exerted by women there can not be an instant's doubt as to the choice. In natural refinement and elevation of character, the ideal woman stands a step above the ideal man. If she descends from this fortunate position to take part in the coarse scramble for material power, what chance will she have as against man's aggressive forces; and what can she possibly gain that she can not win more directly, more effectually, and with far more dignity and glory to herself by the exercise of her own womanly prerogatives? She has, under God, the formation and rearing of men in her own hands.

If they do not turn out in the end to be men who respect woman, who will protect and defend her in the exercise of every one of her God-given rights, it is because she has failed in her duty toward them; has not been taught to comprehend her own power and to use it to its best ends. For women to seek to control men by the power of suffrage is like David essaying the armor of Saul. What woman needs is her own sheepskin sling and her few smooth pebbles from the bed of the brook, and then let her go forth in the name of the Lord God of Hosts, and a victory as sure and decisive as that of the shepherd of Israel awaits her.

Again, in chapter 4, entitled "The Power of the Home," the author says, in substance: It is, perhaps, of minor consequence that women should have felt

themselves emancipated from buttons and bread making; but that they should have learned to look in the least degree slightly upon the great duties of women as lovers of husbands, as lovers of children, as the fountain and source of what is highest and purest and holiest, and not less of what is homely and comfortable and satisfying in the home, is a serious misfortune. Women can hardly be said to have lost, perhaps what they have so rarely in any age generally attained, that dignity which knows how to command, united with a sweetness which seems all the while to be complying, the power, supple and strong, which rescues the character of the ideal woman from the charge of weakness, and at the same time exhibits its utmost of grace and fascination.

But that of late years the gift has not been cultivated, has not, in fact, thrown out such natural off-shoots as gave grace and glory to some earlier social epochs, must be evident, it would seem, to any thoughtful observer.

If, instead of trying to grasp more material power, women would pursue those studies and investigations which tend to make them familiar with what science teaches concerning the influence of the mother and the home upon the child; of how completely the Creator in giving the genesis of the human race into the hands of woman has made her not only capable of, but responsible for, the regeneration of the world; if they would reflect that nature by making man the bond slave of his passions has put the lever into the hands of woman by which she can control him, and if they would learn to use these powers, not as bad women do for vile and selfish ends, but as the mothers of the race ought, for pure, holy, and redemptive purposes, then would the sphere of women be enlarged to some purpose; the atmosphere of the home would be purified and vitalized, and the work of redeeming man from his vices would be hopefully begun.

The following thoughts are also from the same source: Is this emancipation of woman, if that is the proper phrase for it, a final end, or only the means to an end? Are women to be as the outcome of it emancipated from their world-old sphere of marriage and motherhood, and control of the moral and spiritual destinies of the race, or are they to be emancipated, in order to the proper fulfillment of these functions? It would seem that most of the advanced women of the day would answer the first of these questions affirmatively. Women, I think it has been authoritatively stated, are to be

emancipated in order that they may become fully developed human beings, something broader and stronger, something higher and finer, more delicate, more aesthetic, more generally rarefied and sublimated than the old-fashioned type of womanhood, the wife and the mother.

And the result of the woman movement seems more or less in a line thus far with this theoretic aim. Of advanced women a less proportion are inclined to marry than of the old-fashioned type; of those who do marry a great proportion are restless in marriage bonds or seek release from them, while of those who do remain in married life many bear no children, and few, indeed, become mothers of large families. The woman's vitality is concentrated in the brain and fructifies more in intellectual than in physical forms.

Now, women who do not marry are one of two things; either they belong to a class which we shrink from naming or they become old maids.

An old maid may be in herself a very useful and commendable person and a valuable member of society; many are all this. But she has still this sad drawback, she can not perpetuate herself; and since all history and observation go to prove that the great final end of creation, whatever it may be, can only be achieved through the perpetuity and increasing progress of the race, it follows that unmarried woman is not the most necessary, the indispensable type of woman. If there were no other class of females left upon the earth but the women who do not bear children, then the world would be a failure, creation would be nonplussed.

If, then, the movement for the emancipation of woman has for its final end the making of never so fine a quality, never so sublimated a sort of non-child-bearing women, it is an absurdity upon the face of it.

From the standpoint of the Chimney Corner it appears that too many even of the most gifted and liberal-minded of the leaders in the woman's rights movement have not yet discovered this flaw in their logic. They seek to individualize women, not seeing, apparently, that individualized women, old maids, and individualized men, old bachelors, though they may be useful in certain minor ways, are, after all, to speak with the relentlessness of science, fragmentary and abortive, so far as the great scheme of the universe is concerned, and often become, in addition, seriously detrimental

to the right progress of society. The man and woman united in marriage form the unit of the race; they alone rightly wield the self-perpetuating power upon which all human progress depends; without which the race itself must perish, the universe become null.

Reaching this point of the argument, it becomes evident that while the development of the individual man or individual woman is no doubt of great importance, since, as Margaret Fuller has justly said, "there must be units before there can be union," it is chiefly so because of their relation to each other. Their character should be developed with a view to their future union with each other, and not to be independent of it. When the leaders of the woman's movement fully realize this, and shape their course accordingly, they will have made a great advance both in the value of their work and its claim upon public sympathy. Moreover, they will have reached a point from which it will be possible for them to investigate reform and idealize the relations existing between men and women.

Mr. President, it is no part of my purpose in any manner whatever to speak disrespectfully of the large number of intelligent ladies, sometimes called strong-minded, who are constantly going before the public, agitating this question of female suffrage. While some of them may, as is frequently charged, be courting notoriety, I have no doubt they are generally earnestly engaged in a work which, in their opinion, would better their condition and would do no injury to society.

In all this, however, I believe they are mistaken.

I think the mental and physical structure of the sexes, of itself, sufficiently demonstrates the fact that the sterner, more laborious, and more difficult duties of society are to be performed by the male sex; while the more delicate duties of life, which require less physical strength, and the proper training of youth, with the proper discharge of domestic duties, belong to the female sex. Nature has so arranged it that the male sex can not attend properly to the duties assigned by the law of nature to the female sex, and that the female sex can not discharge the more rigorous duties required of the male sex.

This movement is an attempt to reverse the very laws of our being, and to drag woman into an arena for which she is not suited, and to devolve upon

her onerous duties which the Creator never intended that she should perform.

While the husband discharges the laborious and fatiguing duties of important official positions, and conducts political campaigns, and discharges the duties connected with the ballot-box, or while he bears arms in time of war, or discharges executive or judicial duties, or the duties of juryman, requiring close confinement and many times great mental fatigue; or while the husband in a different sphere of life discharges the laborious duties of the plantation, the workshop, or the machine shop, it devolves upon the wife to attend to the duties connected with home life, to care for infant children, and to train carefully and properly those who in the youthful period are further advanced towards maturity.

The woman with the infant at the breast is in no condition to plow on the farm, labor hard in the workshop, discharge the duties of a juryman, conduct causes as an advocate in court, preside in important cases as a judge, command armies as a general, or bear arms as a private. These duties, and others of like character, belong to the male sex; while the more important duties of home, to which I have already referred, devolve upon the female sex. We can neither reverse the physical nor the moral laws of our nature, and as this movement is an attempt to reverse these laws, and to devolve upon the female sex important and laborious duties for which they are not by nature physically competent, I am not prepared to support this bill.

My opinion is that a very large majority of the American people, yes, a large majority of the female sex, oppose it, and that they act wisely in doing so. I therefore protest against its passage.

Mr. DOLPH. Mr. President, I shall not detain the Senate long. I do not feel satisfied when a measure so important to the people of this country and to humanity is about to be submitted to a vote of the Senate to remain wholly silent.

The pending question is upon the adoption of a joint resolution in the usual form submitting to the legislatures of the several States of the Union for their ratification an additional article as an amendment to the Federal Constitution, which is as follows:

ARTICLE—,

SECTION I. The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of sex.

SEC. 2. The Congress shall have power, by appropriate legislation, to enforce the provisions of this article.

Fortunately for the perpetuity of our institutions and the prosperity of the people, the Federal Constitution contains a provision for its own amendment. The framers of that instrument foresaw that time and experience, the growth of the country and the consequent expansion of the Government, would develop the necessity for changes in it, and they therefore wisely provided in Article V as follows:

The Congress, whenever two-thirds of both Houses shall deem it necessary, shall propose amendments to this Constitution, or, on the application of the Legislatures of two-thirds of the several States, shall call a convention for proposing amendments, which in either case shall be valid to all intents and purposes, as part of this Constitution, when ratified by the Legislatures of three-fourths of the several States, or by conventions in three-fourths thereof, as the one or the other mode of ratification may be proposed by the Congress.

Under this provision, at the first session of the First Congress, ten amendments were submitted to the Legislatures of the several States, in due time ratified by the constitutional number of States, and became a part of the Constitution. Since then there have been added to the Constitution by the same process five different articles.

To secure an amendment to the Constitution under this article requires the concurrent action of two-thirds of both branches of Congress and the affirmative action of three-fourths of the States. Of course Congress can refuse to submit a proposed amendment to the Legislatures of the several States, no matter how general the demand for such submission may be, but I am inclined to believe with the senior Senator from New Hampshire [Mr. BLAIR], in the proposition submitted by him in a speech he made early in the present session upon the pending resolution, that the question as to

whether this resolution shall be submitted to the Legislatures of the several States for ratification does not involve the right or policy of the proposed amendment. I am also inclined to believe with him that should the demand by the people for the submission by Congress to the Legislatures of the several States of a proposed amendment become general it would be the duty of the Congress to submit such amendment irrespective of the individual views of the members of Congress, and thus give the people through their Legislative Assemblies power to pass upon the question as to whether or not the Constitution should be amended. At all events, for myself, I should not hesitate to vote to submit for ratification by the Legislatures of the several States an amendment to the Constitution although opposed to it if I thought the demand for it justified such a course.

But I shall vote for the pending joint resolution because I am in favor of the proposed amendment. I have been for many years convinced that the demand made by women for the right of suffrage is just, and that of all the distinctions which have been made between citizens in the laws which confer or regulate suffrage the distinction of sex is the least defensible.

I am not going to discuss the question at length at this time. The arguments for and against woman suffrage have been often stated in this Chamber, and are pretty fully set forth in the majority and minority reports of the Senate committee upon the pending joint resolution. The arguments in its favor were fully stated by the senior Senator from New Hampshire in his able speech upon the question before alluded to, and now the objections to it have been forcibly and elaborately presented by the senior Senator from Georgia [Mr. BROWN]. I could not expect by anything I could say to change a single vote in this body, and the public is already fully informed upon the question, as the arguments in favor of woman suffrage have been voiced in every hamlet in the land with great ability. No question in this country has been more ably discussed than this has been by the women themselves.

I do not think a single objection which is made to woman suffrage is tenable. No one will contend but that women have sufficient capacity to vote intelligently.

Sir, sacred and profane history is full of the records of great deeds by women. They have ruled kingdoms, and, my friend from Georgia to the contrary notwithstanding, they have commanded armies. They have excelled in statecraft, they have shone in literature, and, rising superior to their environments and breaking the shackles with which custom and tyranny have bound them, they have stood side by side with men in the fields of the arts and the sciences.

If it were a fact that woman is intellectually inferior to man, which I do not admit, still that would be no reason why she should not be permitted to participate in the formation and control of the Government to which she owes allegiance. If we are to have as a test for the exercise of the right of suffrage a qualification based upon intelligence, let it be applied to women and to men alike. If it be admitted that suffrage is a right, that is the end of controversy; there can no longer be any argument made against woman suffrage, because, if it is her right, then, if there were but one poor woman in all the United States demanding the right of suffrage, it would be tyranny to refuse the demand.

But our friends say that suffrage is not a right; that it is a matter of grace only; that it is a privilege which is conferred upon or withheld from individual members of society by society at pleasure. Society as here used means man's government, and the proposition assumes the fact that men have a right to institute and control governments for themselves and for women. I admit that in the governments of the world, past and present, men as a rule have assumed to be the ruling classes; that they have instituted governments from participation in which they have excluded women; that they have made laws for themselves and for women, and as a rule have themselves administered them; but that the provisions conferring or regulating suffrage in the constitutions and laws of governments so constituted determined the question of the right of suffrage can not be maintained.

Let us suppose, if we can, a community separated from all other communities, having no organized government, owing no allegiance to any existing governments, without any knowledge of the character of present or past governments, so that when they come to form a government for themselves they can do so free from the bias or prejudice of custom or

education, composed of an equal number of men and women, having equal property rights to be defined and to be protected by law. When such community came to institute a government—and it would have an undoubted right to institute a government for itself, and the instinct of self-preservation would soon lead them to do so—will my friend from Georgia tell me by what right, human or divine, the male portion of that community could exclude the female portion, although equal in number and having equal property rights with the men, from participation in the formation of such government and in the enactment of laws for the government of the community? I understand the Senator, if he should answer, would say that he believes the Author of our existence, the Ruler of the universe, has given different spheres to man and woman. Admit that; and still neither in nature nor in the revealed will of God do I find anything to lead me to believe that the Creator did not intend that a woman should exercise the right of suffrage.

During the consideration by this body at the last session of the bill to admit Washington Territory into the Union, referring to the fact that in that Territory woman had been enfranchised, I briefly submitted my views on this subject, which I ask the Secretary to read, so that it may be incorporated in my remarks.

The Secretary read as follows:

Mr. President, there is another matter which I consider pertinent to this discussion, and of too much importance to be left entirely unnoticed on this occasion. It is something new in our political history. It is full of hope for the women of this country and of the world, and full of promise for the future of republican institutions. I refer to the fact that in Washington Territory the right of suffrage has been extended to women of proper age, and that the delegates to the constitutional convention to be held under the provisions of this bill, should it become a law, will, under existing laws of the Territory, be elected by its citizens without distinction as to sex, and the constitution to be submitted to the people will be passed upon in like manner.

I do not intend to discuss the question of woman suffrage upon this occasion, and I refer to it mainly for the purpose of directing attention

to the advanced position which the people of this Territory have taken upon this question. I do not believe the proposition so often asserted that suffrage is a political privilege only, and not a natural right. It is regulated by the constitution and laws of a State I grant, but it needs no argument, it appears to me, to show that a constitution and laws adopted and enacted by a fragment of the whole body of the people, but binding alike on all, is a usurpation of the powers of government.

Government is but organized society. Whatever its form, it has its origin in the necessities of mankind and is indispensable for the maintenance of civilized society. It is essential to every government that it should represent the supreme power of the State, and be capable of subjecting the will of its individual citizens to its authority. Such a government can only derive its just powers from the consent of the governed, and can be established only under a fundamental law which is self-imposed. Every citizen of suitable age and discretion who is to be subject to such a government has, in my judgment, a natural right to participate in its formation. It is a significant fact that should Congress pass this bill and authorize the people of Washington Territory to frame a State constitution and organize a State government, the fundamental law of the State will be made by all the citizens of the State to be subject to it, and not by one-half of them. And we shall witness the spectacle of a State government founded in accordance with the principles of equality, and have a State at last with a truly republican form of government.

The fathers of the Republic enunciated the doctrine "that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness." It is strange that any one in this enlightened age should be found to contend that this declaration is true only of men, and that a man is endowed by his Creator with inalienable rights not possessed by a woman. The lamented Lincoln immortalized the expression that ours is a Government "of the people, by the people, and for the people," and yet it is far from that. There can be no government by the people where one-half of them are allowed no voice in its organization and control. I regard the struggle going on in this country and elsewhere for the enfranchisement of women as but a continuation of

the great struggle for human liberty which has, from the earliest dawn of authentic history, convulsed nations, rent kingdoms, and drenched battlefields with human blood. I look upon the victories which have been achieved in the cause of woman's enfranchisement in Washington Territory and elsewhere as the crowning victories of all which have been won in the long-continued, still-continuing contest between liberty and oppression, and as destined to exert a greater influence upon the human race than any achieved upon the battlefield in ancient or modern times.

Mr. DOLPH. Mr. President, the movement for woman suffrage has passed the stage of ridicule. The pending joint resolution may not pass during this Congress, but the time is not far distant when in every State of the Union and in every Territory women will be admitted to an equal voice in the government, and that will be done whether the Federal Constitution is amended or not. The first convention demanding suffrage for women was held at Seneca Falls, in the State of New York, in 1848. To-day in three of the Territories of the Union women enjoy full suffrage, in a large number of States and Territories they are entitled to vote at school meetings, and in all the States and Territories there is a growing sentiment in favor of this measure which will soon compel respectful consideration by the law-making power.

No measure in this country involving such radical changes in our institutions and fraught with so great consequences to this country and to humanity has made such progress as the movement for woman suffrage. Denunciation will not much longer answer for arguments by the opponents of this measure. The portrayal of the evils to flow from woman suffrage such as we have heard pictured to-day by the Senator from Georgia, the loss of harmony between husband and wife, and the consequent instability of the marriage relation, the neglect of husband and children by wives and mothers for the performance of their political duties, in short the incapacitating of women for wives and mothers and companions, will not much longer serve to frighten the timid. Proof is better than theory. The experiment has been tried and the predicted evils to flow from it have not followed. On the contrary, if we can believe the almost universal testimony, everywhere where it has been tried it has been followed by the most beneficial results.

In Washington Territory, since woman was enfranchised, there have been two elections. At the first there were 8,368 votes cast by women out of a total vote of 34,000 and over. At the second election, which was held in November last, out of 48,000 votes cast in the Territory, 12,000 votes were cast by women. The opponents of female suffrage are silenced there. The Territorial conventions of both parties have resolved in favor of woman suffrage, and there is not a proposition, so far as I know in all that Territory, to repeal the law conferring suffrage upon woman.

I desire also to inform my friend from Georgia that since women were enfranchised in Washington Territory nature has continued in her wonted courses. The sun rises and sets; there is seed-time and harvest; seasons come and go. The population has increased with the usual regularity and rapidity. Marriages have been quite as frequent, and divorces have been no more so. Women have not lost their influence for good upon society, but men have been elevated and refined. If we are to believe the testimony which comes from lawyers, physicians, ministers of the gospel, merchants, mechanics, farmers, and laboring men, the united testimony of the entire people of the Territory, the results of woman suffrage there have been all that could be desired by its friends. Some of the results in that Territory have been seen in making the polls quiet and orderly, in awaking a new interest in educational questions and in questions of moral reform, in securing the passage of beneficial laws and the proper enforcement of them; and, as I have said before, in elevating men, and that without injury to the women.

Mr. EUSTIS. Will the Senator allow me to ask him a question?

Mr. DOLPH. The Senator can ask me a question, if he chooses.

Mr. EUSTIS. If it be right and proper to confer the right of suffrage on women, I ask the Senator whether he does not think that women ought to be required to serve on juries?

Mr. DOLPH. I can answer that very readily. It does not necessarily follow that because a woman is permitted to vote and thus have a voice in making the laws by which she is to be governed and by which her property rights are to be determined, she must perform such duty as service upon a jury. But I will inform the Senator that in Washington Territory she does serve

upon juries, and with great satisfaction to the judges of the courts and to all parties who desire to see an honest and efficient administration of law.

Mr. EUSTIS. I was aware of the fact that women are required to serve on juries in Washington Territory because they are allowed to vote. I understand that under all State laws those duties are considered correlative. Now, I ask the Senator whether he thinks it is a decent spectacle to take a mother away from her nursing infant and lock her up all night to sit on a jury?

Mr. DOLPH. I intended to say before I reached this point of being interrogated that I not only do not believe that there is a single argument against woman suffrage that is tenable, and I may be prejudiced in the matter, but that there is not a single one that is really worthy of any serious consideration. The Senator from Louisiana is a lawyer, and he knows very well that under such circumstances, a mother with a nursing infant, that fact being made known to the court would be excused; that would be a sufficient excuse. He knows himself, and he has seen it done a hundred times, that for trivial excuses compared to that men have been excused from service on a jury.

Mr. EUSTIS. I will ask the Senator whether he knows that under the laws of Washington Territory that is a legal excuse from serving on a jury?

Mr. DOLPH. I am not prepared to state that it is; but there is no question in the world but that any judge, that fact being made known, would excuse a woman from attendance upon a jury. No special authority would be required. I will state further that I have not learned that there has been any serious objection on the part of any woman summoned for jury service in that Territory to perform that duty. I have not learned that it has worked to the disadvantage of any family in the Territory; but I do know that the judges of the courts have taken especial pains to commend the women who have been called to serve upon juries for the manner in which they have discharged their duty.

I wish to say further that there is no connection whatever between jury service and the right of suffrage. The question as to who shall perform jury service, the question as to who shall perform military service, the question as to who shall perform civil official duty in a government is certainly a

matter to be regulated by the community itself; but the question of the right to participate in the formation of a government which controls the life and the property and the destinies of its citizens, I contend is a question of right that goes back of these mere regulations for the protection of property and the punishment of offenses under the laws. It is a matter of right which it is tyranny to refuse to any citizen demanding it.

Now, Mr. President, I shall close by saying: God speed the day when not only in all the States of the Union and in all the Territories, but everywhere, woman shall stand before the law freed from the last shackle which has been riveted upon her by tyranny and the last disability which has been imposed upon her by ignorance, not only in respect to the right of suffrage, but in every other respect the peer and equal of her brother, man.

Mr. VEST. Mr. President, any measure of legislation which affects popular government based on the will of the people as expressed through their suffrage is not only important but vitally so. If this Government, which is based on the intelligence of the people, shall ever be destroyed it will be by injudicious, immature, or corrupt suffrage. If the ship of state launched by our fathers shall ever be destroyed, it will be by striking the rock of universal, unprepared suffrage. Suffrage once given can never be taken away. Legislatures and conventions may do everything else; they never can do that. When any particular class or portion of the community is once invested with this privilege it is used, accomplished, and eternal.

The Senator who last spoke on this question refers to the successful experiment in regard to woman-suffrage in the Territories of Wyoming and Washington. Mr. President, it is not upon the plains of the sparsely-settled Territories of the West that woman suffrage can be tested. Suffrage in the rural districts and sparsely settled regions of this country must from the very nature of things remain pure when corrupt everywhere else. The danger of corrupt suffrage is in the cities, and those masses of population to which civilization tends everywhere in all history. Whilst the country has been pure and patriotic, the cities have been the first cancers to appear upon the body-politic in all ages of the world.

Wyoming Territory! Washington Territory! Where are their large cities? Where are the localities in these Territories where the strain upon popular

government must come? The Senator from New Hampshire, who is so conspicuous in this movement, appalled the country some months since by his ghastly array of illiteracy in the Southern States. He proposes that \$77,000,000 of the people's money be taken in order to strike down the great foe to republican government, illiteracy. How was that illiteracy brought upon this country? It was by giving the suffrage to unprepared voters. It is not my purpose to go back into the past and make any partisan or sectional appeal, but it is a fact known to every intelligent man that in one single act the right of suffrage was given without preparation to hundreds of thousands of voters who to-day can scarcely read. That Senator proposes now to double, and more than double, that illiteracy. He proposes to give the negro women of the South this right of suffrage, utterly unprepared as they are for it.

In a convention some two years and a half ago in the city of Louisville an intelligent negro from the South said the negro men could not vote the Democratic ticket because the women would not live with them if they did. The negro men go out in the hotels and upon the railroad cars. They go to the cities and by attrition they wear away the prejudice of race; but the women remain at home, and their emotional natures aggregate and compound the race-prejudice, and when suffrage is given them what must be the result?

Mr. President, it is not my purpose to speak of the inconveniences, for they are nothing more, of woman suffrage. I trust that as a gentleman I respect the feelings of the ladies and their advocates. I am not here to ridicule. My purpose only is to use legitimate argument as to a movement which commands respectful consideration, if for no other reason than because it comes from women. But it is impossible to divest ourselves of a certain degree of sentiment when considering this question.

I pity the man who can consider any question affecting the influence of woman with the cold, dry logic of business. What man can, without aversion, turn from the blessed memory of that dear old grandmother, or the gentle words and caressing hand of that blessed mother gone to the unknown world, to face in its stead the idea of a female justice of the peace or township constable? For my part I want when I go to my home—when I turn from the arena where man contends with man for what we call the

prizes of this paltry world—I want to go back, not to be received in the masculine embrace of some female ward politician, but to the earnest, loving look and touch of a true woman. I want to go back to the jurisdiction of the wife, the mother; and instead of a lecture upon finance or the tariff, or upon the construction of the Constitution, I want those blessed, loving details of domestic life and domestic love.

I have said I would not speak of the inconveniences to arise from woman suffrage—I care not—whether the mother is called upon to decide as a juryman or jury-woman rights of property or rights of life, whilst her baby is "mewling and puking" in solitary confinement at home. There are other considerations more important, and one of them to my mind is insuperable. I speak now respecting women as a sex. I believe that they are better than men, but I do not believe they are adapted to the political work of this world. I do not believe that the Great Intelligence ever intended them to invade the sphere of work given to men, tearing down and destroying all the best influences for which God has intended them.

The great evil in this country to-day is in emotional suffrage. The great danger to-day is in excitable suffrage. If the voters of this country could think always coolly, and if they could deliberate, if they could go by judgment and not by passion, our institutions would survive forever, eternal as the foundations of the continent itself; but massed together, subject to the excitements of mobs and of these terrible political contests that come upon us from year to year under the autonomy of our Government, what would be the result if suffrage were given to the women of the United States?

Women are essentially emotional. It is no disparagement to them they are so. It is no more insulting to say that women are emotional than to say that they are delicately constructed physically and unfitted to become soldiers or workmen under the sterner, harder pursuits of life.

What we want in this country is to avoid emotional suffrage, and what we need is to put more logic into public affairs and less feeling. There are spheres in which feeling should be paramount. There are kingdoms in which the heart should reign supreme. That kingdom belongs to woman. The realm of sentiment, the realm of love, the realm of the gentler and the

holier and kindlier attributes that make the name of wife, mother, and sister next to that of God himself.

I would not, and I say it deliberately, degrade woman by giving her the right of suffrage. I mean the word in its full signification, because I believe that woman as she is to-day, the queen of home and of hearts, is above the political collisions of this world, and should always be kept above them.

Sir, if it be said to us that this is a natural right belonging to women, I deny it. The right of suffrage is one to be determined by expediency and by policy, and given by the State to whom it pleases. It is not a natural right; it is a right that comes from the state.

It is claimed that if the suffrage be given to women it is to protect them. Protect them from whom? The brute that would invade their rights would coerce the suffrage of his wife, or sister, or mother as he would wring from her the hard earnings of her toil to gratify his own beastly appetites and passions.

It is said that the suffrage is to be given to enlarge the sphere of woman's influence. Mr. President, it would destroy her influence. It would take her down from that pedestal where she is to-day, influencing as a mother the minds of her offspring, influencing by her gentle and kindly caress the action of her husband toward the good and pure.

But I rise not to discuss this question, but to discharge a request. I know that when a man attacks this claim for woman suffrage he is sneered at and ridiculed as afraid to meet women in the contests for political honor and supremacy. If so, I oppose to the request of these ladies the arguments of their own sex; but first, I ask the Secretary to read a paper which has been sent to me with a request that I place it before the Senate.

The Chief Clerk read as follows:

To the honorable Senate and House of Representatives:

We, the undersigned, respectfully remonstrate against the further extension of suffrage to women.

H.P. Kidder.
O.W. Peabody.
R.M. Morse, jr.
Charles A. Welch.
Augustus Lowell.
Francis Parkman, LL.D.
Thomas Bailey Aldrich.
Edmund Dwight.
Charles H. Dalton.
Henry Lee.
W. Endicott, jr.
Samuel Wells.
Hon. John Lowell.
William G. Russell.
John C. Ropes.
Robert D. Smith.
George A. Gardner.
F. Haven, jr.
W. Powell Mason.
B.F. Stevens.
Charles Marsh.
Charles W. Eliot, president, Harvard University.
Prof. C.F. Dunbar.
Prof. J.P. Cook.
Prof. J. Lovering.
Prof. W.W. Goodwin.
Prof. Francis Bowen.
Prof. Wolcott Gibbs.
Prof. F.J. Child.
Prof. John Trowbridge.
Prof. G.I. Goodale.
Prof. J.B. Greenough.
Prof. H.W. Torrey.
Prof. J.H. Thayer.
Prof. E.W. Gurney.
Justin Winsor.
H.W. Paine.

Hon. W.E. Russell.
James C. Fiske.
George Putnam.
C.A. Curtis.
T. Jefferson Coolidge.
T.K. Lothrop.
Augustus P. Loring.
W.F. Draper.
George Draper.
Francis Brooks.
Rev. J.P. Bodfish, chancellor, Cathedral Holy Cross.
Rt. Rev. B.H. Paddock, bishop of Massachusetts.
Rev. Henry M. Dexter.
Rev. H. Brooke Herford.
Rev. O.B. Frothingham.
Rev. Ellis Wendell.
Rev. Geo. F. Staunton.
Rev. A.H. Heath.
Rev. W.H. Dowden.
Rev. J.B. Seabury.
Rev. C. Woodworth.
Rev. Leonard K. Storrs.
Rev. Howard N. Brown.
Rev. Edward J. Young.
Rev. Andrew P. Peabody.
Rev. George Z. Gray.
Rev. William Lawrence.
Rev. E.H. Hall.
Rev. Nicholas Hoppin.
Rev. David G. Haskins.
Rev. L.S. Crawford.
Rev. J.I.T. Coolidge.
Rev. Henry A. Hazen.
Rev. F.H. Hedge.
Rev. H.A. Parker.
Rev. Asa Bullard.
Rev. Alexander McKenzie.

Rev. J.F. Spaulding.
Rev. S.K. Lothrop.
Rev. E. Osborne, S.S.J.E.
Rev. Leighton Parks.
Rev. H.W. Foote.
Rev. Morton Dexter.
Rev. David H. Brewer.
Rev. Judson Smith.
Rev. L.W. Shearman.
Rev. Charles F. Dole.
Rev. George M. Boynton.
Rev. D.W. Waldron.
Rev. John A. Hamilton.
Rev. Isaac P. Langworthy.
Rev. E.K. Alden.
Rev. E.E. Strong.
Rev. M.D. Bisbee.
Rev. Oliver S. Dean.
Henry Parkman.
W.H. Sayward.
Charles A. Cummings.
Hon. S.C. Cobb.
Sidney Bartlett.
John C. Gray.
Louis Brandeis.
Hon. George G. Crocker.
John Bartlett.
John Fiske.
J.T.G. Nichols, M.D.
C.E. Vaughan, M.D.
John Homans, M.D.
Chauncey Smith.
Benj. Vaughan.
Charles F. Walcott.
J.B. Warner.
Walter Dean.
S.H. Kennard.

E. Whitney.
W.P.P. Longfellow.
H.O. Houghton.
J.M. Spelman.
J.C. Dodge.
E.S. Dixwell.
L.S. Jones.
G.W.C. Noble.
Charles Theodore Russell.
Clement L. Smith.
Ezra Farnsworth.
H.H. Edes.
Hon. R.R. Bishop.
H.H. Sprague.
Charles R. Codman.
Darwin E. Ware.
Arthur E. Thayer.
C.F. Choate.
Richard H. Dana.
O.D. Forbes.
Edward L. Geddings.
William V. Hutchings.
John L. Gardner.
L.M. Sargent.
H.L. Hallett.
E.P. Brown.
W.A. Tower.
J. Edwards.
G.H. Campbell.
Samuel Carr, jr.
Edward Brooks.
J. Randolph Coolidge.
J. Eliot Cabot.
Fred. Law Olmstead.
Charles S. Sargent.
C.A. Richardson.
Charles F. Shimmin.

Edward Bangs.
J.G. Freeman.
H.H. Coolidge.
David Hunt.
Alfred D. Hurd.
Edward I. Brown.
W.G. Saltonstall.
Thomas Weston, jr.
Richard M. Hodges, M.D.
Henry J. Bigelow, M.D.
Charles D. Homans, M.D.
George H. Lyman, M.D.
John Dixwell, M.D.
R.M. Pulsifer.
Edward L. Beard.
Solomon Lincoln.
G.B. Haskell.
John Boyle O'Reilly.
Arlo Bates.
Horace P. Chandler.
George O. Shattuck.
Hon. Alex. H. Rice.
Henry Cabot Lodge.
Francis Peabody, jr.
Harcourt Amory.
F.E. Parker.
A.S. Wheeler.
Jacob C. Rogers.
S.G. Snelling.
C.H. Barker.
J.H. Walker.
Forrest E. Barker.
John D. Wasbburn.
Martin Brimmer.
Fred L. Ames.
Hon. A.P. Martin.

Mr. DOLPH. If the Senator from Missouri will permit me, those names sounded very much like the names of men.

Mr. VEST. They are men's names. I did not say that the petition was signed by ladies. I referred to the papers in my hand, which I shall proceed to lay before the Senate.

I hold in my hand an argument against woman suffrage by a lady very well known in the United States, and well known to the Senators from Massachusetts, a lady whose philanthropy, whose exertions in behalf of the oppressed and poor and afflicted have given her a national reputation. I refer to Mrs. Clara T. Leonard, the wife of a distinguished lawyer, and whose words of themselves will command the attention of the public.

The Chief Clerk read as follows:

[Letter from Mrs. Clara T. Leonard.]

The following letter was read by Thornton K. Lothrop, esq., at the hearing before the Legislative committee on woman suffrage, January 29, 1884:

The principal reasons assigned for giving suffrage to women are these:

That the right to vote is a natural and inherent right of which women are deprived by the tyranny of men.

That the fact that the majority of women do not wish for the right or privilege to vote is not a reason for depriving the minority of an inborn right.

That women are taxed but not represented, contrary to the principles of free government.

That society would gain by the participation of women in government, because women are purer and more conscientious than men, and especially that the cause of temperance would be promoted by women's votes.

Those women who are averse to female suffrage hold differing opinions on all these points, and are entitled to be heard fairly and

without unjust reproach and contempt on the part of "suffragists," so called.

The right to vote is not an inherent right, but, like the right to hold land, is conferred upon individuals by general consent, with certain limitations, and for the general good of all.

It is as true to say that the earth was made for all its inhabitants, and that human has a right to appropriate a portion of its surface, as to say that all persons have a right to participate in government. Many persons can be found to hold both these opinions. Experience has proved that the general good is promoted by ownership of the soil, with the resultant inducement to its improvement.

Voting is simply a mathematical test of strength. Uncivilized nations strive for mastery by physical combat, thus wasting life and resources. Enlightened societies agree to determine the relative strength of opposing parties by actual count. God has made women weaker than men, incapable of taking part in battles, indisposed to make riot and political disturbance.

The vote which, in the hand of a man, is a "possible bayonet," would not, when thrown by a woman, represent any physical power to enforce her will. If all the women in the State voted in one way, and all the men in the opposite one, the women, even if in the majority, would not carry the day, because the vote would not be an estimate of material strength and the power to enforce the will of the majority. When one considers the strong passions and conflicts excited in elections, it is vain to suppose that the really stronger would yield to the weaker party.

It is no more unjust to deprive women of the ballot than to deprive minors, who outnumber those above the age of majority, and who might well claim, many of them, to be as well able to decide political questions as their elders.

If the majority of women are either not desirous to vote or are strongly opposed to voting, the minority should yield in this, as they are obliged to do in all other public matters. In fact, they will be obliged to yield,

so long as the present state of opinion exists among women in general, for legislators will naturally consult the wishes of the women of their own families and neighborhood, and be governed by them. There can be no doubt that in this State, where women are highly respected and have great influence, the ballot would be readily granted to them by men, if they desired it, or generally approved of woman suffrage. Women are taxed, it is true; so are minors, without the ballot; it is untrue, to say that either class is not represented. The thousand ties of relationship and friendship cause the identity of interest between the sexes. What is good in a community for men, is good also for their wives and sisters, daughters and friends. The laws of Massachusetts discriminate much in favor of women, by exempting unmarried women of small estate from taxation; by allowing women, and not men, to acquire a settlement without paying a tax; by compelling husbands to support their wives, but exempting the wife, even when rich, from supporting an indigent husband; by making men liable for debts of wives, and not *vice versa*. In the days of the American Revolution, the first cause of complaint was, that a whole people were taxed but not represented.

To-day there is not a single interest of woman which is not shared and defended by men, not a subject in which she takes an intelligent interest in which she cannot exert an influence in the community proportional to her character and ability. It is because the men who govern live not in a remote country, with separate interests, but in the closest relations of family and neighborhood, and bound by the tenderest ties to the other sex, who are fully and well represented by relations, friends, and neighbors in every locality. That women are purer and more conscientious than men, as a sex, is exceedingly doubtful when applied to politics. The faults of the sexes are different, according to their constitution and habits of life. Men are more violent and open in their misdeeds, but any person who knows human nature well and has examined it in its various phases knows that each sex is open to its peculiar temptation and sin; that the human heart is weak and prone to evil without distinction of sex.

It seems certain that, were women admitted to vote and to hold political office, all the intrigue, corruption, and selfishness displayed

by men in political life would also be found among women. In the temperance cause we should gain little or nothing by admitting women to vote, for two reasons: first, that experience has proved that the strictest laws can not be enforced if a great number of people determine to drink liquor; secondly, because among women voters we should find in our cities thousands of foreign birth who habitually drink beer and spirits daily without intoxication, and who regard license or prohibitory laws as an infringement of their liberty. It has been said that municipal suffrage for women in England has proved a political success. Even if this is true, it offers no parallel to the condition of things in our own cities. First, because there is in England a property qualification required to vote, which excludes the more ignorant and irresponsible classes, and makes women voters few and generally intelligent; secondly, because England is an old, conservative country, with much emigration and but little immigration.

Here is a constant influx of foreigners: illiterate, without love of our country or interest in, or knowledge of, the history of our liberties, to whom, after a short residence, we give a full share in our government. The result begins to be alarming—enormous taxation, purchasable votes, demagogism,—all these alarm the more thoughtful, and we are not yet sure of the end. It is a wise thought that the possible bayonet or ruder weapon in the hands of our new citizens would be even worse than the ballot, and our safer course is to give the immigrants a stake and interest in the government. But when we learn that on an average one thousand immigrants per week landed at the port of Boston in the past calendar year, is it not well to consider carefully how we double, and more than double, the popular vote, with all its dangers and its ingredients of ignorance and irresponsibility. Last of all, it must be considered that the lives of men and women are essentially different.

One sex lives in public, in constant conflict with the world; the other sex must live chiefly in private and domestic life, or the race will be without homes and gradually die out. If nearly one-half of the male voters of our State forego their duty or privilege, as is the fact, what proportion of women would exercise the suffrage? Probably a very small one. The heaviest vote would be in the cities, as now, and the ignorant and unfit women would be the ready prey of the unscrupulous

demagogue. Women do not hold a position inferior to men. In this land they have the softer side of life—the best of everything. There are, of course, exceptions—individuals—whose struggle in life is hard, whose husbands and fathers are tyrants instead of protectors; so there are bad wives, and men ruined and disheartened by selfish, idle women.

The best work that a woman can do for the purifying of politics is by her influence over men, by the wise training of her children, by her intelligent, unselfish counsel to husband, brother, or friend, by a thorough knowledge and discussion of the needs of her community. Many laws on the statute-books of our own and other States have been the work of women. More might be added.

It is the opinion of many of us that woman's power is greater without the ballot or possibility of office-holding for gain. When standing outside of politics she discusses great questions upon their merit. Much has been achieved by women in the anti-slavery cause, the temperance cause, the improvement of public and private charities, the reformation of criminals, all by intelligent discussion and influence upon men. Our legislators have been ready to listen to women and carry out their plans when well framed.

Women can do much useful public service upon boards of education, school committees, and public charities, and are beginning to do such work. It is of vital importance to the integrity of our charitable and educational administration that it be kept out of politics. Is it not well that we should have one sex who have no political ends to serve who can fill responsible positions of public trust? Voting alone can easily be exercised by women without rude contact, but to attain any political power women must affiliate themselves with men; because women will differ on public questions, must attend primary meetings and caucuses, will inevitably hold public office and strive for it; in short, women must enter the political arena. This result will be repulsive to a large portion of the sex, and would tend to make women unfeminine and combative, which would be a detriment to society.

It is well that men after the burden and heat of the day should return to homes where the quiet side of life is presented to them. In these

peaceful New England homes of ours, great and noble men have been raised by wise and pious mothers, who instructed them, not in politics, but in those general principles of justice, integrity, and unselfishness which belong to and will insure statesmanship in the men who are true to them. Here is the stronghold of the sex, weakest in body, powerful for good or evil over the stronger one, whom women sway and govern, not by the ballot and by greater numbers but by those gentle influences designed by the Creator to soften and subdue man's ruder nature.

CLARA T. LEONARD.

Mr. HOAR. The Senator from Missouri has alluded to me in connection with the name of this lady. Perhaps he will allow me to make an additional statement to that which I furnished him, in order that the statement about her may be complete.

All that the Senator from Missouri has said of the character and worth of Mrs. Leonard is true. I do not know her personally. Her husband is my respected personal friend, a lawyer of high standing and character. All that the Senator has said of her ability is proved better than by any other testimony, by the very able and powerful letter which has just been read. But Mrs. Leonard herself is the strongest refutation of her own argument.

Politics, the political arena, political influence, political action in this country consists, I suppose, in two things: one of them the being intrusted with the administration of public affairs, and second, having the vote counted in determining who shall be public servants, and what public measures shall prevail in the commonwealth. Now, this lady was intrusted for years with one of the most important public functions ever exercised by any human being in the commonwealth of Massachusetts. We have a board, called the board of lunacy and charity, which controls the large charities for which Massachusetts is famous and in many of which she was the first among civilized communities, for the care of the pauper and the insane and the criminal woman, and the friendless and the poor child. It is one of the most important things, except the education of youth, which Massachusetts does.

A little while ago a political campaign in Massachusetts turned upon a charge which her governor made against the people of the commonwealth

in regard to the conduct of the great hospital at Tewksbury, where she was charged by her chief executive magistrate with making sale of human bodies, with cruelty to the poor and defenseless; and not only the whole country, but especially the whole people of Massachusetts, were stirred to the very depths of their souls by that accusation. Mrs. Clara T. Leonard, the writer of this letter, came forward and informed the people that she had been one of the board who had managed that institution for years, that she knew all about it through and through, that the accusation was false and a slander; and before her word and her character the charge of that distinguished governor went down and sunk into merited obscurity and ignominy.

Now, the question is whether the lady who can be intrusted with the charge of one of the most important departments of government, and whose judgment in regard to its character or proper administration is to be taken as gospel by the people where her reputation extends, is not fit to be trusted to have her vote counted when the question is who is to be the next person who is to be trusted with that administration. Mrs. Leonard's mistake is not in misunderstanding the nature either of woman or of man, which she understands perfectly; it is in misunderstanding the nature of politics, that is, the political arena; and this lady has been in the political arena for the last ten years of her life, one of the most important and potent forces therein.

It is true, as she says, that the wife and the mother educate the child and the man, and when the great function of the state, as we hold in our State and as is fast being held everywhere, is also the education of the child and the man, how does it degrade that wife and mother, whose important function it is to do this thing, to utter her voice and have her vote counted in regard to the methods and the policies by which that education shall be conducted?

Why, Mr. President, Mrs. Leonard says in that letter that woman, the wife and the maiden and the daughter, has no political ends to serve. If political ends be to desire office for the greed of gain, if political ends be to get an unjust power over other men, if political ends be to get political office by bribery or by mob violence or by voting through the shutter of a beer-house, that is true: but the persons who are in favor of this measure believe that those very things that Mrs. Leonard holds up as the proper ends in the life

of women are political ends and nothing else; that the education of the child, that the preservation of the purity of the home, that the care for the insane and the idiot and the blind and the deaf and the ruined and deserted, are not only political ends but are the chief political ends for which this political body, the state, is created: and those who desire the help of women in the administration of the state desire it because of the ability which could write such a letter as that on the wrong side, and because the qualities of heart and brain which God has given to understand this class of political ends better than He has given it to the masculine heart and brain are needed for their administration.

I have no word of disrespect for Mrs. Leonard, but I say that, in spite of herself and her letter, her life and her character are the most abundant and ample refutation of the belief which she erroneously thinks she entertains. Nobody invites these ladies to a contest of bayonets; nobody who believes that government is a matter of mere physical force asks the co-operation of woman in its administration. It is because government is a conflict of such arguments as that letter states on the one side, because the object of government is the object to which this lady's own life is devoted, that the friends of woman suffrage and of this amendment ask that it shall be adopted.

Mr. VEST. Mr. President, my great personal respect for the Senator from Massachusetts has given me an interval of enforced silence, and I have only to say that if I should print my desultory remarks I should be compelled to omit his interruption for fear that the amendment would be larger than the original bill. [Laughter.]

I fail to see that anything which has fallen from the distinguished Senator has convicted Mrs. Clara Leonard of inconsistency or has added anything to the argument upon his side of the question. I have never said or intimated that there were women who were not credible witnesses. I have never thought or intimated that there were not women who were competent to administer the affairs of State or even to lead armies. There have been such women, and I believe there will be to the end of time, as there have been effeminate men who have been better adapted to the distaff and the spindle than to the sword or to statesmanship. But these are exceptions in either sex.

If this lady have, as she unquestionably has, the strength of intellect conceded to her by the Senator from Massachusetts and evidenced by her own production, her judgment of woman is worth that of a continent of men. The best judge of any woman is a woman. The poorest judge of any woman is a man. Let any woman with defect or flaw go amongst a community of men and she will be a successful impostor. Let her go amongst a community of women and in one instant the instinct, the atmosphere circumambient, will tell her story.

Mrs. Leonard gives us the result of her opinion and of her experience as to whether this right of suffrage should be conferred upon her own sex. The Senator from Massachusetts speaks of her evidence in a political campaign in Massachusetts and that her unaided and single evidence crushed down the governor of that great State. I thank the Senator for that statement. If Mrs. Leonard had been an office-holder and a voter not a single township would have believed the truth of what she uttered.

Mr. HOAR. She was an office-holder, and the governor tried to put her out.

Mr. VEST. Ah! but what sort of an office-holder? She held the office delegated to her by God himself, a ministering angel to the sick, the afflicted, and the insane. What man in his senses would take from woman this sphere? What man would close to her the charitable institutions and eleemosynary establishments of the country? That is part of her kingdom; that is part of her undisputed sway and realm. Is that the office to which woman suffragists of this country ask us now to admit them? Is it to be the director of a hospital? Is it to the presidency of a board of visitors of an eleemosynary institution? Oh, no; they want to be Presidents, to be Senators, and Members of the House of Representatives, and, God save the mark, ministerial and executive officers, sheriffs, constables, and marshals.

Of course, this lady is found in this board of directors. Where else should a true woman be found? Where else has she always been found but by the fevered brow, the palsied hand, the erring intellect, ay, God bless them, from the cradle to the grave the guide and support of the faltering steps of childhood and the weakening steps of old age!

Oh, no, Mr. President; this will not do. If we are to tear down all the blessed traditions, if we are to desolate our homes and firesides, if we are to unsex

our mothers and wives and sisters and turn our blessed temples of domestic peace into ward political-assembly rooms, pass this joint resolution. But for one I thank God that I am so old-fashioned that I would not give one memory of my grandmother or my mother for all the arguments that could be piled, Pelion upon Ossa, in favor of this political monstrosity.

I now propose to read from a pamphlet sent to me by a lady whom I am not able to characterize as a resident of any State, although I believe she resides in the State of Maine. I do not know whether she be wife or mother. She signs this pamphlet as Adeline D.T. Whitney. I have read it twice, and read it to pure and gentle and intellectual women. I say to-day it ought to be in every household in this broad land. It ought to be the domestic gospel of every true, gentle, loving, virtuous woman upon all this continent. There is not one line or syllable in it that is not written in letters of gold. I shall not read it, for my strength does not suffice, nor will the patience of the Senate permit, but from beginning to end it breathes the womanly sentiment which has made pure and great men and gentle and loving women.

I will venture to say, in my great admiration and respect for this woman, whether she be married or single, she ought to be a wife, and ought to be a mother. Such a woman could only have brave and wise men for sons and pure and virtuous women for daughters. Here is her advice to her sex. I am only sorry that every word of it could not be read in the Senate, but I have trespassed too long.

Mr. COCKRELL. Let it be printed in your remarks.

Mr. VEST. I shall ask that it be printed. I will undertake, however, to read only a few sentences, not of exceptional superiority to the rest, because every sentence is equal to every other. There is not one impure unintellectual aspiration or thought throughout the whole of it. Would to God that I knew her, that I could thank her on behalf of the society and politics of the United States for this production.

After all—

She says to her own sex—

After all, men work for women; or, if they think they do not, it would leave them but sorry satisfaction to abandon them to such existence as they could arrange without us.

Oh, how true that is; how true!

In blessed homes, or in scattered dissipations of show, amusement, or the worse which these shows and amusements are but terribly akin to, women give purpose to and direct the results of all men's work. If the false standards of living first urge them, until at length the horrible intoxication of the game itself drives them on further and deeper, are we less responsible for the last state of those men than for the first?

Do you say, if good women refused these things and tried for a simpler and truer living, there are plenty of bad ones who would take them anyhow, and supply the motive to deeper and more unmitigated evil? Ah, there come both answer and errand again. Raise the fallen—at least, save the growing womanhood—stop the destruction that rushes accelerating on, before you challenge new difficulty and danger with an indiscriminate franchise. Are not these bad women the very "plenty" that would out-balance you at the polls if you persist in trying the "patch-and-plaster" remedy of suffrage and legislation.

Recognize the fact, the law, that your power, your high commission, is inward, vital, formative and causal. Bring all questions of choice or duty to this test; will it work at the heart of things, among the realities and forces? Try your own life by this; remember that mere external is falsehood and death. The letter killeth. Give up all that is only of the appearance, or even chiefly so, in conscious delight and motive—in person, surrounding, pursuit. Let your self-presentation, your home-making and adorning, your social effort and interest, your occupation and use of talent, all shape and issue for the things that are essentially and integrally good, and that the world needs to have prevail. Until you can do this, and induce such doing, it is of little use to clamor for mere outward right or to contend that it would be rightly applied.

This whole pamphlet is a magnificent illustration of that stupendous and vital truth that the mission and sphere of woman is in the inward life of man; that she must be the building up and governing power that comes from

those better impulses, those inward secrets of the heart and sentiment that govern men to do all that is good and pure and holy and keep them from all that is evil.

Mr. President, the emotions of women govern. What would be the result of woman suffrage if applied to the large cities of this country is a matter of speculation. What women have done in times of turbulence and excitement in large cities in the past we know. Open that terrible page of the French Revolution and the days of terror, when the click of the guillotine and the rush of blood through the streets of Paris demonstrated to what extremities the ferocity of human nature can be driven by political passion. Who led those blood-thirsty mobs? Who shrieked loudest in that hurricane of passion? Woman. Her picture upon the pages of history to-day is indelible. In the city of Paris in those ferocious mobs the controlling agency, nay, not agency, but the controlling and principal power, came from those whom God has intended to be the soft and gentle angels of mercy throughout the world. But I have said more than I intended. I ask that this pamphlet be printed in my remarks.

The PRESIDING OFFICER. If there be no objection, the pamphlet will be printed in the RECORD as requested by the Senator from Missouri. The Chair hears no objection.

The pamphlet is as follows:

THE LAW OF WOMAN-LIFE.

The external arguments on both sides the modern woman question have been pretty thoroughly presented and well argued. It seems needless to repeat or recombine them; but in one relation they have scarcely been handled with any direct purpose. Justice and expediency have been the points insisted on or contested; these have not gone back far enough; they have not touched the central fact, to set it forth in its force and finality. The fact is original and inherent, behind and at the root of the entire matter, with all its complication and circumstance. We have to ask a question to which it is the answer, and whose answer is that of the whole doubt and dispute.

What is the law of woman-life?

What was she made woman for, and not man?

Shall we look back to that old third chapter of Genesis?

When mankind had taken the knowledge and power of good and evil into their own hands through the mere earthly wisdom of the serpent; when the woman had had her hasty outside way and lead, according to the story, and woe had come of it, what was the sentence? And was it a penance, or a setting right, or a promise, or all three?

The serpent was first dealt with. The narrow policy, the keen cunning, the little, immediate outlook, the expedient motive; all that was impersonated of temporary shift and outward prudence in mortal affairs, regardless of, or blind to, the everlasting issues; all, in short, that represented material and temporal interest as a rule and order—and is not man's external administration upon the earth largely forced to be a legislation upon these principles and economies?—was disposed of with the few words, "I will put enmity between thee and the woman."

Was this punishment—as reflected upon the woman—or the power of a grand retrieval for her? Not to man, who had been led, and who would be led again, by the woman, was the commission of holy revenge intrusted; but henceforth, "I will set the woman against thee." Against the very principle and live prompting of evil, or of mere earthly purpose and motive. "Between thy seed and her seed." Your struggle with her shall be in and for the very life of the race. "It," her life brought forth, "shall bruise thy head," thy whole power, and plan, and insidious cunning; "and thou shall bruise," shalt sting, torment, hinder, and trouble in the way and daily going, "his heel," his footstep. Thou, the subtle and creeping thing of the ground, shalt lurk after and threaten with crookedness and poison the ways of the men-children in their earth-toiling; the woman, the mother, shall turn upon thee for and in them and shall beat thee

Unto the woman He said, "I will greatly multiply thy sorrow and thy conception." The burden and the glory are set in one. The pain of the world shall be in your heart; the trouble, the contradiction of it, shall be against your love and insight. But your pain shall be your power;

you shall be the life-bearer; you shall hold the motive; yours shall be the desire, and your husband's the dominion. Therefore shall you bring your aspiration to him, that he may fulfill it for you. "Your desire shall be unto him, and he shall rule."

And unto Adam He said, "Because thou hast hearkened unto the voice of thy wife"—yes, and because thou wilt hearken—"thy sorrow shall be in the labor of the earth; the ground shall be cursed;" in all material things shall be cross and trouble, not against you, but "for your sake." "In your sorrow you shall eat of it all the days of your life." Your need and struggle shall be with external things, and with the ruling of them. "For your sake," that you may learn your mastery, inherit your true power, carry out with ease and understanding the desire and need of the race, which woman represents, discerns afar, and pleads to you.

And Adam bowed before the Lord's judgment; we are not told that he answered anything to that; but he turned to his wife, and in that moment "called her name Eve, because she was the mother of all living." Then and there was the division made; and to which, can we say, was the empire given? Both were set in conditions, hemmed in to divine and special work: man, by the stress and sorrow of the ground; woman, by the stress and sorrow of her maternity, and of her spiritual conception, making her truly the "mother of all the living."

At the beginning of human history, or tradition, then, we get the answer to our question: the law of woman-life is central, interior, and from the heart of things; the law of the man's life is circumferential, enfolding, shaping, bearing on and around, outwardly; wheel within wheel is the constitution of human power. It will be an evil day for the world when the nave shall leave its place and contend for that of the felloe. Iron-rimmed for its busy revolution and outward contact is the life and strength of man; but the tempered steel is at the heart and within the soul of the woman, that she may bear the silent pressure of the axle, and quietly and invisibly originate and support the entire onward movement. "The spirit of the living creature is in the wheels," and they can move no otherwise. "When the living creatures went, the wheels went by them; and when the living creatures were lifted up

from the earth, the wheels were lifted up." That was what Ezekiel saw in his vision.

There can be no going forward without a life and presence and impulse at the center; and in the organization of humanity there is where the place and power of woman have been put. For good or for evil, for the serpent or for the redeeming Christ, she must move, must influence, must achieve beforehand, and at the heart; she must be the mother of the race; she must be the mother of the Messiah. Not woman in her own person, but "one born of woman," is the Saviour. For everything that is formed of the Creator, from the unorganized stone to the thought of righteousness in the heart of the race, there must be a matrix; in the creation and in the recreation of His human child God makes woman and the soul of woman His blessed organ and instrument. When woman clears herself of her own perversions, her self-imposed limitations, returns to her spiritual power and place, and cries, "Behold the handmaid of the Lord; be it unto me according to Thy word," then shall the spirit descend unto her; then shall come the redemption.

Take this for the starting-point; it is the key.

Within, behind, antecedent to all result in action, are the place and office of the woman—by the law of woman-life. And all question of her deed and duty should be brought to this test. Is it of her own, interior, natural relation, putting her at her true advantage, harmonious with the key to which her life is set? I think this suffrage question must settle itself precisely upon this ground-principle, and that all argument should range conclusively around it. Judging so, we should find, I think, that not at the polls, where the last utterance of a people's voice is given—where the results of character, and conscience, and intelligence are shown—is her best and rightful work: on the contrary, that it is useless here, unless first done elsewhere. But where little children learn to think and speak—where men love and listen, and the word is forming—is the office she has to fill, the errand she has to do. The question is, can she do both? Is there need that she should do both? Does not the former and greater include the latter and less?

Hers are indeed the primary meetings: in her nursery, her home, and social circles; with other women, with young men, upon whose tone and character in her maturity her womanhood and motherhood join their beautiful and mighty influence; above all, among young girls—the "little women," to whom the ensign and commission are descending—is her undisputed power. Purify politics? Purify the sewers? But what if, first, the springs, and reservoirs, and conduits could be watched, guarded, filtered, and then the using be made clean and careful all through the homes; a better system devised and carried out for separating, neutralizing, destroying hurtful refuse? Then the poisonous gases might not be creeping back upon us through our enforced economies, our makeshifts and stop-gaps of outside legislation. For legislation is, after all, but cut-off, curb, and patch; an external, troublesome, partial, uncertain application of hindrance and remedy. What physician will work with lotion and plaster when he can touch, and control, and heal at the very seat of the disease?

It is the beginning of the fulfillment that women have waked to the consciousness that they have not as yet filled their full place in human life and affairs. Only has not the mistake been made of contending with and grappling results, when causes were in their hands? Have they not let go the mainsprings to run after and effectually push with pins the refractory cogs upon the wheel-rims?

Woman always deserts herself when she puts her life and motive and influence in mere outsides. Outsides of fashion and place, outsides of charm and apparel, outsides of work and ambition—she must learn that these are not her true showing; she must go back and put herself where God has called her to be with Himself, at the silent, holy inmost; then we shall feel, if not at once, yet surely soon or some time, a new order beginning. He, the Father of all, gives it to us to be the motherhood. That is the great solving and upraising word; not limited to mere parentage, but the law of woman-life. For good or for evil she mothers the world.

Not all are called to motherhood in the literal sense, but all are called to the great, true motherhood in some of its manifold trusts and obligations. "*Noblesse oblige*;" you can not lay it down. "More are the

children of the desolate than of her who hath a husband." All the little children that are born must look to womanhood somewhere for mothering. Do they all get it? All the works and policies of men look back somewhere for a true "desire" toward and by which only they can rule. Is the desire of the woman—of the home, the mother-motive of the world and human living—kept in the integrity and beauty for which it was intrusted to her, that it might move the power of man to noble ends?

Do you ask the governing of the nation? You have the making of the nation. Would you choose your statesmen? First make your statesmen.

Indeed the whole cause on trial may be summarily ended by the proving of an alibi, an elsewhere of demand. Is woman needed at the caucuses, conventions, polls? She is needed, at the same time, elsewhere. Two years of time and strength, of thought and love, from some woman, are essential for every little human being, that he may even begin a life. When you remember that every man is once a little child, born of a woman, trained—or needing training—at a woman's hands; that of the little men, every one of whom takes and shapes his life so, come at length the hand for the helm, the voice for the law, and the arm to enforce law—what do you want more for a woman's opportunity and control?

Which would you choose as a force, an advantage, in settling any question of public moment, or as touching your own private interest through the general management—the right to go upon election day and cast one vote, or a hold beforehand upon the individual ear and attention of each voter now qualified? The ability to present to him your argument, to show him the real point at issue, to convince and persuade him of the right and lasting, instead of the weak and briefly politic way? This initial privilege is in the hands of woman; assuming that she can be brought to feel and act as a unit, which appears to be what is claimed for her in the argument for her regeneration of the outer political world.

But already and separately, if every intelligent, conscientious woman can but reach one man, and influence him from the principle involved

—from her interior perception of it, kept pure on purpose from bias and temptation that assail him in the outside mix and jostle—will she not have done her work without the casting of a ballot? And what becomes of "taxation without representation," when, from Eden down, Eve can always plead with Adam, can have the first word instead of the last—if she knows what that first word is, in herself and thence in its power with him—can beguile him to his good instead of to his harm, as indeed she only meant to do in that first ignorant experiment? Would it be any less easy to qualify for and accomplish this than to convince and outnumber in public gathering not only bodies of men but the mass of women that will also have to be confronted and convinced or overborne?

Preconceived opinions, minds made up, men not so easily beguiled to the pure good, you say? Woman quite as apt to make mistakes out of Paradise as in? That only returns us to the primal need and opportunity. Get the man to listen to you before his mind is made up—before his manhood is made up; while it is in the making. That is just the power and place that belong to you, and you must seize and fill. It is your natural right; God gave it to you. "The seed of the woman shall bruise the serpent's head."

We can not do all in one day, and in such a day of the world as this. We plant trees for posterity where forests have been laid waste and the beautiful work of life is to be done over again; we can not expect to see our fruit in souls and in the nation at less cost of faith and time. Take care, then, of the little children: the men children, to make men of them; the women children—oh, yes, even above all—to make ready for future mothering—to snatch from the evil that works over against pure womanliness. Until you have done this let men fend for themselves in rough outsides a little longer; except, perhaps, as wise, able women whom the trying transition time calls forth may find fit way and place for effort and protest—there is always room for that, and noble work has been and is being done; but do not rear a new generation of women to expect and desire charges and responsibilities reverse of their own life-law, through whose perfect fulfillment alone may the future clean place be made for all to work in.

Is there excess of female population? Can not all expect the direct rule of a home? Is not this exactly, perhaps, just now, for the more universal remedial mothering that in this age is the thing immediately needed? Let her who has no child seek where she can help the burdened mother of many; how she can best reach with influence, and wisdom, and cherishing, the greatest number—or most efficiently a few—of these dear, helpless, terrible little souls, who are to make, in a few years, a new social condition; a better and higher, happier and safer, or a lower, worse, bitterer, more desperately complicated and distressful one.

"Desire earnestly the best gifts," said Saint Paul, after enumerating the gifts of teaching and prophecy and authority; "and I show you," he goes on, "a yet more excellent way." Charity—not mere alms, or toleration, or general benignity, out of a safe self-provision; but *caritas*—nearness, and caring, and loving,—the very essence of mothering; the way to and hold of the heart of it all, the heart of the life of humanity. "Keep thy heart with all diligence; for out of it are the issues of life." That is the first word; it charges womanhood itself, which must be set utterly right before it can take hold to right the world. Here are at once task and mission and rewarding sway.

Woman has got off the track; she must see that first, and replace herself. We are mothering the world still; but we are mothering it, in a fearfully wide measure, all wrong.

Sacrifice is the beginning of all redemption. We must give up. We must even give up the wish and seeming to have a hand in things, that we may work unseen in the elements, and make them fit and healthful; that daily bread and daily life may be sweet again in dear, old, homely ways, and plentiful with all truly blessed opportunities. We are not to organize the world, or to conquer it, or to queen it. We are just to take it again and mother it. If woman would begin that, search out the cradles—of life and character—and take care of the whole world of fifty years hence in taking care of them, calling upon men and the state, when needful, to authorize her action and furnish outward means for it—I wonder what might come, as earnest of good, even in this our day, in which we know not our visitation?

And here again come allowance and exception for what women can always do when this world-mothering forces an appeal to the strength and authority of man. Women have never been prevented from doing their real errands in the world, even outside the domestic boundary. They have defended their husbands' castles in the old chivalrous times, when the male chivalry was away at the crusades. They have headed armies when Heaven called them; only Heaven never called all the women at once; but when the king was crowned, the mission done, they have turned back with desire to their sheltered, gentle, unobtrusive life again. There has no business to be a standing army of women; not even a standing political army. Women have navigated and brought home ships when commanders have died or been stricken helpless upon the ocean; they have done true, intelligent, patient work for science, art, religion; and those have done the most who have never stopped to contend first, whether a woman, as such, may do it or not.

Look at what Dorothea Dix has done, single-handed, single-mouthed, in asylums and before legislatures. Women have sat on thrones, and governed kingdoms well, when that was the station in life to which God called them. If Victoria of England has been anything, she has been the mother of her land; she has been queen and protecting genius of its womanhood and homes. And when a woman does these things, as called of God—not talks of them, as to whether she may make claim to do them—she carries a weight from the very sanctity out of which she steps, as woman, that moves men unlike the moving of any other power. Shall she resign the chance of doing really great things, of meeting grand crises, by making herself common in ward-rooms and at street-corners, and abolishing the perfect idea of home by no longer consecrating herself to

If individual woman, as has been said, may gain and influence individual man, and so the man-power in affairs—a body of women, purely as such, with cause, and plea, and reason, can always have the ear and attention of bodies of men; but to do this they must come straight from their home sanctities, as representing them—as able to represent them otherwise than men, because of their hearth-priestesshood; not as politicians, bred and hardened in the public arenas.

That the family is the heart of the state, and that the state is but the widened family, is the fact which the old vestal consecration, power, and honor set forth and kept in mind.

The voice which has of late been so generally conceded to women in town, decisions as regarding public schools, is an instance of the fittingness of relegating to them certain interests of which they should know more than men, because—applying the key-test with which we have started—it has direct relation to and springs from their motherhood. But can one help suggesting that if the movement had been to place women, merely and directly, upon the committees, by votes of men who saw that this work might be in great part best done by them; if women had asked and offered for the place without the jostle of the town-meeting, or putting in that wedge for the ballot—the thing might have been as readily done, and the objection, or political precedent, avoided.

It is not the real opportunity, when that arises or shows itself in the line of her life-law, that is to be refused for woman. It is the taking from internal power to add to external complication of machinery and to the friction of strife. Let us just touch upon some of the current arguments concerning these external impositions which one set is demanding and the other entreating against.

If voting is to be the chief power in woman's hands, or even a power of half the moment that is contended for it, it will grow to be the motive and end, the all-absorbing object, with women that it is with men.

The gubernatorial canvass, the presidential year, these will interrupt and clog all home business, suspend decisions, paralyze plans, as they do with men, or else we shall not be much, as thorough politicians, after all. And if we talk of mending all that, of putting politics in their right place, and governing by pure principle instead of party trick, and stumping and electioneering, we go back in effect to the acknowledgment that only in the interior work, and behind politics, can women do better things at all; which, precisely, was to be demonstrated.

Think, simply, of election day for women.

Would it be so invariably easy a thing for a home-keeper to do, at the one opportunity of the year, or the four years, on a particular day, her duty in this matter? It is easy to say that it takes no more time than a hundred other things that some do; but setting apart all the argument that previous time and strength must have been spent in properly qualifying, how many of the hundred other things are done now without interruption, postponement, hindrance, through domestic contingencies? or are there a hundred other things done when the home contingencies are really met by a woman? A woman's life is not like a man's. That a man's life may be—that he may transact his out-door business; keep his hours and appointments; may cast his vote on election day; may represent wife and children in all wherein the community cares for, or might injure him and them—the woman, some woman, must be at the home post, that the home order may go on, from which he derives that command of time, and freedom from hindering necessities, which leave him to his work. And so, as the old proverb says, while man's work is from sun to sun—made definite, a matter to which he can go forth, and from which he can come in—a woman's work, of keeping the place of the forthgoing and incoming, is never done, from the very nature and ceaseless importance of it.

Must she go to the polls, sick or well, baby or no baby, servant or no servant, strength or no strength, desire or no desire? If she have cook and housemaid they are to go also, and number her two to one, anyway; probably on election day, which they would make a holiday, they would—as at other crises, of birth, sickness, death, house-cleaning, which should occur in no first-class families—come down upon her with their appropriate *coup d'état*, and "leave;" making the State-stroke, in this instance, of scoring three votes, two dropped and one lost, for the irrepressible side.

How will it be when Norah, and Maggie, and Katie have not only their mass and confession, their Fourth-of-July and Christmas, their mission-weeks, their social engagements and family plans, and their appointments with their dress-makers, to curtail your claims upon their bargained time and service, but their share in the primary meetings and caucuses, committees, and torch-light processions, and mass meetings? For what shall prevent the excitements, the pleasurings, the runnings

hither and thither, that men delight in from following in the train of politics and parties with the common woman? Perhaps it may even be discovered, to the still further detriment of our already painfully hampered and perplexed domestic system, that the pursuit of fun, votes, offices, is more remunerative, as well as gentlewomanly—as Micawber might express it—than the cleansing of pots and pans, the weekly wash, or the watching of the roast. Perhaps in that enfranchised day there will be no Katies and Maggies' and the Norahs will know their place no more. Then the enlightened womanhood may have to begin at the foundation and glorify the kitchen again. And good enough for her, in the wide as well as primitive sense of the phrase, and a grand turn in the history that repeats itself toward the old, forgotten, peaceful side of the cycle it may be!

But the argument does not rest upon any such points as these. It rests upon the inside nature of a woman's work; upon the need there is to begin again to-day at the heart of things and make that right; upon the evident fact that this can be done none too soon or earnestly, if the community and the country are not to keep on in the broad way to a threatened destruction; and upon the certainty that it can never be done unless it is done by woman, and with all of woman's might. Not by struggles for new and different place, but by the better, more loving, more intelligent, deep-seeing, and deep-feeling filling of her own place, that none will dispute and none can take from her. We are not where woman was in the old brutal days that are so often quoted; and we shall not, need not, return to that. Christianity has disposed of that sort of argument. We are on a vantage ground for the doing of our real, essential work better than it has been done ever before in the history of the world; and we are madly leaving our work and our vantage together.

The great step made by woman was in the generation preceding this one of restlessness—the restlessness that has come through the first feeling of great power. It was made in the time when women learned physiology, that they might rear and nurse their families and help their neighborhoods understandingly; science, that they might teach and answer little children, and share the joy of knowledge that was spreading swiftly in the earth; political history and economy, that they

might listen and talk to their brothers and husbands and sons, and leaven the life of the age as the bread in the mixing; business figures, rules, and principles, that they might sympathize, counsel, help, and prudentially work with and honestly strengthen the bread-winners. The good work was begun in the schools where girls were first told, as George B. Emerson used to tell us Boston girls, that we were learning everything he could teach us, in order to be women: wives, mothers, friends, social influencers, in the best and largest way possible. Women grew strong and capable under such instruction and motive. Are their daughters and grand-daughters about to leap the fence, leave their own realm little cared for—or doomed to be—undertake the whole scheme of outside creation, or contest it with the men? Then God help the men! God save the Commonwealth!

We are past the point already where homes are suffering, or liable to suffer, neglect or injury; they are already left unmade. Shall this go on? Between frivolities and ambitions, between social vanities, and shows, and public meddling's and mixings—for where one woman is needed and doing really brave, true work, there are a hundred rushing forth for the mere sake of rushing—is the primitive home, the power of heaven upon earth to slip away from among us? Let us not build outsides which have no insides, let us not put a face upon things which has no reality behind it. Beware lest we make the confusion that we need the suffrage to help us unmake; lest we tear to pieces that we may patch again. Crazy patchwork that would be, indeed!

Are women's votes required because men will not legislate away evils that they do not heartily wish away? Is government corrupted because men desire shield and opportunity for dishonest speculation; authority and countenance for nefarious combinations? The more need to go to work at the beginning rather than to plunge into the pitch and be defiled; more need to make haste and educate a better generation of men, if it be so we can not, except *vi et armis*, influence the generation that is. But do you think that if women are in earnest—enough in earnest to give up, as they seem to be to demand—they might not bring their real power to bear even upon these evil things, in their root and inception, and even now? Suppose women would not live in

houses, or wear jewels and gowns, that are bought for them out of wicked millions made upon the stock exchange?

Suppose they would stop decorating their dwellings to an agony, crowding them hurriedly with this and that of the last and newest, just because it is last and new, making a show and rivalry of what is not a true-grown beauty of a home at all, but a mere meretriciousness; suppose they would so set to work and change society that displays and feasting, which use up at every separate one a year's comfortable support for a quiet, modest family, should be given up as vulgarities; that people should care for, and be ready for, a true interchange of life and thought, and simple, uncrowded opportunities for these; suppose women would say, "No; I will not blaze at Newport, or run through Europe dropping American eagles or English sovereigns after me like the trail of a comet, or the crumbs that Hop-'o-my-thumb let fall from his pocket that the people at home might track the way he had gone; because if I have money, there is better work to be done with it; and I will not have the money that is made by gambling manipulations and cheats."

Do you think this would have no influence? More than that, and further back, and lowlier down, suppose they should say, every one, "I will not have the new, convenient house, the fresh carpetings, the pretty curtains, or even the least, most fitting freshness, until I know the means are earned for me with honest service to the world, and by no lucky turn of even a small speculation." Further back yet, suppose them to declare, "I will not have the home at all, nor my own happiness, unless it can be based and builded on the kind of life-work that helps to make a real prosperity; that really goes to the building and safe-keeping of a whole nation of such homes." Would there be no power in that? Would it not be a kind of woman-suffrage to settle the very initials of all that ever bears upon the public question? And to bring that sort of woman on the stage, and to the front, is there not enough work to do, and enough "higher education" to insist on and secure?

After all, men work for women; or, if they think they do not, it would leave them but sorry satisfaction to abandon them to such existence as

they could arrange without us. In blessed homes, or in scattered dissipations of show, amusement, or the worse which these shows and amusements are but terribly akin to, women give purpose to and direct the results of all men's work. If the false standards of living first urge them, until at length the horrible intoxication of the game itself drives them on further and deeper, are we less responsible for the last state of those men than for the first?

Do you say, if good women refused these things and tried for a simpler and truer living, there are plenty of bad ones who would take them anyhow, and supply the motive to deeper and more unmitigated evil? Ah, there come both answer and errand again. Raise the fallen—at least save the growing womanhood—stop the destruction that rushes accelerating on, before you challenge new difficulty and danger with an indiscriminate franchise. Are not these bad women the very "plenty" that would out-balance you at the polls, if you persist in trying the "patch-and-plaster" remedy of suffrage and legislation?

Recognize the fact, the law, that your power, your high commission, is inward—vital—formative, and casual. Bring all questions of choice or duty to this test, will it work at the heart of things, among the realities and forces? Try your own life by this; remember that mere external is falsehood and death. The letter killeth. Give up all that is only of the appearance—or even chiefly so, in conscious delight and motive—in person, surrounding pursuit. Let your self-presentation, your home-making and adorning, your social effort and interest, your occupation and use of talent, all shape and issue for the things that are essentially and integrally good, and that the world needs to have prevail. Until you can do this, and induce such doing, it is of little use to clamor for mere outward right, or to contend that it would be rightly applied.

Work as you will, and widely as you can, for schools, in associations, in everything whose end is to teach, enlighten, enlarge women, and so the world. Help and protect the industries of women; but keep those industries within the guiding law of woman-life. Do not throw down barriers that take down safeguards with them; that make threatening breaches in the very social structure. If women must serve in shops, demand and care for it that it shall be in a less mixed, a more shielded

way than now. The great caravansaries of trade are perilous by their throng, publicity, and weariness. There used to be women's shops; choice places, where a woman's care and taste had ruled before the counters were spread; where women could quietly purchase things that were sure to be beautiful or of good service; there were not the tumult and ransacking that kill both shop-girl and shopper now.

This is one instance, and but one, of the rescuing that ought to be attempted. There ought at least to be distinct women's departments, presided over by women of good, motherly tone and character, in the places of business which women so frequent, and where the thoughtful are aware of much that makes them tremble. And surely a great many of the girls and women who choose shop-work, because they like its excitement, ought rather to be in homes, rendering womanly service, and preparing to serve in homes of their own—leaving their present places to young men who might perhaps begin so to earn the homes to offer them. Will not this apply all the way up, into the arts and the professions even? There must needs be exceptional women perhaps; there are, and will be, time and errand and place for them; but Heaven forbid that they should all become exceptional.

Once more, work for these things that are behind, and underlie; believing that woman's place is behind and within, not of repression, but of power; and that if she do not fill this place it will be empty; there will be no main spring. Meanwhile she will get her rights as she rises to them, and her defenses where she needs them; everything that helps, defends, uplifts the woman uplifts man and the whole fabric, and man has begun to find it out. If he "will give the suffrage if women want it," as is said, why shall he not as well give them the things that they want suffrage for and that they are capable of representing? Believe me, this work, and the representation which grows out of it, can no longer be done if we attempt the handling of political machinery—the making of platforms, the judging of candidates, the measuring and disputation of party plans and issues, and all the tortuous following up of public and personal political history.

Do you say, men have their individual work in the world, and all this beside and of it, and that therefore we may? Exactly here comes in

again the law of the interior. Their work is "of it"—falls in the way. They rub against it as they go along. Men meet each other in the business thoroughfares, at the offices and the street corners; we are in the dear depths of home. We are with the little ones, of whom is not this kingdom, but the kingdom of heaven, which we, through them, may help to come. This is just where we must abandon our work, if we attempt the doing of theirs. And here is where our prestige will desert us, whenever great cause calls us to speak from out our seclusions, and show men, from our insights and our place, the occasion and desire that look unto their rule. They will not listen then; they will remand us to the ballot-box.

"Inside politics" is a good word. That is just where woman ought to be, as she ought to be inside everything, insisting upon and implanting the truth and right that are to conquer. And she can not be inside and outside both. She can not do the mothering and the home-making, the watching and ministry, the earning and maintaining hold and privilege and motive influence behind and through the acts of men—and all the world-wide execution of act beside. Therefore, we say, do not give up the substance which you might seize, for the shadow which you could not hold fast if you were to seem to grasp it. Work on at the foundations. Insist on truth and right; put them into all your own life, taking all the beam out of your own eye before demanding—well, we will say the mote, for generosity's sake, and for the holy authority of the word—out of the brother's eyes.

Establish pure, honest, lovely things—things of good report—in the nurseries, the schools, the social circles where you reign, and the outside world and issue will take form and heed for themselves. The nation, of which the family is the root, will be made, and built, and saved accordingly. Every seed hath its own body. The seed of the woman shall bruise the serpent-head of evil, and shall rise triumphant to become the ennobled, recreated commonwealth. Then shall pour forth the double paean that thrills through the glorious final chorus of Schumann's Faust—men and women answering in antiphons—

"The indescribable,

Here it is done;
The ever-womanly
Beckons us on!"

Then shall Mary—the fulfilled, ennobled womanhood—sing her Magnificat; standing to receive from the Lord, and to give the living word to the nations:

"My soul doth magnify the Lord,
And my spirit hath rejoiced in God, my
Saviour.
For He hath looked upon the low estate of
His handmaiden;
For behold, from henceforth all
generations shall call me blessed,
For He that is mighty hath done to me
great things;
And holy is His name.
And His mercy is unto generations and
generations."

The coming new version of the Old Testament gives us, we are told, among other more perfect renderings, this one, which fitly utters charge and promise:

"The Lord gave the word;
Great was the company
Of those
That published it."
"The Lord giveth the word;

And the women that bring
Glad tidings
Are a great host."

ADELINE D.T. WHITNEY.

Mr. BLAIR. Mr. President, before the vote is taken I desire to say but a word. Early in the session I had the opportunity of addressing the Senate upon the general merits of the question. I said then all that I cared to say; but I wish to remind the Senate before the vote is taken that the question to be decided is not whether upon the whole the suffrage should be extended to women, but whether in the proper arena for the amendment of the Constitution ordained by the Constitution itself one-third of the American people shall have the opportunity to be heard in the discussion of such a proposed amendment—whether they shall have the opportunity of the exercise of the first right of republican government and of the American and of any free citizen, the submission to the popular tribunal, which has alone the power to decide the question whether on the whole, upon a comparison of the arguments pro and con bearing one way and the other upon this great subject, the American people will extend the suffrage to those who are now deprived of it.

That is the real question for the Senate to consider. It is not whether the Senate would, itself, extend the suffrage to women, but whether those men who believe that women should have the suffrage shall be heard, so that there may be a decision and an end made of this great subject, which has now been under discussion more than a quarter of a century, and to-day for the first time even in the legislative body which is to submit the proposition to the country for consideration has there been a prospect of reaching a vote.

I appeal to Senators not to decide this question upon the arguments which have been offered here to-day for or against the merits of the proposition. I appeal to them to decide this question upon that other principle to which I have adverted, whether one-third of the American people shall be permitted

to go into the arena of public discussion of the States, among the people of the States, and before the Legislatures of the States, and be heard upon the issue, shall the general Constitution be so amended as to extend this right of suffrage? If, with this opportunity, those who believe in woman suffrage fail, they must be content; for I agree with the Senators upon the opposite side of the Chamber and with all who hold that if the suffrage is to be extended at all, it must be extended by the operation of existing law. I believe it to be an innate right; yet an innate right must be exercised only by the consent of the controlling forces of the State. That is all that woman asks. That is all that any one asks who believes in this right belonging to her sex.

As bearing simply upon the question whether there is a demand by a respectable number of people to be heard on this issue, I desire to read one or two documents in my possession. I offer in this connection, in addition to the innumerable petitions which have been placed before the Senate and before the other House, the petition of the Women's Christian Temperance Union. I take it that no Senator will raise the question whether this organization be or be not composed of the very *élite* of the women of America. At least two hundred thousand of the Christian women of this country are represented in this organization. It is national in its character and scope; it is international, and it exists in every State and in every Territory of the Union. By their officers, Miss Frances E. Willard, the president; Mrs. Caroline B. Buell, corresponding secretary; Mrs. Mary A. Woodbridge, recording secretary; Mrs. L.M.N. Stevens, assistant recording secretary; Miss Esther Pugh, treasurer; Mrs. Zerelda G. Wallace, superintendent of department of franchise, and Mrs. Henrietta B. Wall, secretary of department of franchise, they bring this petition to the Senate. It has been indorsed by the action of the body at large. They say:

Believing that governments can be just only when deriving their powers from the consent of the governed, and that in a government professing to be a government of the people, all the people of a mature age should have a voice, and that all class-legislation and unjust discrimination against the rights and privileges of any citizen is fraught with danger to the republic, and inasmuch as the ballot in popular governments is a most potent element in all moral and social reforms:

We, therefore, on behalf of the hundreds of thousands of Christian women engaged in philanthropic effort, pray you to use your influence, and vote for the passage of a sixteenth amendment to the Constitution of the United States, prohibiting the disfranchisement of any citizen on the ground of sex.

I have also just received, in addition to other matter before the Senate, the petition of the Indianapolis Suffrage Association, or of that department of the Women's Christian Temperance Union which has the control of the discussion and management of the operations of the union with reference to the suffrage. I shall not take the time of the Senate to read it. The letter transmitting the petition is as follows:

INDIANAPOLIS, IND., *January 12, 1886.*

DEAR SIR: I have sent the inclosed petitions and arguments to every member on the Committee on Woman Suffrage, hoping if they are read they may have some influence in securing a favorable report for the passage of a sixteenth amendment, giving the ballot to women.

Will you urge upon the members of the committee the importance of their perusal?

Respectfully,

MRS. Z.G. WALLACE, *Sup't Dep't for Franchise of N.W.C.T.U.*

Hon. H.W. BLAIR.

I will add in this connection a letter lately received by myself, written by a lady who may not be so distinguished in the annals of the country, yet, at the same time, she has attained to such a position in the society where she lives that she holds the office of postmaster by the sanction of the Government, and has held it for many years. She seems, as other ladies have seemed, to possess the capacity to perform the duties of this governmental office, so far as I know, to universal satisfaction. At all events, it is the truth that no woman, so far as I have ever heard, holding the office of postmaster, and no woman who has ever held the position of clerk under the Government, or who has ever discharged in State or in Nation any

executive or administrative function, has as yet been a defaulter, or been guilty of any misconduct or malversation in office, or contributed anything by her own conduct to the disgrace of the appointing or creating official power. This woman says:

NEW LONDON, WIS., *January 18, 1887.*

Hon. H.W. BLAIR, *Washington, D.C.:*

DEAR SIR: Thank you for the address you sent; also for your kindness in remembering us poor mortals who can scarcely get a hearing in such an august body as the Senate of these United States, though I have reason to believe we furnished the men to fill those seats.

There is something supremely ridiculous in the attitude of a man who tells you women are angelic in their nature; that it is his veneration for the high and lofty position they occupy which hopes to keep them forever from the dirty vortex of politics, and then to see him glower at her because she wishes politics were not so dirty, and believes the mother element, by all that makes humanity to her doubly sacred, is just what is needed for its purification.

We have become tired of hearing and reiterating the same old theories and are pleased that you branched out in a new direction, and your argument contains so much which is new and fresh.

We do care for this inestimable boon which one-half the people of this Republic have seized, and are claiming that God gave it to them and are working very zealously to help God keep it for them. (We will remember the Joshua who leads us out of bondage.)

I used to think the Prohibition party would be our Moses, but that has only gone so far as to say, "You boost us upon a high and mighty pedestal, and when we see our way clear to pull you after us we will venture to do so; but you can not expect it while we run any risk of becoming unpopular thereby."

Liberty stands a goddess upon the very dome of our Capitol, Liberty's lamp shines far out into the darkness, a beacon to the oppressed, a dazzling ray of hope to serf and bondsmen of other climes, yet here a

sword unforbidden is piercing the heart of the mother whose son believes God has made us to differ so that he can go astray and return. But, alas, he does not return.

Help us to stand upon the same political footing with our brother; this will open both his and our eyes and compel him to stand upon the same moral footing with us. Only this can usher in millenium's dawn.

This letter is signed, by Hannah E. Patchin, postmaster at New London, Wis.

As bearing upon the extent of this agitation, I have many other letters of the same character and numerous arguments by women upon this subject, but I can not ask the attention of the Senate to them, for what I most of all want is a vote. I desire a record upon this question. However, I ought to read this letter, which is dated Salina, Kans., December 13, 1886. The writer is Mrs. Laura M. Johns. She is connected with the suffrage movement in that State, and as bearing upon the extent of this movement and as illustrative not only of the condition of the question in Kansas, but very largely throughout the country, perhaps, especially throughout the northern part of the country, I read this and leave others of like character, as they are, because we have not the time:

I am deeply interested in the fate of the now pending resolution proposing an amendment to the Constitution of the United States, conferring upon women the exercise of the suffrage. The right is theirs now.

I see, in speaking to that resolution on December 8 in the Senate, that you refer to Miss Anthony's experiences in the October campaign in Kansas as evidence in part of the growth of interest in this movement, and of sentiment favorable to it, and I am writing now just to tell you about it.

When I planned and arranged for those eleven conventions in eleven fine cities of this State, I thought I knew that the people of Kansas felt a strong interest in the question of woman suffrage; but when with Miss Anthony and others I saw immense audiences of Kansas people

receive the gospel of equal suffrage with enthusiasm, saw them sitting uncomfortably crowded, or standing to listen for hours to arguments in favor of suffrage for women: saw the organization of strong and ably officered local, county, and district associations of the best and "brainiest" men and women in our first cities for the perpetuation of woman suffrage teachings; saw people of the highest social, professional, and business position give time, money and influence, to this cause; saw Miss Anthony's life work honored and her fêted and most highly commended, I concluded that I had before known but half of the interest and favorable sentiment in Kansas on this question. These meetings were very largely attended, and by all classes, and by people of all shades of religious and political belief. The representative people of the labor party were there, ministers, lawyers, all professions, and all trades.

No audiences could have been more thoroughly representative of the people; and as we held one (and more) convention in each Congressional district in the State, we certainly had, from the votes of those audiences in eleven cities, a truthful expression of the feeling of the people of the State of Kansas on this question. Many of the friends of the cause here are very willing to risk our fate to the popular vote.

In our conventions Miss Anthony was in the habit of putting the following questions to vote:

"Are you in favor of equal suffrage for women?"

"Do you desire that your Senators, INGALLS and PLUMB, and your seven Congressmen shall vote for the sixteenth amendment to the Federal Constitution?" and

"Do you desire your Legislature to extend municipal suffrage to women?"

In response there always came a rousing "yes," except when the vote was a rising one, and then the house rose in a solid body. Miss Anthony's call for the negative vote was answered by silence.

Petitions for municipal suffrage in Kansas are rolling up enormously. People sign them now who refused to do so last year. I tell you it is

catching. Many people here are disgusted with our asking for such a modicum as municipal suffrage, and say they would rather sign a petition asking for the submission of an amendment to our State constitution giving us State suffrage. We have speakers now at work all over the State, their audiences and reception are enthusiastic, and their most radical utterances in favor of woman are the most kindly received and gain them the most applause.

And further to the same effect. I shall offer nothing more of that kind, but I have come in possession of some data bearing upon the question of the intellect of woman. The real objection seems to me to be that she does not know enough to vote; that it is the ignorant ballot that is dangerous; but that is a subject which of course I have no time to go into. However, I have some data collected very recently, and at my request, by a most intelligent gentleman of the State of Maine. Either of the Senators from that State will bear witness as to the high character of this gentleman, Mr. Jordan. He sent the data to me a few days ago. They show the relative standing of the two sexes in the high schools in the State of Maine where they are being educated together, and in one of the colleges of that State:

High school No. 1.—Average rank on scale of 100.—1882: boys 88.7, girls 91; 1883: boys 88.2, girls 91.3; 1884: boys 88.8, girls 91.9 (of the graduating class 7 girls and 1 boy were the eight highest in rank for the four years' course); 1885: boys 88.6, girls 91.4 (eight highest in rank for four years' course, 4 boys and 4 girls); 1886: boys 88.2, girls 91 (eight highest in rank for four years' course, 7 girls and 1 boy).

High school No. 2.—Average rank on scale of 100.—1886: boys 90, girls 98 (six highest in rank for four years' course, 6 girls).

College.—Average rank for fall term of the junior year on the scale of 40.—1882: boys 37.75, girls 37.93; 1883: boys 38.03, girls 38.70; 1884: boys 38.18, girls 38.59; 1885: boys 38.33, girls 38.13.

With only this last exception the average of the girls and young ladies in the high schools and at this institution of liberal training is substantially higher than that of the boys. I simply give that fact in passing, and there leave the matter.

I desire in closing simply to call for the reading of the joint resolution. I could say nothing to quicken the sense of the Senate on the importance of the question about to be taken. It concerns one-half of our countrymen, one-half of the citizens of the United States, but it is more than that, Mr. President. This question is radical, and it concerns the condition of the whole human race. I believe that in the agitation of this question lies the fate of republican government, and in that of republican government lies the fate of mankind. I ask for the reading of the joint resolution.

The PRESIDING OFFICER. The joint resolution is before the Senate as in Committee of the Whole. It has been read. Does the Senator desire to have it read again?

Mr. BLAIR. Has it been read this afternoon?

The PRESIDING OFFICER. It has been.

Mr. BLAIR. That is all then. Now, I wish to have printed in the RECORD, by reason of the printed matter that has gone into the RECORD upon the other side, the arguments of Miss Anthony and her associates before the Senate committee, which is out of print as a document. These arguments are very terse and brief. I think it only just that woman, who is most interested, should be heard, at least under the circumstances when she has herself been heard on the other side through printed matter. It will not be burdensome to the RECORD, and I ask that this be done.

The PRESIDING OFFICER. The Chair hears no objection to the suggestion. The document will be printed in the RECORD.

The document is as follows:

ARGUMENTS BEFORE THE SELECT COMMITTEE ON WOMAN
SUFFRAGE, UNITED STATES SENATE, MARCH 7, 1884.

By a committee of the Sixteenth Annual Washington Convention of the National Woman Suffrage Association, in favor of a sixteenth amendment to the Constitution of the United States, that shall protect the right of women citizens to vote in the several States of the Union.

Order of proceeding.

The CHAIRMAN (Senator COCKRELL). We have allotted the time to be divided as the speakers may desire among themselves. We are now ready to hear the ladies.

Miss SUSAN B. ANTHONY. Mr. Chairman and gentlemen of the select committee: This is the sixteenth time that we have come before Congress in person, and the nineteenth annually by petitions. Ever since the war, from the winter of 1865-'66, we have regularly sent up petitions asking for the national protection of the citizen's right to vote when the citizen happens to be a woman. We are here again for the same purpose. I do not propose to speak now, but to introduce the other speakers, and at the close perhaps will state to the committee the reasons why we come to Congress. The other speakers will give their thought from the standpoint of their respective States. I will first introduce to the committee Mrs. Harriet R. Shattuck, of Boston, Mass.

REMARKS BY MRS. HARRIET R. SHATTUCK.

Mrs. SHATTUCK. Mr. Chairman and gentlemen: It seems as if it were almost unnecessary for us to come here at this meeting, because I feel that all we have to say and all we have to claim is known to you, and we can not add anything to what has been said in the past sixteen years.

But I should like to say one thing, and that is, that in my work it has seemed that if we could convince everybody of the motives of the suffragists we would go far toward removing prejudices. I know that those motives are very much misunderstood. Persons think of us as ambitious women, who are desirous for fame, and who merely come forward to make speeches and get before the public, or else they think that we are unfortunate beings with no homes, or unhappy wives, who are getting our livelihood in this sort of way. If we could convince every man who has a vote in this Republic that this is not the case, I believe we could go far toward removing the prejudice against us. If we could make them see that we are working here merely because we know that the cause is right, and we feel that we must work for it, that there is a power outside of ourselves which impels us onward, which says to us: go forward and speak to the people and try to bring them up to a sense of their duty and of our right. This is the belief that I have in regard to our position on this question. It is a matter of duty with us, and that is all.

In Massachusetts I represent a very much larger number of women than is supposed. It has always been said that very few women wish to vote. Believing that this objection, although it has nothing to do with the rights of the cause, ought to be met, the association of which I am president inaugurated last year a sort of canvass, which I believe never had been attempted before, whereby we obtained the proportion of women in favor and opposed to suffrage in different localities of our State. We took four localities in the city of Boston, two in smaller cities, and two in the country districts, and one also of school teachers in nine schools of one town. Those school teachers were unanimously in favor of suffrage, and in the nine localities we found that the proportion of women in favor was very large as against those opposed. The total of women canvassed was 814. Those in favor were 405; those opposed, 44; indifferent, 166; refused to sign, 160; not seen, 39. This, you see, is a very large proportion in favor. Those indifferent, and those who were not seen, were not included, because we claim that nobody can yet say that they are opposed or in favor until they declare themselves; but the 405 in favor against the 44 opposed were as 9 to 1. These canvasses were made by women who were of perfect

respectability and responsibility, and they swore before a justice of the peace as to the truth of their statements.

So we have in Massachusetts this reliable canvass of the number of women in favor as to those opposed, and we find that it is 9 to 1.

These women, then, are the class whom I represent here, and they are women who can not come here themselves. Very few women in the country can come here and do this work, or do the work in their States, because they are in their homes attending to their duties, but none the less are they believers in this cause. We would not any more than any man in the country ask a woman to leave her home duties to go into this work, but a few of us are so situated that we can do it, and we come here and we go to the State Legislatures representing all the women of the country in this work.

What we ask is, not that we may have the ballot to obtain any particular thing, although we know that better things will come about from it, but merely because it is our right, and as a matter of justice we claim it as human beings and as citizens, and as moral, responsible, and spiritual beings, whose voice ought to be heard in the Government, and who ought to take hand with men and help the world to become better.

Gentlemen, you have kept women just a little step below you. It is only a short step. You shower down favors upon us it is true, still we remain below you, the recipients of favors without the right to take what is our own. We ask that this shall be changed; that you shall take us by the hand and lift us up to the same political level with you, where we shall have rights with you, and stand equal with you before the law.

REMARKS BY MRS. MAY WRIGHT SEWALL.

Miss ANTHONY. I will now introduce to the committee Mrs. May Wright Sewall, of Indianapolis, who is the chairman of our executive committee.

Mrs. SEWALL. Gentlemen of the committee: Gentlemen, I believe, differ somewhat in their political opinions. It will not then be surprising, I suppose, that I should differ somewhat from my friend in regard to the knowledge that you probably possess upon our question. I do not believe that you know all that we know about the women of this country, for I believe that if you did know even all that I know, and my knowledge is much more limited than that of many of my sisters, long ago the sixteenth amendment, for which we ask, would have been passed through your influence.

I remember that when I was here two years ago and had the honor of appearing before the committee, who granted us, on that occasion, what you are so kind and courteous to grant on this occasion, an opportunity to speak before you, I told you that I represented at least seventy thousand women who had asked for the ballot in my State, and I tried then to remind the members of the committee that had seventy thousand Indiana men asked for any measure from the Congress that then occupied this Capitol, that measure would have secured the most deliberate consideration from their hands, and, in all probability, its passage by the Congress. Of that there can be no doubt.

I do not wish to exaggerate my constituency, but during the last two years, and since I had the honor of addressing the committee, the work of woman suffrage has progressed very rapidly in my State. The number of women who have found themselves in circumstances to work openly, and whose spirit has been drawn into it, has largely increased, and as the workers have multiplied the results have increased. While we have not taken the careful canvass that has been so wisely and judiciously taken in Massachusetts, so that I can present to you the exact number of women who would to-day appeal for suffrage, I know that I can, far within the bounds of possible truth, state that while I represented seventy thousand women in my State two years ago, who desired the adoption of the sixteenth amendment, I represent to-day twice that number.

Should any one come up from Indiana, pivotal State as it has been long called in national elections, saying that he represented the wish of one hundred and forty thousand Indiana men, gentlemen, would you scorn

his appeal? Would you treat it lightly? Not at all. You know that it would receive the most candid consideration. You know that it would receive not merely respectful consideration, but immediate and prompt and just action upon your part.

I have been told since I have reached Washington that of all women in the country Indiana women have the least to complain of, and the least reason for coming to the United States Capitol with their petitions and the statement of their needs, because we have received from our own Legislature such amendments and amelioration of the old unjust laws. In one sense it is true that we are the recipients in our own State of many civil rights and of a very large degree of civil equality. It is true that as respects property rights, and as respects industrial rights, the women of my own State may perhaps be the envy of all other women in the land, but, gentlemen, you have always told men that the greater their rights and the more numerous their privileges the greater their responsibilities. That is equally true of woman, and simply because our property rights are enlarged, because our industrial field is enlarged, because we have more women who are producers in the industrial world, recognized as such, who own property in their own names, and consequently pay taxes upon that property, and thereby have greater financial and larger social, as well as industrial and business interests at stake in our own commonwealth, and in the manner in which the administration of national affairs is conducted—because of all these privileges we the more need the power which shall emphasize our influence upon political action.

You know that industrial and property rights are in the hands of the law-makers and the executors of the laws. Therefore, because of our advanced position in that matter, we the more need the recognition of our political equality. I say the recognition of our political equality, because I believe the equality already exists. I believe it waits simply for your recognition; that were the Constitution now justly construed, and the word "citizens," as used in your Constitution, justly applied it would include us, the women of this country. So I ask for the recognition of an equality that we already possess.

Further, because of what we have we ask for more. Because of the duties that we are commanded to do, we ask for more. My friend has said, and it is true in some respects, that men have always kept us just a little below them where they could shower upon us favors, and they have always done that generously. So they have, but, gentlemen, has your sex been more generous in its favors to women than women have been generous toward your sex in their favors? Neither one can do without the other: neither can dispense with the service of the other; neither can dispense with the reverence of the other, with the aid of the other in domestic life, in social life. The men of this nation are rapidly finding that they can not dispense with the service of women in business life. I know that they are also feeling the need of what they call the moral support of women in their public life, and in their political life.

I always feel that it is not for women alone that I appeal. As men have long represented me, or assumed to do so, and as the men of my own family always have done so justly and most chivalrously, I feel that in my appeal for political recognition I represent them; that I represent my husband and my brother and the interest of the sex to which they belong, for you, gentlemen, by lifting the women of the nation into political equality would simply place us where we could lift you where you never yet have stood, upon a moral equality with us. Gentlemen, that is true. You know it as well as I. I do not speak to you as individuals; I speak to you as the representatives of your sex, as I stand here the representative of mine; and never until we are your equals politically will the moral standard for men be what it now is for women, and it is none too high. Let it grow the more elevated by our growth in spirituality, by every aspiration which we receive from the God whence we draw our life and whence we draw our impulses of life. Let our standard remain where it is and be more elevated. Yours must come up to match it, and never will it until we are your equals politically. So it is for men, as well as for women, that I make my appeal.

I know that there are some gentlemen upon this committee who, when we were here two years ago, had something to say about the rights of the States and of their disinclination to interfere with the rights of the

States in this matter. I have great sympathy with the gentlemen from the South, who, I hope, do not forget that they are representing the women of the South in their work here at the national capital. Already some Northern States are making rapid strides towards the enfranchisement of their women. The men of some of the Northern States see that they can no longer accomplish the purposes politically which they desire to accomplish without the aid of the women of their respective States. Washington is the third Territory that has added women to its voting force, and consequently to its political power at the national capital as well as its own capital. Oregon will undoubtedly, as her representative will tell you to-day, soon add its women to its voting force. The men who believe, that each State must be left to do this for itself will soon find that the balance of power between the North and South is destroyed, unless the women of the South are brought forward to add to the political force of the South as the women of the North are being brought forward to add to the political force of the North.

This should not be acted upon as a partisan measure. We do not appeal to you as Republicans or as Democrats. We have among us Republicans and Democrats; we have our party affiliations. We, of course, were reared with our brothers under the political belief and faith of our fathers, and probably as much influenced by that rearing as our brothers were. We shall go to strengthen both the political parties, neither one nor the other the more, probably. So that it is not as a partisan measure; it is as a just measure, which is our due, not because of what we are, gentlemen, but because of what you are, and because of what we are through you, of what you shall be through us; of what we, men and women, both are by virtue of our heritage and our one Father, our one mother eternal, the spirit created and progressive, that has thus far sustained us, and that will carry us and you forward to the action which we demand of you to take, and to the results which we anticipate will attend upon that action.

REMARKS BY MRS. HELEN M. GOUGAR.

Miss Anthony. I think I will call upon the other representative of the State of Indiana to speak now, Mrs. Helen M. Gougar, of Lafayette, Ind.

Mrs. Gougar. Gentlemen, we are here on behalf of the women citizens of this Republic, asking for political freedom. I maintain that there is no political question paramount to that of woman suffrage before the people of America to-day. Political parties would fain have us believe that tariff is the great question of the hour. Political parties know better. It is an insult to the intelligence of the present hour to say that when one-half of the citizens of this Republic are denied a direct voice in making the laws under which they shall live, that tariff, or that the civil rights of the negro, or any other question that can be brought up, is equal to the one of giving political freedom to women. So I come to ask you, as representative men, making laws to govern the women the same as the men of this country (and there is not a law that you make in the United States Congress in which woman has not an equal interest with man), to take the word "male" out of the constitutions of the United States and the several States, as you have taken the word "white" out, and give to us women a voice in the laws under which we live.

You ask me why I am inclined to be practical in my view of this question. In the first place, speaking from my own standpoint, I ask you to let me have a voice in the laws under which I shall live because the older empires of the earth are sending in upon our American shores a population drawing very largely from the asylums, yes, from the penitentiaries, the jails, and the poor-houses of the Old World. They are emptying those men upon our shores, and within a few months they are intrusted with the ballot, the law-making power in this Republic, and they and their representatives are seated in official and legislative positions. I, as an American-born woman, to-day enter my protest at being compelled to live under laws made by this class of men very largely, and myself being rendered utterly incapable of the protection that can only come from the ballot. While I would not have you take this right or privilege from those men whom we invite to our shores, I do ask you, in the face of this immense foreign immigration,

to enfranchise the tax-paying, intelligent, moral, native-born women of America.

Miss Anthony. And foreign women, too.

Mrs. Gougar. Miss Anthony suggests an amendment, and I indorse it most heartily, and foreign women too, because if we let a foreign man vote I say let the foreign woman vote. I am in favor of universal suffrage.

Gentlemen, I ask this as a matter of justice; I ask it because it is an insult to the intelligence of the present to draw the sex line upon any right whatever. I know there are many objections urged, and I am sure that you have considered this question; but I only make the demand from the standpoint, not of sex, but of humanity.

As a Northern woman, as a woman from Indiana, I know that we have the intelligent, thinking, cultured, pure, patriotic men and women with us. We have the women who are engaged in philanthropic enterprises. We have in our own State the signatures of over 5,000 of the school teachers asking for woman's ballot. I ask you if the United States Government does not need the voice of those 5,000 educated school teachers as much as it needs the voice of the 240 male criminals who are, on an average, sent out of the penitentiary of Indiana every year, who go to the ballot-box upon every question whatever, and make laws under which those school teachers must live, and under which the mothers of our State must keep their homes and rear their children?

On behalf of the mothers of this country I demand that their hands shall be loosened before the ballot-box, and that they shall have the privilege of throwing the mother heart into the laws that shall follow their sons not only to the age of majority that only has been made legal, but is never recognized, and so I ask you to let the mothers carry their influence in protecting laws around the footsteps of those boys, even after their hair has turned gray and they have seats in the United States Congress. I ask you to give them the power to throw protecting laws around those boys to the very confines of eternity. This can be done in no indirect way; it can not be done by the silent influence; it can not be done by prayer. While I do not underestimate the power of

prayer, I say give me my ballot on election day that shall send pure men, good men, intelligent men, statesmen, instead of the modern politician, into our legislative halls. I would rather have that ballot on election day than the prayers of all the disfranchised women in the universe.

So I ask you to loosen our hands. I ask you to let us join with you in developing this science of human government. What is politics after all but the science of government? We are interested in these questions, and we are investigating them already. We have our opinions. Recently an able man has said that we have been grandly developed physically and mentally, but as a nation we are a political infant. So we are, gentlemen; we are to-day in America politically simply an infant. Why is it? It is because we have not recognized God's family plan in government—man and woman together. He created the male and female, and gave them dominion together. We have dominion in every other interest in society, and why shall we not stand shoulder to shoulder and have dominion, in the science in government, in making the laws under which we shall live?

We are taxed to support this Government—this immense Capitol building is built largely from the industries of the tax-paying women of this country—and yet we are denied the slightest voice in distributing our taxes. Our foreparents did not object to taxation, but they did object to taxation without representation, and we, as thinking, industrious, active American women, object to taxation without representation. We are willing to contribute our share to the support of this Government, as we always have done, but we have a right to ask for our little yes and no in the form of the ballot so that we shall have a direct influence in distributing the taxes.

Gentlemen, I am amenable to the gallows and the penitentiary, and it is no more than right that I shall have a voice in framing the laws under which I shall be rewarded or punished. Am I asking too much of you as representative men of this great Government when I ask you to let me have a voice in making the laws under which I shall be rewarded or punished? It is written in the law of every State in this Union that a person in the courts shall have a jury of his peers, yet so long as the

word "male" stands as it does in the Constitutions of the United States and the States no woman in any State of this Union can have a jury of her peers, I protest in the name of justice against going into the courtroom and being compelled to run the gauntlet of the gutter and of the saloon—yes, even of the police court and of the jail—as we are compelled to do to select a male jury to try the interests of women, whether relating to life, property, or reputation. So long as the word "male" is in our constitutions just so long we can not have a jury of our peers in any State in the Union.

I ask that the women shall have the right of the ballot that they may go into our legislative halls and there provide for the prevention rather than the cure of crime. I ask you on behalf of the twelve hundred children under twelve years of age who are in the poor-houses of Indiana, of the sixteen hundred in the poor-houses of Illinois, and on that average in every State in the Union, that you shall take the word "male" out of the constitutions and allow the women of this country to sit in legislative halls and provide homes for and look after the little waifs of society. There are hundreds of moral questions to-day requiring the assistance of the moral element of womanhood to help make the laws under which we shall live.

Gentlemen, the political party that lives in the future must fight the moral battles of humanity. The day of blood is passed; the day of brain and heart is upon us; and I ask you to let the moral constituency that resides in woman's nature be represented. Let me say right here that I do not believe that there is morality in sex, but the social customs have been such that woman has been held to a higher standard. May the day hasten when the social custom shall hold man to as high a moral standard as it to-day holds woman.

This is the condition of things. The political party that presumes to fight the moral battles of the future must have the women in its ranks. We are non-partisan, as has been well said by my friend from Indiana [Mrs. Sewall.] We come Democrats, Republicans, and Greenbackers, and I expect if there were a half dozen other political parties some of us would belong to them. We ask this beneficent action upon your part because we believe that the intelligence and the justice of the hour is

demanding it. We do not want a political party action. We want you to keep this question out of the canvass. We ask you in the name of justice and humanity alone, and not on the part of party.

I hold in my hand a petition sent from one district in the State of Illinois with the request that I bear it to you. Out of three hundred electors the names of two hundred stand in this petition that I shall leave in your hands. In this list stand not the wife-whippers, not the drunkards, not the dissolute, but every minister in that town, every editor in that town, every professional man in that town, every banker, and every prominent business man in that town of three hundred electors. I believe that petitions could be rolled up in this way in every town in the Northern and in many of the Southern States. I leave this petition with you for your consideration.

Upon no question whatever has such a large number of petitions been sent as upon this demand for woman suffrage. You have the petitions in your hands, and I ask you in the name of justice and humanity not to let this Congress adjourn without action.

You ask us if we are impatient. Yes; we are impatient. Some of us may die, and I want our grand old standard-bearer, Susan B. Anthony, whose name will go down to history beside that of George Washington, Abraham Lincoln, and Wendell Phillips—I want that woman to go to heaven a free angel from this Republic. The power lies in your hands to make us all free. May the blessing of God be upon the hearts of every one of you, gentlemen; may the scales of prejudice fall from your eyes, and may you, representing the Senate of the United States, have the grand honor of telegraphing to us, to the millions of waiting women from one end of this country to the other, that the sixteenth amendment has been submitted to the ratification of the several legislatures of our States striking the word "male" out of the constitutions; and that this shall be, as we promise it to be, a government of the people, for the people, and by the people.

REMARKS BY MRS. ABIGAIL SCOTT DUNIWAY.

Miss Anthony. I now, gentlemen of the committee, introduce to you Mrs. Abigail Scott Duniway, from the extreme Northwest; and before she speaks I wish to say that she has been the one canvasser in the great State of Oregon and Washington Territory, and that it is to Mrs. Duniway that the women of Washington Territory are more indebted than to all other influences for their enfranchisement.

Mrs. Duniway. Gentlemen of the committee, do you think it possible that an agitation like this can go on and on forever without a victory? Do you not see that the golden moment has come for this grand committee to achieve immortality upon the grandest idea that has ever stirred the heart-beats of American citizens, and will you not in the magnanimity of noble purposes rise to meet the situation and, accede to our demand, which in your hearts you must know is just?

I do not come before you, gentlemen, with the expectation to instruct you in regard to the laws of our country. The women around us are law-abiding women. They are the mothers, many of them, of true and noble men, the wives, many of them, of grand, free husbands, who are listening, watching, waiting eagerly for successful tidings of this great experiment.

There never was a grander theory of government than that of these United States. Never were grander principles enunciated upon any platform, never so grand before and never can be grander again, than the declaration that "all men," including of course all women, since women are amenable to the laws, "are created equal; that they are endowed by their Creator with certain inalienable rights * * * that to secure these rights governments are instituted among men, deriving their just powers from the consent of the governed."

Gentlemen, are we allowed the opportunity of consent? These women who are here from Maine to Oregon, from the Straits of Fuca to the reefs of Florida, who in their representative capacity have come up here so often, augmented in their numbers year by year, looking with eyes of hope and hearts of faith, but oftentimes with hopes deferred, upon the final solution of this great problem, which it is so much in your hands to hasten in its solution—these women are in earnest. My

State is far away beyond the confines of the Rocky Mountains, away over beside the singing Pacific sea, but the spirit of liberty is among us there, and the public heart has been stirred. The hearts of our men have been moved to listen to our demands, and in Washington Territory, as one speaker has informed you, women to-day are endowed with full and free enfranchisement, and the rejoicing throughout that Territory is universal.

In Oregon men have also listened to our demand, and the Legislature has in two successive sessions agreed upon a proposition to amend our State constitution, a proposition which will be submitted for ratification to our voters at the coming June election. It is simply a proposition declaring that the right of suffrage shall not hereafter be prohibited in the State of Oregon on account of sex. Your action in the Senate of the United States will greatly determine the action of the voters of Oregon on our, or rather on their, election day, for we stand before the public in the anomaly of petitioners upon a great question in which we, in its final decision, are allowed no voice, and we can only stand with expectant hearts and almost bated breath awaiting the action of men who are to make this decision.

We have great hope for our victory, because the men of the broad, free West are grand, and chivalrous, and free. They have gone across the mighty continent with free steps; they have raised the standard of a new Pacific empire; they have imbibed the spirit of liberty with their very breath, and they have listened to us far in advance of many of the men of the older States who have not had their opportunity among the grand free wilds of nature for expansion.

So all of our leaders are with us to-day. You may go to either member of the Senate of the United States from Oregon, and while I can not speak so positively for the senior member, as he came over here some years ago before the public were so well educated as now, I can and do proudly vouch for the late Senator-elect DOLPH, who now has a seat upon the floor of the Senate, who is heart and soul and hand and purse in sympathy with this great movement for the enfranchisement of the women of Oregon. I would also be unjust to our worthy representative in the lower house, Hon. M.C. George, did I not proudly speak his

name in this great connection. Men of this class are with us, and without regard to party affiliations we know that they are upon our side. Our governor, our associate supreme judge for the district of the Pacific, all of these men, are leading in the grand free way that characterizes the men of the West in assisting in this work. But we have—alas, that I should be compelled to say it—a great many men who pay no heed whatever to this question. Men will be entitled to a voice in this decision who are not, like members of Congress, the picked men of the nation or the State, but men, many of whom can not read, who will have an opportunity to decide this question as far as their ballots can go. These are they to whom the enlightened, educated motherhood of the State of Oregon must look largely for the decision.

This brings me to the grand point of our coming to Congress. Some of you say to us, "Why not leave this matter for settlement in the different States?" When we leave it for settlement in the different States we leave it just as I have told you, because of the constitutional provisions of our organic law we can not do otherwise; but if the question were to be settled by the Legislature of Oregon alone it would be settled now; and I, as a representative of that State only, would have no need of coming here; it would be settled just as it has been settled in Washington Territory; but when we come here to Congress it is the great nation asking you to take such legislative action in submitting an amendment to the Constitution of the United States as shall recognize the equality of these women who are here; these women who have come here from all parts of the country, whose constituents are looking on while we are here before you. As we reflect that our feeblest words uttered before this committee will go to the confines of this nation and be cabled across the great Atlantic and around the globe, we realize that more and more prominently our cause is growing into public favor, and the time is just upon us when some decision must be made.

Gentlemen of the committee, will you not recognize the importance of the movement? Who among you will be our standard-bearer? Who among you will achieve immortality by standing up in these halls in which we are forbidden to speak, and in the magnanimity of your own free wills and noble hearts champion the woman's cause and make us before the law, as we of right ought now to be, free and independent?

REMARKS BY MRS. CAROLINE GILKEY ROGERS.

Miss ANTHONY. I now call upon Mrs. Caroline Gilkey Rogers, of Lansingburg, N.Y., to address the committee.

Mrs. ROGERS. Mr. Chairman and gentlemen of the committee, in our efforts to secure the right of citizenship we appeal only to your sense of justice and love of fair dealing.

We ask for the ballot because it is the symbol of equality. There is no other recognized symbol of equality in this country. We ask for the ballot that we may be equal to man before the law. We urge a twofold right—our right to the Republic, the Republic's right to us. We believe the interests of the country are identical with the interests of all its citizens, including women, and that the Government can no longer afford to shut women out from the affairs of the State and nation, and wise men are beginning to know that they are needed in the Government; that they are needed where our laws are made as well as where they are violated.

Many admit the justice of our claim, but will say, Is it safe? Is it expedient? It is always safe to do right; is always expedient to be just. Justice can never bring evil in its train.

The question is asked how and what would the women do in the State and nation? We do not pledge ourselves to anything. I claim that we can not have a better government than that of the people. The present Government is of only a part of the people. We have not yet entered upon the system of higher arbitration, because the Government is of man only. If we had been marching along with you all this time I trust we should have reached a higher plane of civilization.

We believe that all the virtue of the world can take care of all the evil, and all the intelligence can take care of all the ignorance. Let us have all the virtue confront all the vice.

There is no need to do battle in this matter. In all kindness and gentleness we urge our claims. There is no need to declare war upon men, for the best of men in this country are with us heart and soul.

It is a common remark that unless some new element is infused into our political life our nation is doomed to destruction. What more fitting element than the noble type of American womanhood, who have taught our Presidents, Senators, and Congressmen the rudiments of all they know.

Think of all the foreigners and all our own native-born ignorant men who can not write their own names or read the Declaration of Independence making laws for such women as Elizabeth Cady Stanton and Susan B. Anthony. Think of jurors drawn from these ranks to watch and try young girls for crimes often committed against them when the male criminal goes free. Think of a single one of these votes on election day outweighing all the women in the country. Is it not humiliating for me to sit, a political cipher, and see the colored man in my employ, to whom I have taught the alphabet, go out on election day and say by his vote what shall be done with my tax money. How would you like it?

When we think of the wives trampled on by husbands whom the law has taught them to regard as inferior beings, and of the mothers whose children are torn from their arms by the direct behest of the law at the bidding of a dead or living father, when we think of these things, our hearts ache with pity and indignation.

If mothers could only realize how the laws which they have no voice in making and no power to change affect them at every point, how they enter every door, whether palace or hovel, touch, limit, and bind, every article and inmate from the smallest child up, no woman, however shrinking and delicate, can escape it, they would get beyond the meaningless cry, "I have all the rights I want." Do these women know that in most States in the Union the shameful fact that no woman has any legal rights to her own child, except it is born out of wedlock! In these States there is not a line of positive law to protect the mother; the father is the legal protector and guardian of the children.

Under the laws of most of the States to-day a husband may by his last will bequeath his child away from its mother, so that she might, if the guardian chose, never see it again.

The husband may have been a very bad man, and in a moment of anger made the will. The guardian he has appointed may turn out a malicious man, and take pleasure in tormenting the mother, or he may bring up the children in a way that the mother thinks ruinous to them, and she has no redress in law. Why do not all the fortunate mothers in the land cry out against such a law? Why do not all women say, "Inasmuch as the law has done this wrong unto the least of these my sisters it has done it unto me." It is true that men are almost always better than their laws, but while a bad law remains on the statute-books it gives to an unscrupulous man a right to be as bad as the law.

It is often said to us when all the women ask for the ballot it will be granted. Did all the married women petition the Legislatures of their States to secure to them the right to hold in their own name the property that belonged to them? To secure to the poor forsaken wife the right to her earnings?

All the women did not ask for these rights, but all accepted them with joy and gladness when they were obtained, and so it will be with the franchise. But woman's right to self-government does not depend upon the numbers that demand it, but upon precisely the same principles that man claims it for himself.

Where did man get the authority that he now claims to govern one-half of humanity, from what power the right to place woman, his helpmeet in life, in an inferior position? Came it from nature? Nature made woman his superior when she made her his mother—his equal when she fitted her to hold the sacred position of wife. Did women meet in council and voluntarily give up all their claim to be their own law-makers?

The power of the strong over the weak makes man the master. Yes, then, and then only, does he gain the authority.

It is all very well to say "convert the women." While we most heartily wish they could all feel as we do, yet when it comes to the decision of this great question they are mere ciphers, for if this question is settled by the States it will be left to the voters, not to the women to decide. Or if suffrage comes to women through a sixteenth amendment of the national Constitution, it will be decided by Legislatures elected by men. In neither case will women have an opportunity of passing; upon the question. So reason tells us we must devote our best efforts to converting those to whom we must look for the removal of our disabilities, which now prevent our exercising the right of suffrage.

The arguments in favor of the enfranchisement of women are truths strong and unanswerable, and as old as the free institutions of our Government. The principle of "taxation without representation is tyranny" applies to women as well as men, and is as true to-day as it was a hundred years ago.

Our demand for the ballot is the great onward step of the century, and not, as some claim, the idiosyncracies of a few unbalanced minds.

Every argument that has been urged against this question of woman's suffrage has been urged against every reform. Yet the reforms have fought their way onward and become a part of the glorious history of humanity.

So it will be with suffrage. "You can stop the crowing of the cock, but you can not stop the dawn of the morning." And now, gentlemen, you are responsible, not for the laws you find on the statute books, but for those you leave there.

REMARKS BY MRS. MARY SEYMOUR HOWELL.

Miss ANTHONY. I now introduce to the committee Mrs. Mary Seymour Howell, the president of the Albany, N.Y., State society.

Mrs. HOWELL. Mr. Chairman and gentlemen of the committee: Miss Anthony gives me five minutes. I shall have to talk very rapidly. I ask

you for the ballot because of the very first principle that is often repeated to you, that "taxation without representation is tyranny." I come from the city of Albany, where many of my sisters are taxed for millions of dollars. There are three or four women in the city of Albany who are worth their millions, and yet they have no voice in the laws that govern and control them. One of our great State senators has said that you can not argue five minutes against woman suffrage without repudiating every principle that this great Republic is founded upon.

I ask you also for the ballot for the large class of women who are not taxed. They need it more than the women who are taxed, I have found in every work that I have conducted that because I am a woman I am not paid for that work as a man is paid for similar work.

You have heard, and perhaps some of you are thinking—I hope not—that women should be at home. I wish to say to you that there are millions of women in the United States who have no homes. There are millions of women who are trying to earn their bread and hold their purity sacred. For that class of women I appeal to you. In the city of Albany there are hundreds of women in our factories making the shirts that you can buy for \$1.50 and \$2, and all those women are paid for making the shirts is 4 cents apiece. There are in the State of New York 18,000 teachers. When I was a teacher and taught with gentlemen in our academies, I received about one-fourth of the pay because I happened to be a woman. I consider it an insult that forever burns in my soul, that I am to be handed a mere pittance in comparison with what man receives for same quality of work. When I was sent out by our superintendent of public instruction to hold conventions of teachers, as I have often done in our State of New York, and when I did one-third more work than the men teachers so sent out, but because I was a woman and had not the ballot, I was only paid about half as much as the man; and saying that once to our superintendent of public instruction in Albany, he said, "Mrs. Howell, just as soon as you get the ballot and have a political influence in the work you will have the same pay as a man."

We ask for the ballot for that great army of fallen women who walk our streets and who break up our homes and ruin our husbands and our

dear boys. We ask it for those women. The ballot will lift them up. Hundreds and thousands of women give up their purity for the sake of starving children and families. There is many a woman who goes to a life of degradation and pollution shedding burning tears over her 4-cent shirts.

We ask for the ballot for the good of the race, Huxley says, "admitting for the sake of argument that woman is the weaker, mentally and physically, for that reason she should have the ballot and should have every help that the world can give her." When you debar from your councils and legislative halls the purity, the spirituality, and the love of woman then those legislative halls and those councils are apt to become coarse and brutal, God gave us to you to help you in this little journey to a better land, and by our love and our intellect to help to make our country pure and noble, and if you would have statesmen you must have states we men to bear them.

I ask you also for the ballot that I may decide what I am. I stand before you, but I do not know to-day whether I am legally a "person" according to the law. It has been decided in some States that we are not "persons." In the State of New York, in one village, it was decided that women are not inhabitants. So I should like to know whether I am a person, whether I am an inhabitant, and above all I ask you for the ballot that I may become a citizen of this great Republic.

Gentlemen, you see before you this great convention of women from the Atlantic slopes to the Pacific Ocean, from the North to the South. We are in dead earnest. A reform never goes backward. This is a question that is before the American nation. Will you do your duty and give us our liberty, or will you leave it for braver hearts to do what must be done? For, like our forefathers, we will ask until we have gained it. Ever the world goes round and round; Ever the truth comes uppermost; and ever is justice done.

REMARKS BY MRS. LILLIE DEVEREUX BLAKE.

Miss ANTHONY. I now have the pleasure of introducing to the committee Mrs. Lillie Devereux Blake, of New York. New York is a great State, and therefore it has three representatives here to-day.

Mrs. BLAKE. Mr. Chairman and gentlemen of the committee: A recent writer in an English magazine, in speaking of the great advantage which to-day flows to the laboring classes of that nation from having received the right of suffrage, made the statement that disfranchised classes are oppressed, not because there is any desire whatever to do injustice to them, but because they are forgotten. We have year after year and session after session of our legislatures and of our Congresses proved the correctness of this statement. While we have nothing to complain of in the courtesy which we receive in private life, still when we see masses of men assembled together for political action, whether it be of the nation or of the State, we find that the women are totally forgotten.

In the limited time that is mine I cannot go into any lengthy exposition upon this point. I will simply call your attention to the total forgetfulness of the Congress of the United States to the debt owed to the women of this nation during the war. You have passed a pension bill upon which there has been much comment throughout the nation, and yet, when an old army nurse applies for a pension, a woman who is broken down by her devotion to the nation in hospitals and upon the battle-field, she is met at the door of the Pension Bureau by this statement, "the Government has made no appropriation for the services of women in the war." One of these women is an old nurse whom some of you may remember, Mother Bickerdyke, who went out onto many a battle-field when she was in the prime of life, twenty years ago, and at the risk of her life lifted men, who were wounded, in her arms, and carried them to a place of safety. She is an old woman now, and where is she? What reward the nation bestowed to her faithful services? The nation has a pension for every man who has served this nation, even down to the boy recruit who was out but three months; but Mother Bickerdyke, though her health has never been good since her service then, is earning her living at the wash-tub, a monument to the ingratitude of a Republic as great as was that when Belisarius begged in the streets of Rome.

I bring up this illustration alone out of innumerable others that are possible, to try to impress upon your minds that we are forgotten. It is not from any unkindness on your part. Who would think for one moment, looking upon the kindly faces of this committee, that any man on it would do an injustice to women, especially if she were old and feeble? But because we have no right to vote, as I said, our interests are overlooked and forgotten.

It is often said that we have too many voters; that the aggregate of vice and ignorance among us should not be increased by giving women the right of suffrage. I wish to remind you of the fact that in the enormous immigration that pours to our shores every year, numbering somewhere in the neighborhood of half a million, there come, twice as many men as women. The figures for the last year were two hundred and twenty-three thousand men, and one hundred and thirteen thousand women.

What does this mean? It means a steady influx of this foreign element; it means a constant preponderance of the masculine over the feminine; and it means also, of course, a preponderance of the voting power of the foreigner as compared to the native born. To those who fear that our American institutions are threatened by this gigantic inroad of foreigners I commend the reflection that the best safeguard against any such preponderance of foreign nations or of foreign influence is to put the ballot in the hands of the American-born women, And of all other women also, so that if the foreign-born man overbalances us in numbers we shall be always in a preponderance on the side of the liberty which is secured by our institutions.

It is because, as many of my predecessors have said, of the different elements represented by the two sexes, that we are asking for this liberty. When I was recently in the capitol of my own State of New York, I was reminded there of the difference of temperament between the sexes by seeing how children act when coming to the doors of the capitol, which have been constructed so that they are very hard to open. Whether that is because they want to keep us women out or not I am not able to say; but for some reason the doors are so constructed that it is nearly impossible to open them. I saw a number of little girls

coming in through those doors—every child held the door for those who were to follow. A number of little boys followed just after, and every boy rushed through and let the door shut in the face of the one who was coming behind him. That is a good illustration of the different qualities of the sexes. Those boys were not unkind, they simply represented that onward push which is one of the grandest characteristics of your sex; and the little girls, on the other hand, represented that gentleness and thoughtfulness of others which is eminently a characteristic of women.

This woman element is needed in every branch of the Government. Look at the wholesale destruction of the forests throughout our nation, which has gone on until it brings direct destruction to the land on the lines of the great rivers of the West, and threatens us even in New York with destroying at once the beauty and usefulness of our far-famed Hudson. If women were in the Government do you not think they would protect the economic interests of the nation? They are the born and trained economists of the world, and when you call them to your assistance you will find an element that has not heretofore been felt with the weight which it deserves.

As we walk through the Capitol we are struck with the significance of the symbolism on every side; we view the adornments in the beautiful room, and we find here everywhere emblematically woman's figure. Here is woman representing even war, and there are women representing grace and loveliness and the fullness of the harvest; and, above all, they are extending their protecting arms over the little children. Gentlemen, I leave you under this symbolism, hoping that you will see in it the type of a coming day when we shall have women and men united together in the national councils in this great building.

REMARKS BY DR. CLEMENCE S. LOZIER.

Miss ANTHONY. I meant to have said, as I introduced Mrs. Blake, that sitting on the sofa is Dr. Clemence S. Lozier, who declines to

speak, but I want her to stand up, because she represents New York city.

Dr. LOZIER. I thank you, I am very happy to be here, but I am not a fluent speaker. I feel in my heart that I know what justice means; that I know what mercy means, and in all my rounds of duty in my profession I am happy to extend not only food but shelter to many poor ones. The need of the ballot for working-girls and those who pay no taxes is not understood. The Saviour said, seeing the poor widow cast her two mites, which make a farthing, into the public treasury, "This poor widow hath cast more in than all they which have cast into the treasury." I see this among the poor working-girls of the city of New York; sick, in a little garret bedroom, perhaps, and although needing medical care and needing food, they will say to me, "above all things else, if I could only pay the rent." The rent of their little rooms goes into the coffers of their landlords and pays taxes. The poor women of the city of New York and everywhere are the grandest upholders of this Government. I believe they pay indirectly more taxes than the monopoly kings of our country. It is for them that I want the ballot.

REMARKS BY MRS. ELIZABETH BOYNTON HARBERT.

Miss ANTHONY. I now introduce to the committee Mrs. Elizabeth Boynton Harbert, of Illinois, and before Mrs. Harbert speaks I wish to say that for the last six years she has edited a department of the Chicago Inter-Ocean called the "Women's Kingdom."

Mrs. HARBERT. Mr. Chairman and honorable gentlemen of the committee, after the eloquent rhetoric to which you have listened I merely come in these five minutes with a plain statement of facts. Some friends have said, "Here is the same company of women that year after year besiege you with their petitions." We are here to-day in a representative capacity. From the great State of Illinois I come, representing 200,000 men and women of that State who have recorded their written petitions for woman's ballot, 90,000 of these being citizens under the law—male voters; those 90,000 having signed

petitions for the right of women to vote on the temperance question; 90,000 women also signed those petitions; 50,000 men and women signed the petitions for the school vote, and nearly 60,000 more have signed petitions that the right of suffrage might be accorded to woman.

This growth of public sentiment has been occasioned by the needs of the children and the working-women of that great State. I come here to ask you to make a niche in the statesmanship and legislation of the nation for the domestic interests of the people. You recognize that the masculine thought is more often turned to the material and political interests of the nation. I claim that the mother thought, the woman element needed, is to supplement the concurrent statesmanship of American men on political and industrial affairs with the domestic legislation of the nation.

There are good men and women who believe that women should use their influence merely through their social sphere. I believe both of the great parties are represented by us. You remember that a few weeks ago when there came across the country the news of the decision of the Supreme Court as regards the negro race the politicians sprang to the platform, and our editors hastened to their sanctums, to proclaim to the people that that did not interfere with the civil rights of the negro; that only their social rights were affected, and that the civil rights of man, those rights worth dying for, were not affected. Gentlemen, we who are trying to help the men in our municipal governments, who are trying to save the children from our poor-houses, begin to realize that whatever is good and essential for the liberty of the black man is good for the white woman and for all women. We are here to claim that whatever liberty has done for you it should be allowed to do for us. Take a single glance through the past; recognize the position of American manhood before the world to-day, and whatever liberty has done for you, liberty will surely do for the mothers of the race.

MRS. SARAH E. WALL.

Miss ANTHONY. Gentlemen of the committee, here is another woman I wish to show you, Sarah E. Wall, of Worcester, Mass., who, for the last twenty-five years, has resisted the tax gatherer when he came

around. I want you to look at her. She looks very harmless, but she will not pay a dollar of tax. She says when the Commonwealth of Massachusetts will give her the right of representation she will pay her taxes. I do not know exactly how it is now, but the assessor has left her name off the tax-list, and passed her by rather than have a lawsuit with her.

REMARKS BY MISS SUSAN B. ANTHONY.

Miss ANTHONY. I wish I could state the avocations and professions of the various women who have spoken in our convention during the last three days. I do not wish to speak disparagingly in regard to the men in Congress, but I doubt if a man on the floor of either House could have made a better speech than some of those which have been made by women during this convention. Twenty-six States and Territories are represented with live women, traveling all the way from Kansas, Arkansas, Oregon, and Washington Territory. It does seem to me that after all these years of coming up to this Capitol an impression should be made upon the minds of legislators that we are never to be silenced until we gain the demand. We have never had in the whole thirty years of our agitation so many States represented in any convention as we had this year.

This fact shows the growth of public sentiment. Mrs. Duniway is here all the way from Oregon, and you say, when Mrs. Duniway is doing so well up there, and is so hopeful of carrying the State of Oregon, why do not you all rest satisfied with that plan of gaining the suffrage? My answer is that I do not wish to see the women of the thirty-eight States of this Union compelled to leave their homes and canvass each State, school district by school district. It is asking too much of a moneyless class of people, disfranchised by the constitution of every State in the Union. The joint earnings of the marriage copartnership in all the States belong legally to the husband. If the wife goes outside the home to work, the law in most of the States permits her to own and control the money thus earned. We have not a single State in the Union where

the wife's earnings inside the marriage copartnership are owned by her. Therefore, to ask the vast majority of women who are thus situated, without an independent dollar of their own, to make a canvass of the States is asking to much.

Mrs. GOUGAR. Why did they not ask the negro to do that?

Miss ANTHONY. Of course the negro was not asked to go begging the white man from school district to school district to get his ballot. If it was known that we could be driven to the ballot-box: like a flock of sheep, and all vote for one party, there would be a bid made for us; but that is not done, because we can not promise you any such thing; because we stand before you and honestly tell you that the women of this nation are educated equally with the men, and that they, too, have political opinions. There is not a woman on our platform, there is scarcely a woman in this city of Washington, whether the wife of a Senator or a Congressman—I do not believe you can find a score of women in the whole nation—who have not opinions on the pending Presidential election. We all have opinions; we all have parties. Some of us like one party and one candidate and some another.

Therefore we can not promise you that women will vote as a unit when they are enfranchised. Suppose the Democrats shall put a woman suffrage plank in their platform in their Presidential convention, and nominate an open and avowed friend of woman suffrage to stand upon that platform; we can not pledge you that all the women of this nation will work for the success of that party, nor can I pledge you that they will all vote for the Republican party if it should be the one to take the lead in their enfranchisement. Our women will not toe a mark anywhere; they will think and act for themselves, and when they are enfranchised they will divide upon all political questions, as do intelligent, educated men.

I have tried the experiment of canvassing four States prior to Oregon, and in each State with the best canvass that it was possible for us to make we obtained a vote of one-third. One man out of every three men voted for the enfranchisement of the women of their households, while two voted against it. But we are proud to say that our splendid

minority is always composed of the very best men of the State, and I think Senator PALMER will agree with me that the forty thousand men of Michigan who voted for the enfranchisement of the women of his State were really the picked men in intelligence, in culture, in morals, in standing, and in every direction.

It is too much to say that the majority of the voters in any State are superior, educated, and capable, or that they investigate every question thoroughly, and cast the ballot thereon intelligently. We all know that the majority of the voters of any State are not of that stamp. The vast masses of the people, the laboring classes, have all they can do in their struggle to get food and shelter for their families. They have very little time or opportunity to study great questions of constitutional law.

Because of this impossibility for women to canvass the States over and over to educate the rank and file of the voters we come to you to ask you to make it possible for the Legislatures of the thirty-eight States to settle the question, where we shall have a few representative men assembled before whom we can make our appeals and arguments.

This method of settling the question by the Legislatures is just as much in the line of States' rights as is that of the popular vote. The one question before you is, will you insist that a majority of the individual voters of every State must be converted before its women shall have the right to vote, or will you allow the matter to be settled by the representative men in the Legislatures of the several States? You need not fear that we shall get suffrage too quickly if Congress shall submit the proposition, for even then we shall have a hard time in going from Legislature to Legislature to secure the two-thirds votes of three-fourths of the States necessary to ratify the amendment. It may take twenty years after Congress has taken the initiative step to make action by the State Legislatures possible.

I pray you, gentlemen, that you will make your report to the Senate speedily. I know you are ready to make a favorable one. Some of our speakers may not have known this as well as I. I ask you to make a report and to bring it to a discussion and a vote on the floor of the Senate.

You ask me if we want to press this question to a vote provided there is not a majority to carry it. I say yes, because we want the reflex influence of the discussion and of the opinions of Senators to go back into the States to help us to educate the people of the States.

Senator LAPHAM. It would require a two-thirds vote in both, the House and the Senate to submit the amendment to the State Legislatures for ratification.

Miss ANTHONY. I know that it requires a two-thirds vote of both Houses. But still, I repeat, even if you can not get the two-thirds vote, we ask you to report the bill and bring it to a discussion and a vote at the earliest day possible. We feel that this question should be brought before Congress at every session. We ask this little attention from Congressmen whose salaries are paid from the taxes; women do their share for the support of this great Government, We think we are entitled to two or three days of each session of Congress in both the Senate and House. Therefore I ask of you to help us to a discussion in the Senate this session. There is no reason why the Senate, composed of seventy-six of the most intelligent and liberty-loving men of the nation, shall not pass the resolution by a two-thirds vote, I really believe it will do so if the friends on this committee and on the floor of the Senate will champion the measure as earnestly as if it were to benefit themselves instead of their mothers and sisters. Gentlemen, I thank you for this hearing granted, and I hope the telegraph wires will soon tell us that your report is presented, and that a discussion is inaugurated on the floor of the Senate.

ARGUMENTS OF THE WOMAN-SUFFRAGE DELEGATES
BEFORE THE COMMITTEE ON THE JUDICIARY OF THE
UNITED STATES SENATE, JANUARY 23, 1880.

THE COMMITTEE ON THE JUDICIARY, UNITED STATES
SENATE, *Friday, January 23, 1880.*

The committee assembled at half-past 10 o'clock a.m.

Present: Mr. Thurman, chairman; Mr. McDonald, Mr. Bayard, Mr. Davis, of Illinois; Mr. Edmunds.

Also Mrs. Zerelda G. Wallace, of Indiana; Mrs. Elizabeth L. Saxon, of Louisiana; Mrs. Mary A. Stewart, of Delaware; Mrs. Lucinda B. Chandler, of Pennsylvania; Mrs. Julia Smith Parker, of Glastonbury, Conn.; Mrs. Nancy R. Allen, of Iowa; Miss Susan B. Anthony, of New York; Mrs. Sara A. Spencer, of the city of Washington, and others, delegates to the twelfth Washington convention of the National Woman-Suffrage Association, held January 21 and 22, 1880.

The CHAIRMAN. Several members of the committee are unable to be here. Mr. Lamar is detained at his home in Mississippi by sickness; Mr. Carpenter is confined to his room by sickness; Mr. Conkling has been unwell; I do not know how he is this morning; and Mr. Garland is chairman of the Committee on Territories, which has a meeting this morning that he could not omit to attend. I do not think we are likely to have any more members of the committee than are here now, and we will hear you, ladies.

REMARKS BY MRS. ZERELDA G. WALLACE, OF INDIANA.

Mrs. WALLACE. Mr. Chairman and gentlemen of the committee, it is scarcely necessary to recite that there is not an effect without a cause. Therefore it would be well for the statesmen of this nation to ask themselves the question, what has brought the women from all parts of this nation to the capital at this time: the wives and mothers, and sisters; the home-loving, law-abiding women? What has been the strong motive that has taken us away from the quiet and comfort of our own homes and brought us before you to-day? As an answer partly to that question, I will read an extract from a speech made by one of Indiana's statesmen, and probably if I tell you his name his sentiments may have some weight with you. He found out by experience and gave us the benefit of his experience, and it is what we are rapidly learning:

"You can go to meetings; you can vote resolutions; you can attend great demonstrations on the street; but, after all, the only occasion where the American citizen expresses his acts, his opinion, and his power is at the ballot-box; and that little ballot that he drops in there is the written sentiment of the times, and it is the power that he has as a citizen of this great Republic."

That is the reason why we are here; that is the reason why we want to vote. We are no seditious women, clamoring for any peculiar rights, but we are patient women. It is not the woman question that brings us before you to-day; it is the human question that underlies this movement among the women of this nation; it is for God, and home, and native land. We love and appreciate our country; we value the institutions of our country. We realize that we owe great obligations to the men of this nation for what they have done. We realize that to their strength we owe the subjugation of all the material forces of the universe which give us comfort and luxury in our homes. We realize that to their brains we owe the machinery that gives us leisure for intellectual culture and achievement. We realize that it is to their education we owe the opening of our colleges and the establishment of our public schools, which give us these great and glorious privileges.

This movement is the legitimate result of this development, of this enlightenment, and of the suffering that woman has undergone in the ages past. We find ourselves hedged in at every effort we make as mothers for the amelioration of society, as philanthropists, as Christians.

A short time ago I went before the Legislature of Indiana with a petition signed by 25,000 women, the best women in the State. I appeal to the memory of Judge McDonald to substantiate the truth of what I say. Judge McDonald knows that I am a home-loving, law-abiding, tax-paying woman of Indiana, and have been for 50 years. When I went before our Legislature and found that 100 of the vilest men in our State, merely by the possession of the ballot, had more influence with the law-makers of our land than the wives and mothers of the nation, it was a revelation that was perfectly startling.

You must admit that in popular government the ballot is the most potent means of all moral and social reforms. As members of society, as those who are deeply interested in the promotion of good morals, of virtue, and of the proper protection of men from the consequences of their own vices, and of the protection of women, too, we are deeply interested in all the social problems with which you have grappled so long unsuccessfully. We do not intend to depreciate your efforts, but you have attempted to do an impossible thing. You have attempted to represent the whole by one-half; and we come to you to-day for a recognition of the fact that humanity is not a unit; that it is a unity; and because we are one-half that go to make up that grand unity we come before you to-day and ask you to recognize our rights as citizens of this Republic.

We know that many of us lay ourselves liable to contumely and ridicule. We have to meet sneers; but we are determined that in the defense of right we will ignore everything but what we feel to be our duty.

We do not come here as agitators, or aimless, dissatisfied, unhappy women by any means; but we come as human beings, recognizing our responsibility to God for the advantages that have come to us in the development of the ages. We wish to discharge that responsibility faithfully, effectually, and conscientiously, and we can not do it under our form of government, hedged in as we are by the lack of a power which is such a mighty engine in our form of government for every means of work.

I say to you, then, we come as one-half of the great whole. There is an essential difference in the sexes. Mr. Parkman labored very hard to prove what no one would deny—that there is an essential difference in the sexes, and it is because of that very differentiation, the union of which in home, the recognition of which in society, brings the greatest happiness, the recognition of which in the church brings the greatest power and influence for good, and the recognition of which in the Government would enable us finally, as near as it is possible for humanity, to perfect our form of government. Probably we can never have a perfect form of government, but the nearer we approximate to

the divine the nearer will we attain to perfection; and the divine government recognizes neither caste, class, sex, nor nationality. The nearer we approach to that divine ideal the nearer we will come to realizing our hopes of finally securing at least the most perfect form of human government that it is possible for us to secure.

I do not wish to trespass upon your time, but I have felt that this movement is not understood by a great majority of people. They think that we are unhappy, that we are dissatisfied, that we are restive. That is not the case. When we look over the statistics of our State and find that 60 per cent. of all the crime is the result of drunkenness; when we find that 60 per cent. of the orphan children that fill our pauper homes are the children of drunken parents; when we find that after a certain age the daughters of those fathers who were made paupers and drunkards by the approbation and sanction and under the seal of the Government, go to supply our houses of prostitution, and when we find that the sons of these fathers go to fill up our jails and our penitentiaries, and that the sober, law-abiding men, the pains-taking, economical, and many of them widowed wives of this nation have to pay taxes and bear the expenses incurred by such legislation, do you wonder, gentlemen, that we at least want to try our hand and see what we can do?

We may not be able to bring about that Utopian form of government which we all desire, but we can at least make an effort. Under our form of government the ballot is our right; it is just and proper. When you debate about the expediency of any matter you have no right to say that it is inexpedient to do right. Do right and leave the result to God. You will have to decide between one of two things: either you have no claim under our form of Constitution for the privileges which you enjoy, or you will have to say that we are neither citizens nor persons.

Realizing this fact, and the deep interest that we take in the successful issue of this experiment that humanity is making for self-government, and realizing the fact that the ballot never can be given to us under more favorable circumstances, and believing that here on this continent is to be wrought out the great problem of man's ability to govern himself—and when I say man I use the word in the generic

sense—that humanity here is to work out the great problems of self-government and development, and recognizing, as I said a few minutes ago, that we are one-half of the great whole, we feel that we ought to be heard when we come before you and make the plea that we make to-day.

REMARKS BY MRS. JULIA SMITH PARKER, OF GLASTONBURY, CONN.

Mrs. PARKER. Gentlemen: You may be surprised, and not so much surprised as I am, to see a woman of over four-score years of age appear before you at this time. She came into the world and reached years of maturity and discretion before any person in this room was born. She now comes before you to plead that she can vote and have all the privileges that men have. She has suffered so much individually that she thought when she was young she had no right to speak before the men; but still she had courage to get an education equal to that of any man at the college, and she had to suffer a great deal on that account. She went to New Haven to school, and it was noised that she had studied the languages. It was such an astonishing thing for girls at that time to have the advantages of education that I had absolutely to go to cotillon parties to let people see that I had common sense. [Laughter.]

She has suffered; she had to pay money. She has had to pay \$200 a year in taxes without the least privilege of knowing what becomes of it. She does not know but that it goes to support grog-shops. She knows nothing about it. She has had to suffer her cows to be sold at the sign-post six times. She suffered her meadow land to be sold, worth \$2,000, for a tax of less than \$50. If she could vote as the men do she would not have suffered this insult; and so much would not have been said against her as has been said if men did not have the whole power. I was told that they had the power to take any thing that I owned if I would not exert myself to pay the money. I felt that fought to have some little voice in determining what should be done with what I paid.

I felt that I ought to own my own property; that it ought not to be in these men's hands; and I now come to plead that I may have the same privileges before the law that men have. I have seen what a difference there is, when I have had my cows sold, by having a voter to take my part.

I have come from an obscure town (I can not say that it is obscure exactly) on the banks of the Connecticut, where I was born. I was brought up on a farm. I never had an idea that it could be possible that I should ever come all the way to Washington to speak before those who had not come into existence when I was born. Now, I plead that there may be a sixteenth amendment, and that women may be allowed the privilege of owning their own property. That is what I have taken pains to accomplish. I have suffered so much myself that I felt it might have some effect to plead before this honorable committee. I thank you, gentlemen, for hearing me so kindly.

REMARKS BY MRS. ELIZABETH L. SAXON, OF LOUISIANA,

Mrs. SAXON. Gentleman, I almost feel that after Mrs. Wallace's plea there is scarcely a necessity for me to say anything; she echoed my own feelings so entirely. I come from the extreme South, she from the West. In this delegation, and in the convention which has just been held in this city, women have come together who never met before. People have asked me why I came.

I care nothing for suffrage so far as to stand beside men, or rush to the polls, or take any privilege outside of my home, only, as Mrs. Wallace says, for humanity. Years ago, when a little child, I lost my mother, and I was brought up by a man. If I have not a man's brain I had at least a man's instruction. He taught me that to work in the cause of reform for women was just as great as to work in the cause of reform for men. But in every effort I made in the cause of reform I was combated in one direction or another. I never took part with the suffragists. I never realized the importance of their cause until we were beaten back on every aide in the work of reform. If we attempted to put women in

charge of prisons, believing that wherever woman sins and suffers women should be there to teach, help, and guide, every place was in the hands of men. If we made an effort to get women on the school boards we were combated and could do nothing. Everyplace seemed to be changed, when there were good men in those places, by changes of politics; and the mothers of the land, having had to prostrate themselves as beggars, if not in fact, really in sentiment and feeling, have become at last almost desperate.

In the State of Texas I had a niece living whose father was an inmate of a lunatic asylum. She exerted as wide an influence in the State of Texas as any woman there. I allude to Miss Mollie Moore, who was the ward of Mr. Gushing. I give this illustration as a reason why Southern women are taking part in this movement, Mr. Wallace had charge of that lunatic asylum for years. He was a good, honorable, able man. Every one was endeared to him; every one appreciated him; the State appreciated him as superintendent of this asylum.

When a political change was made and Governor Robinson came in, Dr. Wallace was ousted for political purposes. It almost broke the hearts of some of the women who had sons, daughters, or husbands there. They determined at once to try to seek some redress and have him reinstated. It was impossible. He was out, and what could we do? I do not know that we could reach a case like that; but such cases have stirred the women of the whole land, for the reason that when they try to do good, or want to help in the cause of humanity, they are combated so bitterly and persistently.

I leave it to older and abler women, who have labored in this cause so long, to prove whether it is or is not constitutional to give the ballot to women.

A gentleman said to me a few days ago, "These women want to marry." I am married; I am a mother; and in our home the sons and brothers are all standing like a wall of steel at my back. I have cast aside every prejudice of the past. They lie like rotted hulks behind me.

After the fever of 1878, when our constitutional convention was going to convene, broke the agony and grief of my own heart, for one of my

children died, and took part in the suffrage movement in Louisiana, with the wife of Chief-Justice Merrick, Mrs. Sarah A. Dorsey, and Mrs. Harriet Keatinge, of New York, the niece of Mr. Lozier. These three ladies aided me faithfully and ably. When they found we would be received, I went before the convention. I went to Lieutenant-Governor Wiltz, and asked him if he would present or consider a petition which I wished to bring before the convention. He read the petition. One clause of our State law is that no woman can sign a will. We will have that question decided before the meeting of the next Legislature. Some ladies donated property to an asylum. They wrote the will and signed it themselves, and it was null and void, because the signers were women. They not knowing the law, believed that they were human beings, and signed it. That clause, perhaps, will be wiped out. Many gentlemen signed the petition on that account. I took the paper around myself. Governor Wiltz, then lieutenant-governor, told me he would present the petition. He was elected president of the convention. I presented my first petition, signed by the best names in the city of New Orleans and in the State.

I had the names of seven of the most prominent physicians there, leading with the name of Dr. Logan, and many men, seeing the name of Dr. Samuel Logan, also signed it. I went to all the different physicians and ministers. Three prominent ministers signed it for moral purposes alone. When Mrs. Horsey was on her dying bed the last time she ever signed her name was to a letter to go before that convention. No one believed she would die. Mrs. Merrick and myself went before the convention. I was invited before the committee on the judiciary. I made an impression favorable enough there to be invited before the convention with these ladies. I addressed the convention. We made the petition then that we make here; that we, the mothers of the land, are barred on every side in the cause of reform. I have strived hard in the work of reform for women. I pledged my father on his dying bed that I would never cease that work until woman stood with man equal before the law, so far as my efforts could accomplish it. Finding myself baffled in that work, I could only take the course which we have adopted, and urge the proposition of the sixteenth amendment.

I beg of you, gentlemen, to consider this question apart from the manner in which it was formerly considered. We, as the women of the nation, as the mothers, as the wives, have a right to be heard, it seems to me, before the nation. We represent precisely the position of the colonies when they plead, and, in the words of Patrick Henry, they were "spurned with contempt from the foot of the throne." We have been jeered and laughed at and ridiculed; but this question has passed out of the region of ridicule.

The moral force inheres in woman and in man alike, and unless we use all the moral power of the Government we certainly can not exist as a Government.

We talk of centralization, we talk of division; we have the seeds of decay in our Government, and unless right soon we use the moral force and bring it forward in all its strength and bearing, we certainly cannot exist as a happy nation. We do not exist as a happy nation now. This clamor for woman's suffrage, for woman's rights, for equal representation, is extending all over the land.

I plead because my work has been combatted in the cause of reform everywhere that I have tried to accomplish anything. The children that fill the houses of prostitution are not of foreign blood and race. They come from sweet American homes, and for every woman that went down some mother's heart broke. I plead by the power of the ballot to be allowed to help reform women and benefit mankind.

REMARKS OF MRS. MARY A. STEWART, OF DELAWARE.

Mrs. STEWART. I come from a small State, but one that is represented in this Congress, I consider, by some of the ablest men in the land. Our State, though small, has heretofore possessed and to-day possesses brains. Our sons have no more right to brains than our daughters, yet we are tied down by every chain that could bind the Georgian slave before the war. Aye, we are worse slaves, because the Georgian slave could go to the sale block and there be sold. The woman of Delaware

must submit to her chains, as there is no sale for her; she is of no account.

Woman from all time has occupied the highest positions in the world. She is just as competent to-day as she was hundreds of years ago. We are taxed without representation; there is no mistake about that. The colonies screamed that to England; Parliament screamed back, "Be still; long live the king, and we will help you." Did the colonies submit? They did not. Will the women of this country submit? They will not. Mark me, we are the sisters of those fighting Revolutionary men; we are the daughters of the fathers who sang back to England that they would not submit. Then, if the same blood courses in our veins that courses in yours, dare you expect us to submit?

The white men of this country have thrown out upon us, the women, a race inferior, you must admit, to your daughters, and yet that race has the ballot, and why? He has a right to it; he earned and paid for it with his blood. Whose blood paid for yours? Not your blood; it was the blood of your forefathers; and were they not our forefathers? Does a man earn a hundred thousand dollars and lie down and die, saying, "It is all my boys'?" Not a bit of it. He dies saying, "Let my children, be they cripples, be they idiots, be they boys, or be they girls, inherit all my property alike." Then let us inherit the sweet boon of the ballot alike.

When our fathers were driving the great ship of state we were willing to ride as deck or cabin passengers, just as we felt disposed; we had nothing to say; but to-day the boys are about to run the ship aground, and it is high time that the mothers should be asking, "What do you mean to do?" It is high time that the mothers should be demanding what they should long since have had.

In our own little State the laws have been very much modified in regard to women. My father was the first man to blot out the old English law allowing the eldest son the right of inheritance to the real estate. He took the first step, and like all those who take first steps in improvement and reform he received a mountain of curses from the oldest male heirs; but it did not matter to him.

Since 1868 I have, by my own individual efforts, by the use of hard-earned money, gone to our Legislature time after time and have had this law and that law passed for the benefit of the women; and the same little ship of state has sailed on. To-day our men are just as well satisfied with the laws of our State for the benefit of women in force as they were years ago. In our State a woman has a right to make a will. In our State she can hold bonds and mortgages as her own. In our State she has a right to her own property. She can not sell it, though, if it is real estate, simply because the moment she marries her husband has a life-time right. The woman does not grumble at that; but still when he dies owning real estate, she gets only the rental value of one-third, which is called the widow's dower. Now I think the man ought to have the rental value of one-third of the woman's maiden property or real estate, and it ought to be called the widower's dower. It would be just as fair for one as for the other. All that I want is equality.

The women of our State, as I said before, are taxed without representation. The tax-gatherer comes every year and demands taxes. For twenty years have I paid tax under protest, and if I live twenty years longer I shall pay it under protest every time. The tax-gatherer came to my place not long since. "Well," said I, "good morning, sir." Said he, "Good morning." He smiled and said, "I have come bothering you." Said I, "I know your face well. You have come to get a right nice little woman's tongue-lashing." Said he, "I suppose so, but if you will just pay your tax I will leave." I paid the tax, "But," said I, "remember I pay it under protest, and if I ever pay another tax I intend to have the protest written and make the tax-gatherer sign it before I pay the tax, and if he will not sign that protest then I shall not pay the tax, and there will be a fight at once." Said he, "Why do you keep all the time protesting against paying this small tax?" Said I, "Why do you pay your tax?" "Well," said he, "I would not pay it if I did not vote." Said I, "That is the very reason why I do not want to pay it. I can not vote and I do not want to pay it." Now the women have no right when election day comes around. Who stay at home from the election? The women and the black and white men who have been to the whipping-post. Nice company to put your wives and daughters in.

It is said that the women do not want to vote. Here is an array of women. Every woman sitting here wants to vote, and must we be debarred the privilege of voting because some luxurious woman, rolling around in her carriage and pair in her little downy nest that some good, benevolent man has provided for her, does not want to vote?

There was a society that existed up in the State of New York called the Covenanters that never voted. A man who belonged to that sect or society, a man whiter-haired than any of you, said to me, "I never voted. I never intended to vote, I never felt that I could conscientiously support a Government that had its Constitution blotted and blackened with the word 'slave,' and I never did vote until after the abolition of slavery." Now, were all you men disfranchised because that class or sect up in New York would not vote? Did you all pay your taxes and stay at home and refrain from voting because the Covenanters did not vote? Not a bit of it. You went to the election and told them to stay at home if they wanted to, but that you, as citizens, were going to take care of yourselves. That was right. We, as citizens, want to take care of ourselves.

One more thought and I will be through. The fourteenth and fifteenth amendments give the right of suffrage to women, so far as I know, although you learned men perhaps see a little differently. I see through the glass dimly; you may see through it after it is polished up. The fourteenth and fifteenth amendments, in my opinion, and in the opinion of a great many smart men in the country, and smart women, too, give the right to women to vote without, any "ifs" or "ands" about it, and the United States protects us in it; but there are a few who construe the law to suit themselves, and say that those amendments do not mean that, because the Congress that passed the fourteenth and fifteenth amendments did not mean to do that. Well, the Congress that passed them were mean enough for anything if they did not mean to do that. Let the wise Congress of to-day take the eighth chapter and the fourth verse of the Psalms, which says, "What is man, that Thou art mindful of him?" and amend it by adding, "What is woman, that they never thought of her?"

REMARKS BY MRS. LUCINDA B. CHANDLER, OF PENNSYLVANIA.

Mrs. CHANDLER. Gentlemen, it will be conceded that the progress of civilization, all that lifts humanity above a groveling, sensual, depraved state, is marked by the position, intelligence, and culture of women. Perhaps you think that American women have no rightful claim to present; but American women and mothers do claim that they should have the power to protect their children, not only at the hearthstone, but to supervise their education. It is neither presuming nor unwomanly for the mothers and women of the land to claim that they are competent and best fitted, and that it rightfully belongs to them to take part in the management and control of the schools, and the instruction, both intellectual and moral, of their children, and that in penal, eleemosynary, or reformatory institutions women should have positions as inspectors of prisons, physicians, directors, and superintendents.

I have here a brief report from an association which sent me as a delegate to the National Woman Suffrage Convention, in which it is stated that women in Pennsylvania can be elected as directors on school boards or superintendents of schools, but can not help to elect those officers. It must very readily occur to your minds that when women take such interest in the schools as mothers must needs take they must feel many a wish to control the election of the officers, superintendents, and managers of the schools. The ladies here from New York city could, if they had time, give you much testimony in regard to the management of schools in New York city, and the need there of woman's love and woman's power in the schools and on the school boards. I am also authorized by the association which sent me here to report that the woman-suffragists and some other woman organizations of the city of Philadelphia, have condemned in resolution the action of the governor a year ago, I think, in vetoing a bill which passed largely both houses of the Legislature to appoint women

inspectors of prisons. On such questions woman feels the need of the ballot.

The mothers of this land, having breathed the air of freedom and received the benefits of education, have come to see the necessity of better conditions to fulfill their divinely appointed and universally recognized office. The mothers of this land claim that they have a right to assist in making the laws which control the social relations. We are under the laws inherited from barbarism. They are not the conditions suited to the best exercise of the office of woman, and the women desire the ballot to purge society of the vices that are sure to disintegrate the home, the State, the nation.

I shall not occupy your time further this morning. I only present briefly the mother's claim, as it is so universally conceded. We now have in our schools a very large majority of women teachers, and it seems to me no one can but recognize the fact that mothers, through their experience in the family, mothers who are at all competent and fit to fulfill their position as mothers in the family, are best fitted to understand the needs and at least should have an equal voice in directing the management of the schools, and also the management of penal and reformatory institutions.

I was in hopes that Mrs. Wallace would give you the testimony she gave us in the convention of the wonderful, amazing good that was accomplished in a reformatory institution where an incorrigible woman was taken from the men's prison and became not only very tractable, but very helpful in an institution under the influence and management of women. That reformatory institution is managed wholly by women. There is not a man, Mrs. Wallace says, in the building, except the engineer who controls the fire department. Under a management wholly by women, the institution is a very great success. We feel sure that in many ways the influence and power that the mothers bring would tend to convert many conditions that are now tending to destruction through vices, would tend to elevate us morally, purify us, bring us still higher in the standard of humanity, and make us what we ought to be, a holy as well as a happy nation.

REMARKS BY MRS. SARA A. SPENCER, OF WASHINGTON.
Mrs. SPENCER. Miss Susan B. Anthony was chosen to present the constitutional argument in our case before the committee. Unless there is more important business for the individual members of the committee than the protection of one-half of our population, I trust that the limit fixed for our hearing will be extended.

The CHAIRMAN. Miss Anthony is entitled to an hour.

Mrs. SPENCER. Good. Miss Anthony is from the United States; the whole United States claim her.

Mrs. ALLEN. I have made arrangements with Miss Anthony to say all that I feel it necessary for me to say at this time.

Mrs. SPENCER. I have been so informed.

REMARKS BY MRS. NANCY B. ALLEN, OF IOWA.

Mrs. ALLEN. Mr. Chairman and gentlemen of the Judiciary Committee: I am not a State representative, but I am a representative of a large class of women, citizens of Iowa, who are heavy tax-payers. That is a subject which we are very seriously contemplating at this time. There is now a petition being circulated throughout our State, to be presented to the legislature, praying that women be exempted from taxation until they have some voice in the management of local affairs of the State. You may ask, "Do not your husbands protect you? Are not all the men protecting you?" We answer that our husbands are grand, noble men, who are willing to do all they can for us, but there are many who have no husbands, and who own a great deal of property in the State of Iowa. Particularly in great moral reforms the women there feel the need of the ballot. By presenting long petitions to the Legislature they have succeeded in having better temperance laws enacted, but the men have failed to elect officials who will enforce

those laws. Consequently they have become as dead letters upon the statute-books.

I would refer again to taxes. I have a list showing that in my city three women pay more taxes than all the city officials included. Those women are good temperance women. Our city council is composed almost entirely of saloon men and those who visit saloons and brewery men. There are some good men, but the good men being in the minority, the voices of these women are but little regarded. All these officials are paid, and we have to help support them. All that we ask is an equality of rights. As Sumner said, "Equality of rights is the first of rights." If we can only be equal with man under the law it is all that we ask. We do not propose to relinquish our domestic circles; in fact, they are too dear to us for that; they are dear to us as life itself, but we do ask that we may be permitted to be represented. Equality of taxation without representation is tyranny.

REMARKS BY MISS SUSAN B. ANTHONY, OF NEW YORK.

Miss ANTHONY: Mr. Chairman and gentlemen: Mrs. Spencer said that I would make an argument. I do not propose to do so, because I take it for granted that the members of this committee understand that we have all the argument on our side, and such an argument would be simply a series of platitudes and maxims of government. The theory of this Government from the beginning has been perfect equality to all the people. That is shown by every one of the fundamental principles, which I need not stop to repeat. Such being the theory, the application would be, of course, that all persons not having forfeited their right to representation in the Government should be possessed of it at the age of twenty-one. But instead of adopting a practice in conformity with the theory of our Government, we began first by saying that all men of property were the people of the nation upon whom the Constitution conferred equality of rights. The next step was that all white men were the people to whom should be practically applied the fundamental theories. There we halt to-day and stand at a deadlock, so far as the

application of our theory may go. We women have been standing before the American republic for thirty years, asking the men to take yet one step further and extend the practical application of the theory of equality of rights to all the people to the other half of the people—the women. That is all that I stand here to-day to attempt to demand.

Of course, I take it for granted that the committee are in sympathy at least with the reports of the Judiciary Committees presented both in the Senate and the House. I remember that after the adoption of the fourteenth and fifteenth amendments Senator EDMUNDS reported on the petition of the ten thousand foreign-born citizens of Rhode Island who were denied equality of rights in Rhode Island simply because of their foreign birth; and in that report held that the amendments were enacted and attached to the Constitution simply for men of color, and therefore that their provisions could not be so construed as to bring within their purview the men of foreign birth in Rhode Island. Then the House Committee on the Judiciary, with Judge Bingham, of Ohio, at its head, made a similar report upon our petitions, holding that because those amendments were made essentially with the black men in view, therefore their provisions could not be extended to the women citizens of this country or to any class except men citizens of color.

I voted in the State of New York in 1872 under the construction of those amendments, which we felt to be the true one, that all persons born in the United States, or any State thereof, and under the jurisdiction of the United States, were citizens, and entitled to equality of rights, and that no State could deprive them of their equality of rights. I found three young men, inspectors of election, who were simple enough to read the Constitution and understand it in accordance with what was the letter and what should have been its spirit. Then, as you will remember, I was prosecuted by the officers of the Federal court, And the cause was carried through the different courts in the State of New York, in the northern district, and at last I was brought to trial at Canandaigua.

When Mr. Justice Hunt was brought from the supreme bench to sit upon that trial, he wrested my case from the hands of the jury altogether, after having listened three days to testimony, and brought in

a verdict himself of guilty, denying to my counsel even the poor privilege of having the jury polled. Through all that trial when I, as a citizen of the United States, as a citizen of the State of New York and city of Rochester, as a person who had done something at least that might have entitled her to a voice in speaking for herself and for her class, in all that trial I not only was denied my right to testify as to whether I voted or not, but there was not one single woman's voice to be heard nor to be considered, except as witnesses, save when it came to the judge asking, "Has the prisoner any thing to say why sentence shall not be pronounced?" Neither as judge, nor as attorney, nor as jury was I allowed any person who could be legitimately called my peer to speak for me.

Then, as you will remember, Mr. Justice Hunt not only pronounced the verdict of guilty, but a sentence of \$100 fine and costs of prosecution. I said to him, "May it please your honor, I do not propose to pay it;" and I never have paid it, and I never shall. I asked your honorable bodies of Congress the next year—in 1874—to pass a resolution to remit that fine. Both Houses refused it; the committees reported against it; though through Benjamin F. Butler, in the House, and a member of your committee, and Matthew H. Carpenter, in the Senate, there were plenty of precedents brought forward to show that in the cases of multitudes of men fines had been remitted. I state this merely to show the need of woman to speak for herself, to be as judge, to be as juror.

Mr. Justice Hunt in his opinion stated that suffrage was a fundamental right, and therefore a right that belonged to the State. It seemed to me that was just as much of a retroversion of the theory of what is right in our Government as there could possibly be. Then, after the decision in my case came that of Mrs. Minor, of Missouri. She prosecuted the officers there for denying her the right to vote. She carried her case up to your Supreme Court, and the Supreme Court answered her the same way; that the amendments were made for black men; that their provisions could not protect women; that the Constitution of the United States has no voters of its own.

Mrs. SPENCER. And you remember Judge Cartier's decision in my case.

Miss ANTHONY. Mr. Cartier said that women are citizens and may be qualified, &c., but that it requires some sort of legislation to give them the right to vote.

The Congress of the United States notwithstanding, and the Supreme Court of the United States notwithstanding, with all deference and respect, I differ with them all, and know that I am right and that they are wrong. The Constitution of the United States as it is protects me. If I could get a practical application of the Constitution it would protect me and all women in the enjoyment of perfect equality of rights everywhere under the shadow of the American flag.

I do not come to you to petition for special legislation, or for any more amendments to the Constitution, because I think they are unnecessary, but because you say there is not in the Constitution enough to protect me. Therefore I ask that you, true to your own theory and assertion, should go forward to make more constitution.

Let me remind you that in the case of all other classes of citizens under the shadow of our flag you have been true to the theory that taxation and representation are inseparable. Indians not taxed are not counted in the basis of representation, and are not allowed to vote; but the minute that your Indians are counted in the basis of representation and are allowed to vote they are taxed; never before. In my State of New York, and in nearly all the States, the members of the State militia, hundreds and thousands of men, are exempted from taxation on property; in my State to the value of \$800, and in most of the States to a value in that neighborhood. While such a member of the militia lives, receives his salary, and is able to earn money, he is exempted; but when he dies the assessor puts his widow's name down upon the assessor's list, and the tax-collector never fails to call upon the widow and make her pay the full tax upon her property. In most of the States clergymen are exempted. In my State of New York they are exempted on property to the value of \$1,500. As long as the clergyman lives and receives his fat salary, or his lean one, as the case may be, he is exempted on that amount of property; but when the breath leaves the body of the clergyman, and the widow is left without any income, or without any means of support, the State comes in and taxes the widow.

So it is with regard to all black men. In the State of New York up to the day of the passage of the fifteenth amendment, black men who were willing to remain without reporting themselves worth as much as \$250, and thereby to remain without exercising the right to vote, never had their names put on the assessor's list; they were passed by, while, if the poorest colored woman owned 50 feet of real estate, a little cabin anywhere, that colored woman's name was always on the assessor's list, and she was compelled to pay her tax. While Frederick Douglas lived in my State he was never allowed to vote until he could show himself worth the requisite \$250; and when he did vote in New York, he voted not because he was a man, not because he was a citizen of the United States, nor yet because he was a citizen of the State, but simply because he was worth the requisite amount of money. In Connecticut both black men and black women were exempted from taxation prior to the adoption of the fifteenth amendment.

The law was amended in 1848, by which black men were thus exempted, and black women followed the same rule in that State. That, I believe, is the only State where black women were exempted from taxation under the law. When the fourteenth and fifteenth amendments were attached to the Constitution they carried to the black man of Connecticut the boon of the ballot as well as the burden of taxation, whereas they carried to the black woman of Connecticut the burden of taxation, but no ballot by which to protect her property. I know a colored woman in New Haven, Conn., worth \$50,000, and she never paid a penny of taxation until the ratification of the fifteenth amendment. From that day on she is compelled to pay a heavy tax on that amount of property.

Mrs. SPENCER. Is it because she is a citizen? Please explain.

Miss ANTHONY. Because she is black.

Mrs. SPENCER. Is it because the fourteenth and fifteenth amendments made women citizens?

Miss ANTHONY. Certainly; because it declared the black people citizens.

Gentlemen, you have before you various propositions of amendment to the Federal Constitution. One is for the election of President by the vote of the people direct. Of course women are not people.

Senator EDMUNDS. Angels.

Miss ANTHONY. Yes; angels up in heaven or else devils down there.

Senator EDMUNDS. I have never known any of that kind.

Miss ANTHONY. I wish you, gentlemen, would look down there and see the myriads that are there. We want to help them and lift them up. That is exactly the trouble with you, gentlemen; you are forever looking at your own wives, your own mothers, your own sisters, and your own daughters, and they are well cared for and protected; but only look down to the struggling masses of women who have no one to protect them, neither husband, father, brother, son, with no mortal in all the land to protect them. If you would look down there the question would be solved; but the difficulty is that you think only of those who are doing well. We are not speaking for ourselves, but for those who can not speak for themselves. We are speaking for the doomed as much as you, Senator EDMUNDS, used to speak for the doomed on the plantations of the South.

Amendments have been proposed to put God in the Constitution and to keep God out of the Constitution. All sorts of propositions to amend the Constitution have been made; but I ask that you allow no other amendment to be called the sixteenth but that which shall put into the hands of one-half of the entire people of the nation the right to express their opinions as to how the Constitution shall be amended henceforth. Women have the right to say whether we shall have God in the Constitution as well as men. Women have a right to say whether we shall have a national law or an amendment to the Constitution prohibiting the importation or manufacture of alcoholic liquors. We have a right to have our opinions counted on every possible question concerning the public welfare.

You ask us why we do not get this right to vote first in the school districts, and on school questions, or the questions of liquor license. It

has been shown very clearly why we need something more than that. You have good enough laws to-day in every State in this Union for the suppression of what are termed the social vices; for the suppression of the grog-shops, the gambling houses, the brothels, the obscene shows. There is plenty of legislation in every State in this Union for their suppression if it could be executed. Why is the Government, why are the States and the cities, unable to execute those laws? Simply because there is a large balance of power in every city that does not want those laws executed. Consequently both parties must alike cater to that balance of political power. The party that puts a plank in its platform that the laws against the grog-shops and all the other sinks of iniquity must be executed, is the party that will not get this balance of power to vote for it, and, consequently, the party that can not get into power.

What we ask of you is that you will make of the women of the cities a balance of political power, so that when a mayor, a member of the common council, a supervisory justice of the peace, a district attorney, a judge on the bench even, shall go before the people of that city as a candidate for the suffrages of the people he shall not only be compelled to look to the men who frequent the grog-shops, the brothels, and the gambling houses, who will vote for him if he is not in favor of executing the law, but that he shall have to look to the mothers, the sisters, the wives, the daughters of those deluded men to see what they will do if he does not execute the law.

We want to make of ourselves a balance of political power. What we need is the power to execute the laws. We have got laws enough. Let me give you one little fact in regard to my own city of Rochester. You all know how that wonderful whip called the temperance crusade roused the whisky ring. It caused the whisky force to concentrate itself more strongly at the ballot-box than ever before, so that when the report of the elections in the spring of 1874 went over the country the result was that the whisky ring was triumphant, and that the whisky ticket was elected more largely than ever before. Senator Thurman will remember how it was in his own State of Ohio. Everybody knows that if my friends, Mrs. ex-Governor Wallace, Mrs. Allen, and all the women of the great West could have gone to the ballot-box at those municipal elections and voted for candidates, no such result would

have occurred; while you refused by the laws of the State to the women the right to have their opinions counted, every rum-seller, every drunkard, every pauper even from the poor-house, and every criminal outside of the State's prison came out on election day to express his opinion and have it counted.

The next result of that political event was that the ring demanded new legislation to protect the whisky traffic everywhere. In my city the women did not crusade the streets, but they said they would help the men to execute the law. They held meetings, sent out committees, and had testimony secured against every man who had violated the law, and when the board of excise held its meeting those women assembled, three or four hundred, in the church one morning, and marched in a solid body to the common council chamber where the board of excise was sitting. As one rum-seller after another brought in his petition for a renewal of license who had violated the law, those women presented the testimony against him. The law of the State of New York is that no man shall have a renewal who has violated the law. But in not one case did that board refuse to grant a renewal of license because of the testimony which those women presented, and at the close of the sitting it was found that twelve hundred more licenses had been granted than ever before in the history of the State. Then the defeated women said they would have those men punished according to law.

Again they retained an attorney and appointed committees to investigate all over the city. They got the proper officer to prosecute every rum-seller. I was at their meeting. One woman reported that the officer in every city refused to prosecute the liquor dealer who had violated the law. Why? Because if he should do so he would lose the votes of all the employés of certain shops on that street, if another he would lose the votes of the railroad employés, and if another he would lose the German vote, if another the Irish vote, and so on. I said to those women what I say to you, and what I know to be true to-day, that if the women of the city of Rochester had held the power of the ballot in their hands they would have been a great political balance of power.

The last report was from District Attorney Raines. The women complained of a certain lager-beer-garden keeper. Said the district attorney, "Ladies, you are right, this man is violating the law, everybody knows it, but if I should prosecute him I would lose the entire German vote." Said I, "Ladies, do you not see that if the women of the city of Rochester had the right to vote District Attorney Raines would have been compelled to have stopped and counted, weighed and measured. He would have said, 'If I prosecute that lager-beer German I shall lose the 5,000 German votes of this city, but if I fail to prosecute him and execute the laws I shall lose the votes of 20,000 women.'"

Do you not see, gentlemen, that so long as you put this power of the ballot in the hands of every possible man, rich, poor, drunk, sober, educated, ignorant, outside of the State's prison, to make and unmake, not only every law and law-maker, but every office holder who has to do with the executing of the law, and take the power from the hands of the women of the nation, the mothers, you put the long arm of the lever, as we call it in mechanics, in the hands of the whisky power and make it utterly impossible for regulation of sobriety to be maintained in our community? The first step towards social regulation and good society in towns, cities, and villages is the ballot in the hands of the mothers of those places. I appeal to you especially in this matter, I do not know what you think about the proper sphere of women.

It matters little what any of us think about it. We shall each and every individual find our own proper sphere if we are left to act in freedom; but my opinion is that when the whole arena of politics and government is thrown open to women they will endeavor to do very much as they do in their homes; that the men will look after the greenback theory or the hard-money theory, that you will look after free-trade or tariff, and the women will do the home housekeeping of the government, which is to take care of the moral government and the social regulation of our home department.

It seems to me that we have the power of government outside to shape and control circumstances, but that the inside power, the government housekeeping, is powerless, and is compelled to accept whatever conditions or circumstances shall be granted.

Therefore I do not ask for liquor suffrage alone, nor for school suffrage alone, because that would amount to nothing. We must be able to have a voice in the election not only of every law-maker, but of every one who has to do either with the making or the executing of the laws.

Then you ask why we do not get suffrage by the popular-vote method, State by State? I answer, because there is no reason why I, for instance, should desire the women of one State of this nation to vote any more than the women of another State. I have no more interest as regards the women of New York than I as regards the women of Indiana, Iowa, or any of the States represented by the women who have come up here. The reason why I do not wish to get this right by what you call the popular-vote method, the State vote, is because I believe there is a United States citizenship. I believe that this is a nation, and to be a citizen of this nation should be a guaranty to every citizen of the right to a voice in the Government, and should give to me my right to express my opinion. You deny to me my liberty, my freedom, if you say that I shall have no voice whatever in making, shaping, or controlling the conditions of society in which I live. I differ from Judge Hunt, and I hope I am respectful when I say that I think he made a very funny mistake when he said that fundamental rights belong to the States and only surface rights to the National Government. I hope you will agree with me that the fundamental right of citizenship, the right to voice in the Government, is a national right.

The National Government may concede to the States the right to decide by a majority as to what banks they shall have, what laws they shall enact with regard to insurance, with regard to property, and any other question; but I insist upon it that the National Government should not leave it a question with the States that a majority in any State may disfranchise the minority under any circumstances whatsoever. The franchise to you men is not secure. You hold it to-day, to be sure, by the common consent of white men, but if at any time, on your principle of government, the majority of any of the States should choose to amend the State constitution so as to disfranchise this or that portion of the white men by making this or that condition, by all the decisions of the Supreme Court and by the legislation thus far there is nothing to hinder them.

Therefore the women demand a sixteenth amendment to bring to women the right to vote, or if you please to confer upon women their right to vote, to protect them in it, and to secure men in their right, because you are not secure.

I would let the States act upon almost every other question by majorities, except the power to say whether my opinion shall be counted. I insist upon it that no State shall decide that question.

Then the popular-vote method is an impracticable thing. We tried to get negro suffrage by the popular vote, as you will remember. Senator Thurman will remember that in Ohio the Republicans submitted the question in 1867, and with all the prestige of the national Republican party and of the State party, when every influence that could be brought by the power and the patronage of the party in power was brought to bear, yet negro suffrage ran behind the regular Republican ticket 40,000.

It was tried in Kansas, it was tried in New York, and everywhere that it was submitted the question was voted down overwhelmingly. Just so we tried to get women suffrage by the popular-vote method in Kansas in 1867, in Michigan in 1874, in Colorado in 1877, and in each case the result was precisely the same, the ratio of the vote standing one-third for women suffrage and two-thirds against women suffrage. If we were to canvass State after State we should get no better vote than that. Why? Because the question of the enfranchisement of women is a question of government, a question of philosophy, of understanding, of great fundamental principle, and the masses of the hard-working people of this nation, men and women, do not think upon principles. They can only think on the one eternal struggle wherewithal to be fed, to be clothed, and to be sheltered. Therefore I ask you not to compel us to have this question settled by what you term the popular-vote method.

Let me illustrate by Colorado, the most recent State, in the election of 1877. I am happy to say to you that I have canvassed three States for this question. If Senator Chandler were alive, or if Senator Ferry were in this room, they would remember that I followed in their train in

Michigan, with larger audiences than either of those Senators throughout the whole canvass. I want to say, too, that although those Senators may have believed in woman suffrage, they did not say much about it. They did not help us much. The Greenback movement was quite popular in Michigan at that time. The Republicans and Greenbackers made a most humble bow to the grangers, but woman suffrage did not get much help. In Colorado, at the close of the canvass, 6,666 men voted "Yes." Now I am going to describe the men who voted "Yes." They were native-born white men, temperance men, cultivated, broad, generous, just men, men who think. On the other hand, 16,007 voted "No."

Now I am going to describe that class of voters. In the southern part of that State there are Mexicans, who speak the Spanish language. They put their wheat in circles on the ground with the heads out, and drive a mule around to thrash it. The vast population of Colorado is made up of that class of people. I was sent out to speak in a voting precinct having 200 voters; 150 of those voters were Mexican greasers, 40 of them foreign-born citizens, and just 10 of them were born in this country; and I was supposed to be competent to convert those men to let me have as much right in this Government as they had, when, unfortunately, the great majority of them could not understand a word that I said. Fifty or sixty Mexican greasers stood against the wall with their hats down over their faces. The Germans put seats in a lager-beer saloon, and would not attend unless I made a speech there; so I had a small audience.

MRS. ARCHIBALD. There is one circumstance that I should like to relate. In the county of Las Animas, a county where there is a large population of Mexicans, and where they always have a large majority over the native population, they do not know our language at all. Consequently a number of tickets must be printed for those people in Spanish. The gentleman in our little town of Trinidad who had the charge of the printing of those tickets, being adverse to us, had every ticket printed against woman suffrage. The samples that were sent to us from Denver were "for" or "against," but the tickets that were printed only had the word "against" on them, so that our friends had to scratch their tickets, and all those Mexican people who could not

understand this trick and did not know the facts of the case, voted against woman suffrage; so that we lost a great many votes. This was man's generosity.

MISS ANTHONY. Special legislation for the benefit of woman! I will admit you that on the floor of the constitutional convention was a representative Mexican, intelligent, cultivated, chairman of the committee on suffrage, who signed the petition, and was the first to speak in favor of woman suffrage. Then they have in Denver about four hundred negroes. Governor Routt said to me, "The four hundred Denver negroes are going to vote solid for woman suffrage." I said, "I do not know much about the Denver negroes, but I know certainly what all negroes were educated in, and slavery never educated master or negro into a comprehension, of the great principles of human freedom of our nation; it is not possible, and I do not believe they are going to vote for us." Just ten of those Denver negroes voted for woman suffrage. Then, in all the mines of Colorado the vast majority of the wage laborers, as you know, are foreigners.

There may be intelligent foreigners in this country, and I know there are, who are in favor of the enfranchisement of woman, but that one does not happen to be Carl Schurz, I am ashamed to say. And I want to say to you of Carl Schurz, that side by side with that man on the battlefield of Germany was Madame Anneke, as noble a woman as ever trod the American soil. She rode by the side of her husband, who was an officer, on the battlefield; she slept in battlefield tents, and she fled from Germany to this country, for her life and property, side by side with Carl Schurz. Now, what is it for Carl Schurz, stepping up to the very door of the Presidency and looking back to Madame Anneke, who fought for liberty as well as he, to say, "You be subject in this Republic; I will be sovereign." If it is an insult for Carl Schurz to say that to a foreign-born woman, what is it for him to say it to Mrs. Ex-Governor Wallace, Elizabeth Cady Stanton, Lucretia Mott—to the native-born, educated, tax-paying women of this Republic? I can forgive an ignorant foreigner; I can forgive an ignorant negro; but I can not forgive Carl Schurz.

Right in the file of the foreigners opposed to woman suffrage, educated under monarchical governments that do not comprehend our principles, whom I have seen traveling through the prairies of Iowa or the prairies of Minnesota, are the Bohemians, Swedes, Norwegians, Germans, Irishmen, Mennonites; I have seen them riding on those magnificent loads of wheat with those magnificent Saxon horses, shining like glass on a sunny morning, every one of them going to vote "no" against woman suffrage. You can not convert them; it is impossible. Now and then there is a whisky manufacturer, drunkard, inebriate, libertine, and what we call a fast man, and a colored man, broad and generous enough to be willing to let women vote, to let his mother have her opinion counted as to whether there shall be license or no license, but the rank and file of all classes, who wish to enjoy full license in what are termed the petty vices of men are pitted solid against the enfranchisement of women.

Then, in addition to all these, there are, as you know, a few religious bigots left in the world who really believe that somehow or other if women are allowed to vote St. Paul would feel badly about it. I do not know but that some of the gentlemen present belong to that class. [Laughter.] So, when you put those best men of the nation, having religion about everything except on this one question, whose prejudices control them, with all this vast mass of ignorant, uneducated, degraded population in this country, you make an overwhelming and insurmountable majority against the enfranchisement of women.

It is because of this fact that I ask you not to remand us back to the States, but to submit to the States the proposition of a sixteenth amendment. The popular-vote method is not only of itself an impossibility, but it is too humiliating a process to compel the women of this nation to submit to any longer.

I am going to give you an illustration, not because I have any disrespect for the person, because on many other questions he was really a good deal better than a good many other men who had not so bad a name in this nation. When, under the old *régime*, John Morrissey, of my State, the king of gamblers, was a Representative on

the floor of Congress, it was humiliating enough for Lucretia Mott, for Elizabeth Cady Stanton, for all of us to come down here to Washington and beg at the feet of John Morrissey that he would let intelligent, native-born women vote, and let us have as much right in this Government and in the government of the city of New York as he had. When John Morrissey was a member of the New York State Legislature it would have been humiliating enough for us to go to the New York State Legislature and pray of John Morrissey to vote to ratify the sixteenth amendment, giving to us a right to vote; but if instead of a sixteenth amendment you tell us to go back to the popular-vote method, the old-time method, and go down into John Morrissey's seventh Congressional district in the city of New York, and there, in the sloughs and slums of that great Sodom, in the grog-shops, the gambling-houses, and the brothels, beg at the feet of each individual fisticuff of his constituency to give the noble, educated, native-born, tax-paying women of the State of New York as much right as he has, that would be too bitter a pill for a native-born woman to swallow any longer.

I beg you, gentlemen, to save us from the mortification and the humiliation of appealing to the rabble. We already have on our side the vast majority of the better educated—the best classes of men. You will remember that Senator Christiancy, of Michigan, two years ago, said on the floor of the Senate that of the 40,000 men who voted for woman suffrage in Michigan it was said that there was not a drunkard, not a libertine, not a gambler, not a depraved, low man among them. Is not that something that tells for us, and for our right? It is the fact, in every State of the Union, that we have the intelligent lawyers and the most liberal ministers of all the sects, not excepting the Roman Catholics. A Roman Catholic priest preached a sermon the other day, in which he said, "God grant that there were a thousand Susan B. Anthonys in this city to vote and work for temperance." When a Catholic priest says that there is a great moral necessity pressing down upon this nation demanding the enfranchisement of women. I ask you that you shall not drive us back to beg our rights at the feet of the most ignorant and depraved men of the nation, but that you, the representative men of the

nation, will hold the question in the hollow of your hands. We ask you to lift this question out of the hands of the rabble.

You who are here upon the floor of Congress in both Houses are the picked men of the nation. You may say what you please about John Morrissey, the gambler, &c.; he was head and shoulders above the rank and file of his constituency. The world may gabble ever so much about members of Congress being corrupt and being bought and sold; they are as a rule head and shoulders among the great majority who compose their State governments. There is no doubt about it. Therefore I ask of you, as representative men, as men who think, as men who study, as men who philosophize, as men who know, that you will not drive us back to the States any more, but that you will carry out this method of procedure which has been practiced from the beginning of the Government; that is, that you will put a prohibitory amendment in the Constitution and submit the proposition to the several State legislatures. The amendment which has been presented before you reads:

ARTICLE XVI.

SECTION 1. The right of suffrage in the United States shall be based on citizenship, and the right of citizens of the United States to vote shall not be denied or abridged by the United States, or by any State, on account of sex, or for any reason not equally applicable to all citizens of the United States.

SEC. 2. Congress shall have power to enforce this article by appropriate legislation.

In this way we would get the right of suffrage just as much by what you call the consent of the States, or the States' rights method, as by any other method. The only point is that it is a decision by the representative men of the States instead of by the rank and file of the ignorant men of the States. If you would submit this proposition for a sixteenth amendment, by a two-thirds vote of the two Houses to the several legislatures, and the several legislatures ratify it, that would be just as much by the consent of the States as if Tom, Dick, and Harry

voted "yes" or "no." Is it not, Senator? I want to talk to Democrats as well as Republicans, to show that it is a State's rights method.

SENATOR EDMUNDS. Does anybody propose any other, in case it is done at all by the nation?

MISS ANTHONY. Not by the nation, but they are continually driving us back to get it from, the States, State by State. That is the point I want to make. We do not want you to drive us back to the States. We want you men to take the question out of the hands of the rabble of the State.

THE CHAIRMAN. May I interrupt you?

MISS ANTHONY. Yes, sir; I wish you would.

THE CHAIRMAN. You have reflected on this subject a great deal. You think there is a majority, as I understand, even in the State of New York, against women suffrage?

MISS ANTHONY. Yes, sir; overwhelmingly.

THE CHAIRMAN. How, then, would you get Legislatures elected to ratify such a constitutional amendment?

MISS ANTHONY. That brings me exactly to the point.

THE CHAIRMAN. That is the point I wish to hear you upon.

MISS ANTHONY. Because the members of the State Legislatures are intelligent men and can vote and enact laws embodying great principles of the government without in any wise endangering their positions with their constituencies. A constituency composed of ignorant men would vote solid against us because they have never thought on the question. Every man or woman who believes in the enfranchisement of women is educated out of every idea that he or she was born into. We were all born into the idea that the proper sphere of women is subjection, and it takes education and thought and culture to lift us out of it. Therefore when men go to the ballot-box they till vote "no," unless they have actual argument on it. I will illustrate. We have six Legislatures in the nation, for instance, that have extended the right

to vote on school questions to the women, and not a single member of the State Legislature has ever lost his office or forfeited the respect or confidence of his constituents as a representative because he voted to give women the right to vote on school questions. It is a question that the unthinking masses never have thought upon. They do not care about it one way or the other, only they have an instinctive feeling that because women never did vote therefore it is wrong that they ever should vote.

MRS. SPENCER. Do make the point that the Congress of the United States leads the Legislatures of the States and educates them.

MISS ANTHONY. When you, representative men, carry this matter to Legislatures, State by State, they will ratify it. My point is that you can safely do this. Senator Thurman, of Ohio, would not lose a single vote in Ohio in voting in favor of the enfranchisement of women. Senator EDMUNDS would not lose a single Republican vote in the State of Vermont if he puts himself on our side, which, I think, he will do. It is not a political question. We are no political power that can make or break either party to-day. Consequently each man is left independent to express his own moral and intellectual convictions on the matter without endangering himself politically.

SENATOR EDMUNDS. I think, Miss Anthony, you ought to put it on rather higher, I will not say stronger, ground. If you can convince us that it is right we would not stop to see how it affected us politically.

MISS ANTHONY. I was coming to that, I was going to say to all of you men in office here to-day that if you can not go forward and carry out either your Democratic or your Republican or your Greenback theories, for instance, on the finance, there is no great political power that is going to take you away from these halls and prevent you from doing all those other things which you want to do, and you can act out your own moral and intellectual convictions on this without let or hindrance.

SENATOR EDMUNDS. Without any danger to the public interests, you mean.

MISS ANTHONY. Without any danger to the public interests. I did not mean to make a bad insinuation. Senator.

I want to give you another reason why we appeal to you. In these three States where the question has been submitted and voted down we can not get another Legislature to resubmit it, because they say the people have expressed their opinion and decided no, and therefore nobody with any political sense would resubmit the question. It is therefore impossible in any one of those States. We have tried hard in Kansas for ten years to get the question resubmitted; the vote of that State seems to be taken as a finality. We ask you to lift the sixteenth amendment out of the arena of the public mass into the arena of thinking legislative brains, the brains of the nation, under the law and the Constitution. Not only do we ask it for that purpose, but when you will have by a two-thirds vote submitted the proposition to the several Legislatures, you have put the pin down and it never can go back. No subsequent Congress can revoke that submission of the proposition; there will be so much gained; it can not slide back. Then we will go to New York or to Pennsylvania and urge upon the Legislatures the ratification of that amendment. They may refuse; they may vote it down the first time. Then we will go to the next Legislature, and the next Legislature, and plead and plead, from year to year, if it takes ten years. It is an open question to every Legislature until we can get one that will ratify it, and when that Legislature has once voted and ratified it no subsequent legislation can revoke their ratification.

Thus, you perceive, Senators, that every step we would gain by this sixteenth amendment process is fast and not to be done over again. That is why I appeal to you especially. As I have shown you in the respective States, if we fail to educate the people of a whole State—and in Michigan it was only six months, and in Colorado less than six months—the State Legislatures say that is the end of it. I appeal to you, therefore, to adopt the course that we suggest.

Gentlemen of the committee, if there is a question that you want to ask me before I make my final appeal, I should like to have you put it now; any question as to constitutional law or your right to go forward. Of course you do not deny to us that this amendment will be right in the

line of all the amendments heretofore. The eleventh, twelfth, thirteenth, fourteenth, fifteenth amendments are all in line prohibiting the States from doing something which they heretofore thought they had a right to do. Now we ask you to prohibit the States from denying to women their rights.

I want to show you in closing that of the great acts of justice done during the war and since the war the first one was a great military necessity. We never got one inch of headway in putting down the rebellion until the purpose of this great nation was declared that slavery should be abolished. Then, as if by magic, we went forward and put down the rebellion. At the close of the rebellion the nation stood again at a perfect deadlock. The Republican party was trembling in the balance, because it feared that it could not hold its position, until it should have secured by legislation to the Government what it had gained at the point of the sword, and when the nation declared its purpose to enfranchise the negro it was a political necessity. I do not want to take too much vainglory out of the heads of Republicans, but nevertheless it is a great national fact that neither of those great acts of beneficence to the negro race was done because of any high, overshadowing moral conviction on the part of any considerable minority even of the people of this nation, but simply because of a military necessity slavery was abolished, and simply because of a political necessity black men were enfranchised.

The blackest Republican State you had voted down negro suffrage, and that was Kansas in 1867; Michigan voted it down in 1867; Ohio voted it down in 1867. Iowa was the only State that ever voted negro suffrage by a majority of the citizens to which the question was submitted, and they had not more than seventy-five negroes in the whole State; so it was not a very practical question. Therefore, it may be fairly said, I think, that it was a military necessity that compelled one of those acts of justice, and a political necessity that compelled the other.

It seems to me that from the first word uttered by our dear friend, Mrs. ex-Governor Wallace, of Indiana, all the way down, we have been presenting to you the fact that there is a great moral necessity pressing

upon this nation to-day, that you shall go forward and attach a sixteenth amendment to the Federal Constitution which shall put in the hands of the women of this nation the power to help make, shape, and control the social conditions of society everywhere. I appeal to you from that standpoint that you shall submit this proposition.

There is one other point to which I want to call your attention. The Senate Judiciary Committee, Senator EDMUNDS chairman, reported that the United States could do nothing to protect women in the right to vote under the amendments. Now I want to give you a few points where the United States interferes to take away the right to vote from women where the State has given it to them. In Wyoming, for instance, by a Democratic legislature, the women were enfranchised. They were not only allowed to vote but to sit upon juries, the same as men. Those of you who read the reports giving the results of that action have not forgotten that the first result of women sitting upon juries was that wherever there was a violation of the whisky law they brought in verdicts accordingly for the execution of the law; and you will remember, too, that the first man who ever had a verdict of guilty for murder in the first degree in that Territory was tried by a jury made up largely of women. Always up to that day every jury had brought in a verdict of shot in self-defense, although the person shot down may have been entirely unarmed. Then, in cities like Cheyenne and Laramie, persons entered complaints against keepers of houses of ill-fame.

Women were on the jury, and the result was in every case that before the juries could bring in a bill of indictment the women had taken the train and left the town. Why do you hear no more of women sitting on juries in that Territory? Simply because the United States marshal, who is appointed by the President to go to Wyoming, refuses to put the names of women into the box from which the jury is drawn. There the United States Government interferes to take the right away.

A DELEGATE. I should like to state that Governor Hoyt, of Wyoming, who was the governor who signed the act giving to women this right, informed me that the right had been restored, and that his sister, who resides there, recently served on a jury.

MISS ANTHONY. I am glad to hear it. It is two years since I was there, but I was told that that was the case. In Utah the women were given the right to vote, but a year and a half ago their Legislative Assembly found that although they had the right to vote the Territorial law provided that only male voters should hold office. The Legislative Assembly of Utah passed a bill providing that women should be eligible to all the offices of the Territory. The school offices, superintendents of schools, were the offices in particular to which the women wanted to be elected. Governor Emory, appointed by the President of the United States, vetoed that bill. Thus the full operations of enfranchisement conferred by two of the Territories has been stopped by Federal interference.

You ask why I come here instead of going to the State Legislatures. You say that whenever the Legislatures extend the right of suffrage to us by the constitutions of their States we can get it. Massachusetts, New Hampshire, Minnesota, Colorado, Kansas, Oregon, all these States, have had the school suffrage extended by legislative enactment. If the question had been submitted to the rank and file of the people of Boston, with 66,000 men paying nothing but the poll-tax, they would have undoubtedly voted against letting women have the right to vote for members of the school board; but their intelligent representatives on the floor of the Legislature voted in favor of the extension of the school suffrage to the women. The first result in Boston has been the election of quite a number of women to the school board. In Minnesota, in the little town of Rochester, the school board declared its purpose to cut the women teachers' wages down. It did not propose to touch the principal, who was a man, but they proposed to cut all the women down from \$50 to \$35. One woman put her bonnet on and went over the entire town and said, "We have got a right to vote for this school board, and let us do so." They all turned out and voted, and not a single \$35 man was re-elected, but all those who were in favor of paying \$50.

It seems to be a sort of charity to let a woman teach school. You say here that if a woman has a father, mother, or brother, or anybody to support her, she can not have a place in the Departments. In the city of Rochester they cannot let a married woman teach school because she

has got a husband, and it is supposed he ought to support her. The women are working in the Departments, as everywhere else, for half price, and the only pretext, you tell us, for keeping women there is because the Government can economize by employing women for less money. The other day when I saw a newspaper item stating that the Government proposed to compensate Miss Josephine Meeker for all her bravery, heroism, and terrible sufferings by giving her a place in the Interior Department, it made my blood boil to the ends of my fingers and toes. To give that girl a chance to work in the Department; to do just as much work as a man, and pay her half as much, was a charity. That was a beneficence on the part of this grand Government to her. We want the ballot for bread. When we do equal work we want equal wages.

MRS. SAXON. California, in her recent convention, prohibits the Legislature hereafter from enacting any law for woman's suffrage, does it not?

MISS ANTHONY. I do not know. I have not seen the new constitution.

MRS. SAXON. It does. The convention inserted a provision in the constitution that the Legislature could not act upon the subject at all.

MISS ANTHONY. Everywhere that we have gone, Senators, to ask our right at the hands of any legislative or political body, we have been the subjects of ridicule. For instance, I went before the great national Democratic convention in New York, in 1868, as a delegate from the New York Woman Suffrage Association, to ask that great party, now that it wanted to come to the front again, to put a genuine Jeffersonian plank in its platform, pledging the ballot to all citizens, women as well as men, should it come into power. You may remember how Mr. Seymour ordered my petition to be read, after looking at it in the most scrutinizing manner, when it was referred to the committee on resolutions, where it has slept the sleep of death from that day to this. But before the close of the convention a body of ignorant workingmen sent in a petition clamoring for greenbacks, and you remember that the Democratic party bought those men by putting a solid greenback plank in the platform.

Everybody supposed they would nominate Pendleton, or some other man of pronounced views, but instead of doing that they nominated Horatio Seymour, who stood on the fence, politically speaking. My friends, Mrs. Stanton, Lucretia Mott, and women who have brains and education, women who are tax-payers, went there and petitioned for the practical application of the fundamental principles of our Government to one-half of the people. Those most ignorant workingmen, the vast mass of them foreigners, went there, and petitioned that that great political party should favor greenbacks. Why did they treat those workingmen with respect, and put a greenback plank in their platform, and only table us, and ignore us? Simply because the workingmen represented the power of the ballot. They could make or unmake the great Democratic party at that election. The women were powerless. We could be ridiculed and ignored with impunity, and so we were laughed at, and put on the table.

Then the Republicans went to Chicago, and they did just the same thing. They said the Government bonds must be paid in precisely the currency specified by the Congressional enactment, and Talleyrand himself could not have devised how not to say anything better than the Republicans did at Chicago on that question. Then they nominated a man who had not any financial opinions whatever, and who was not known, except for his military record, and they went into the campaign. Both those parties had this petition from us.

I met a woman in Grand Rapids, Mich., a short time ago. She came to me one morning and told me about the obscene shows licensed in that city, and said that she thought of memorializing the Legislature. I said, "Do; you can not do anything else; you are helpless, but you can petition. Of course they will laugh at you." Notwithstanding, I drew up a petition and she circulated it. Twelve hundred of the best citizens signed that petition, and the lady carried it to the Legislature, just as Mrs. Wallace took her petition in the Indiana Legislature. They read it, laughed at it, and laid it on the table; and at the close of the session, by a unanimous vote, they retired in a solid body to witness the obscene show themselves. After witnessing it, they not only allowed the license to continue for that year, but they have licensed it every year from that day to this, against all the protests of the petitioners. [Laughter.]

SENATOR EDMUNDS. Do not think we are wanting in respect to you and the ladies here because you say something that makes us laugh.

MISS ANTHONY. You are not laughing at me; you are treating me respectfully, because you are hearing my argument; you are not asleep, not one of you, and I am delighted.

Now, I am going to tell you one other fact. Seven thousand of the best citizens of Illinois petitioned the Legislature of 1877 to give them the poor privilege of voting on the license question. A gentleman presented their petition; the ladies were in the lobbies around the room. A gentleman made a motion that the president of the State association of the Christian Temperance Union be allowed to address the Legislature regarding the petition of the memorialists, when a gentleman sprang to his feet, and said it was well enough for the honorable gentleman to present the petition, and have it received and laid on the table, but "for a gentleman to rise in his seat and propose that the valuable time of the honorable gentlemen of the Illinois Legislature should be consumed in discussing the nonsense of those women is going a little too far. I move that the sergeant-at-arms be ordered to clear the hall of the house of representatives of the mob;" referring to those Christian women. Now, they had had the lobbyists of the whisky ring in that Legislature for years and years, not only around it at respectful distances, but inside the bar, and nobody ever made a motion to clear the halls of the whisky mob there. It only takes Christian women to make a mob.

MRS. SAXON. We were treated extremely respectfully in Louisiana. It showed plainly the temper of the convention when the present governor admitted that woman suffrage was a fact bound to come. They gave us the privilege of having women on the school boards, but then the officers are appointed by men who are politicians.

MISS ANTHONY. I want to read a few words that come from good authority, for black men at least. I find here a little extract that I copied years ago from the Anti-Slavery Standard of 1870. As you know, Wendell Phillips was the editor of that paper at that time:

"A man with the ballot in his hand is the master of the situation. He defines all his other rights; what is not already given him he takes."

That is exactly what we want, Senators. The rights you have not already given us; we want to get in such a position that we can take them.

"The ballot makes every class sovereign over its own fate. Corruption may steal from a man his independence; capital may starve, and intrigue fetter him, at times; but against all these, his vote, intelligently and honestly cast, is, in the long run, his full protection. If, in the struggle, his fort surrenders, it is only because it is betrayed from within. No power ever permanently wronged a voting class without its own consent."

Senators, I want to ask of you that you will, by the law and parliamentary rules of your committee, allow us to agitate this question by publishing this report and the report which you shall make upon our petitions, as I hope you will make a report. If your committee is so pressed with business that it can not possibly consider and report upon this question, I wish some of you would make a motion on the floor of the Senate that a special committee be appointed to take the whole question of the enfranchisement of women into consideration, and that that committee shall have nothing else to do. This off-year of politics, when there is nothing to do but to try how not to do it (politically, I mean, I am not speaking personally), is the best time you can have to consider the question of woman suffrage, and I ask you to use your influence with the Senate to have it specially attended to this year. Do not make us come here thirty years longer. It is twelve years since the first time I came before a Senate committee. I said then to Charles Sumner, if I could make the honorable Senator from Massachusetts believe that I feel the degradation and the humiliation of disfranchisement precisely as he would if his fellows had adjudged him incompetent from any cause whatever from having his opinion counted at the ballot-box we should have our right to vote in the twinkling of an eye.

REMARKS BY MRS. SARA A. SPENCER, OF WASHINGTON.

Mrs. SPENCER. Congress printed 10,000 copies of its proceedings concerning the memorial services of a dead man, Professor Henry. It cost me three months of hard work to have 3,000 copies of our arguments last year before the Committee on Privileges and Elections printed for 10,000,000 living women. I ask that the committee will have printed 10,000 copies of this report.

The CHAIRMAN. The committee have no power to order the printing. That can only be done by the order of the Senate. A resolution can be offered to that effect in the Senate. I have only to say, ladies, that you will admit that we have listened to you with great attention, and I can certainly say with very great interest. What you have said will be duly and earnestly considered by the committee.

Mrs. WALLACE. I wish to make just one remark in reference to what Senator Thurman said as to the popular vote being against woman suffrage. The popular vote is against it, but not the popular voice. Owing to the temperance agitation in the last six years the growth of the suffrage sentiment among the wives and mothers of this nation has largely increased.

Mrs. SPENCER. In behalf of the women of the United States, permit me to thank the Senate Judiciary Committee for their respectful, courteous, and close attention.

Mr. HOAR. Mr. President, I do not propose to make a speech at this late hour of the day; it would be cruel to the Senate; and I had not expected that this measure would be here this afternoon. I was absent on a public duty and came in just at the close of the speech of my honorable friend from Missouri [Mr. VEST]. I wish, however, to say one word in regard to what seemed to be the burden of his speech.

He says that the women who ask this change in our political organization are not simply seeking to be put upon school boards and upon boards of health and charity and upon all the large number of duties of a political nature for which he must confess they are fit, but he says they will want to be President of the United States, and want to be Senators, and want to be marshals and sheriffs, and that seems to him supremely ridiculous. Now I do not understand that that is the proposition. What they want to do and to

be is to be eligible to such public duty as a majority of their fellow-citizens may think they are fitted for. The majority of public duties in this country do not require robust, physical health, or exposure to what is base or unhealthy; and when those duties are imposed upon anybody they will be imposed only upon such persons as are fit for them. But they want that if the majority of the American people think a woman like Queen Victoria, or Queen Elizabeth, or Queen Isabella of Spain, or Maria Theresa of Hungary (the four most brilliant sovereigns of any sex in modern history with only two or three exceptions), the fittest person to be President of the United States, they may be permitted to exercise their choice accordingly.

Old men are eligible to office, old men are allowed to vote, but we do not send old men to war, or make constables or watchmen or overseers of State prisons of old men; and it is utterly idle to suppose that the fitness to vote or the fitness to hold office has anything to do with the physical strength or with the particular mental qualities in regard to which the sexes differ from each other.

Mr. President, my honorable friend spoke of the French revolution and the horrors in which the women of Paris took part, and from that he would argue that American wives and mothers and sisters are not fit for the calm and temperate management of our American republican life. His argument would require him by the same logic to agree that republicanism itself is not fit for human society. The argument is the argument against popular government whether by man or woman, and the Senator only applies to this new phase of the claim of equal rights what his predecessors would argue against the rights we now have applied to us.

But the Senator thought it was unspeakably absurd that a woman with her sentiment and emotional nature and liability to be moved by passion and feeling should hold the office of Senator. Why, Mr. President, the Senator's own speech is a refutation of its own argument. Everybody knows that my honorable friend from Missouri is one of the most brilliant men in this country. He is a logician, he is an orator, he is a man of large experience, he is a lawyer entrusted with large interests; yet when he was called upon to put forth this great effort of his this afternoon and to argue this question which he thinks so clear, what did he do? He furnished the gush and the emotion and the eloquence, but when he came to any argument he had to

call upon two women, Mrs. Leonard and Mrs. Whitney to supply all that. [Laughter.] If Mrs. Leonard and Mrs. Whitney have to make the argument in the Senate of the United States for the brilliant and distinguished Senator from Missouri it does not seem to me so absolutely ridiculous that they should have or that women like them should have seats here to make arguments of their own. [Manifestations of applause in the galleries.]

The joint resolution was reported to the Senate without amendment.

The PRESIDING OFFICER. If no amendment be proposed the question is, shall the joint resolution be engrossed for a third reading?

Mr. COCKRELL. Let us have the yeas and nays.

Mr. BLAIR. Why not take the yeas and nays on the passage?

Mr. COCKRELL. Very well.

The PRESIDING OFFICER. The call is withdrawn.

The joint resolution was ordered to be engrossed for a third reading, and was read the third time.

The PRESIDING OFFICER. Shall the joint resolution pass?

Mr. COCKRELL. I call for the yeas and nays.

The PRESIDING OFFICER. Upon this question the yeas and nays will necessarily be taken.

The Secretary proceeded to call the roll.

Mr. CHACE (when his name was called). I am paired with the Senator from North Carolina [Mr. RANSOM]. If he were present I should vote "yea."

Mr. DAWES (when his name was called). I am paired with the Senator from Texas [Mr. MAXEY]. I regret that I am not able to vote on this question. I should vote "yea" if he were here.

Mr. COKE. My colleague [Mr. MAXEY], if present, would vote "nay."

Mr. GRAY (when Mr. GORMAN'S name was called). I am requested by the Senator from Maryland [Mr. GORMAN] to say that he is paired with the Senator from Maine [Mr. FRYE].

Mr. STANFORD (when his name was called). I am paired with the Senator from West Virginia [Mr. CAMDEN]. If he were present I should vote "yea."

The roll-call was concluded.

Mr. HARRIS. I have a general pair with the Senator from Vermont [Mr. EDMUNDS], who is necessarily absent from the Chamber, but I see his colleague voted "nay," and as I am opposed to the resolution I will record my vote "nay."

Mr. KENNA. I am paired on all questions with the Senator from New York [Mr. MILLER].

Mr. JONES, of Arkansas. I have a general pair with the Senator from Indiana [Mr. HARRISON]. If he were present I should vote "nay" on this question.

Mr. BROWN. I was requested by the Senator from South Carolina [Mr. BUTLER] to announce his pair with the Senator from Pennsylvania [Mr. CAMERON], and to say that if the Senator from South Carolina were present he would vote "nay." I do not know how the Senator from Pennsylvania would vote.

Mr. CULLOM. I was requested by the Senator from Maine [Mr. FRYE] to announce his pair with the Senator from Maryland [Mr. GORMAN].

The result was announced—yeas 16, nays 34; as follows:

YEAS—16.

Blair,
Bowen,
Cheney,
Conger,
Cullom,
Dolph,
Farwell,

Hoar,
Manderson,
Mitchell of Oreg.,
Mitchell of Pa.,
Palmer,
Platt,
Sherman,
Teller,
Wilson of Iowa.

NAYS—34.

Beck,
Berry,
Blackburn,
Brown,
Call,
Cockrell,
Coke,
Colquitt,
Eustis,
Evarts,
George,
Gray,
Hampton,
Harris,
Hawley,
Ingalls,
Jones of Nevada,
McMillan,
McPherson,
Mahone,
Morgan,
Morrill,
Payne,
Pugh,
Saulsbury,
Sawyer,

Sewell,
Spooner,
Vance,
Vest,
Walthall,
Whitthorne,
Williams,
Wilson of Md.

ABSENT—26

Aldrich,
Allison,
Butler,
Camden,
Cameron,
Chace,
Dawes,
Edmunds,
Fair,
Frye,
Gibson,
Gorman,
Hale,
Harrison,
Jones of Arkansas,
Jones of Florida,
Kenna,
Maxey,
Miller,
Plumb,
Ransom,
Riddleberger,
Sabin,
Stanford,
Van Wyck,
Voorhees.

The PRESIDING OFFICER. Two-thirds have not voted for the resolution. It is not passed.

Mr. PLUMB subsequently said: I wish to state that I was unexpectedly called out of the Senate just before the vote was taken on the constitutional amendment, and to also state that if I had been here I should have voted for it.

*** END OF THE PROJECT GUTENBERG EBOOK DEBATE ON
WOMAN SUFFRAGE IN THE SENATE OF THE UNITED STATES, ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.